EXPRESS SCRIPTS, INC.
PHARMACY BENEFIT MANAGEMENT AGREEMENT

This Pharmacy Benefit Management Agreement ("Agreement") is effective as of January 1, 2022 ("Effective Date") and is entered into by and between Express Scripts, Inc., a Delaware corporation ("ESI"), and Disney Worldwide Services organized under the laws of the state of Florida ("Sponsor"). Sponsor has engaged ESI to provide on an exclusive basis, either directly or through its subsidiaries, pharmacy benefit management services, including, among other things, pharmacy network contracting; pharmacy claims processing; mail and specialty drug pharmacy; cost containment, clinical, safety, adherence, and other like programs; and formulary administration ("PBM Services") pursuant to the terms described in this Agreement.

1. Definitions

1.1. "Ancillary Supplies, Equipment, and Services" or "ASES" means ancillary supplies, equipment, and services provided or coordinated by ESI Specialty Pharmacy in connection with ESI Specialty Pharmacy's dispensing of Specialty Products. ASES may include all or some of the following: telephonic and/or in-person training, nursing/clinical services, in-home infusion and related support, patient monitoring, medication pumps, tubing, syringes, gauze pads, sharps containers, lancets, test strips, other supplies, and durable medical equipment. The aforementioned list is illustrative only (not exhaustive) and may include other supplies, equipment, and services based on the patient's needs, prescriber instructions, payer requirements, and/or the Specialty Product manufacturer's requirements.

1.2. "Average Wholesale Price" or "AWP" means the average wholesale price of a prescription drug as identified by drug pricing services such as Medi-Span, the drug manufacturer or other source recognized in the retail prescription drug industry (the "Pricing Source"). The applicable AWP shall be the 11-digit NDC for the actual package size of the drug or product on the date dispensed or package sizes of 100 units or 16 ounce quantities, or the next larger quantity if such specified quantities are not available for prescriptions filled in (a) Participating Pharmacies and ESI Specialty Pharmacy and (b) in the Mail Service Pharmacy. If the Pricing Source discontinues the reporting of AWP or materially changes the manner in which AWP is calculated or reported, and/or in a way that changes the economics of the Plan, including prior to the Effective Date ("AWP Change or Replacement"), the parties agree to work together to modify the pricing terms to preserve the parties' relative economics before such changed methodology. Repackaging which has the effect of inflating AWP is explicitly prohibited. "Price shopping", meaning ESI's use of multiple AWP reporting services in order to select the most advantageous AWP price as a means to inflate discount calculations, is prohibited.

Prior to an AWP Change or Replacement, ESI shall (1) provide Sponsor with at least ninety (90) days' written notice of the effective date of the AWP Change or Replacement, but if the effective date of the AWP Change or Replacement is less than ninety (90) days before ESI knows that the AWP Change or Replacement will definitely occur, then ESI shall provide Sponsor with as much advance notice as is reasonably practicable under the circumstances; (2) provide Sponsor with written illustration of the financial impact of the AWP Change or Replacement (e.g., specific drug examples) and a written statement of the expected aggregate annual impact of the AWP Change or Replacement at least seventy-five (75) days prior to the effective date of the AWP Change or Replacement, but if the effective date of the AWP Change or Replacement is less than seventy-five (75) days before ESI knows that the AWP Change or Replacement will definitely occur, then ESI shall provide Sponsor with the written illustration and statement described above as soon as is reasonably practicable under the circumstances.

1.3. Biosimilar Drug" or "Biosimilars" means a "biosimilar" biological product as defined in the Biologics Price Competition and Innovation Act of 2009 at 42 U.S.C. §262(i)(2) and approved under Section 351(k) of the Public Health Services Act or pursuant to any successor legislative provision relating to expedited approval of biological products which are highly similar to a reference biological product. Biosimilar Products will be considered Brand Name Drugs for the purposes of this Agreement. Biosimilar Products will follow the specialty status of the Reference Product, as defined herein.

1.4. "Brand/Generic Algorithm" or "BGA" means ESI's standard and proprietary brand/generic algorithm utilized by ESI for all of its clients, a copy of which may be made available for review by Sponsor or its Auditor upon request. The purposes of the algorithm are to utilize a comprehensive and logical algorithm to determine the brand or generic status of products in the ESI master drug file using a combination of industry standard attributes, to stabilize products "flipping" between brand and generic status as may be the case when a single indicator is used from industry pricing sources, and to reduce Sponsor, Member and provider confusion due to fluctuations in brand/generic status. Sponsor or its Auditor may audit ESI's application of its BGA to confirm that ESI is making brand and generic drug determinations consistent with such algorithm.

1.5. "Brand Drug" means a prescription drug identified as such in ESI's master drug file using indicators from First Databank (or other source nationally recognized in the prescription drug industry used by ESI for all clients) on the basis of a standard Brand/Generic Algorithm utilized by ESI for all of its clients, a copy of which may be made available for review by Sponsor or its Auditor upon request.

1.6. "Business Days" means all days except Saturdays, Sundays, and United States federal holidays. All references to "day(s)" are to calendar days unless "business day" is specified.

1.7. "Change in Law" means a new or change in applicable federal or state laws or regulations or the interpretation thereof or any government, judicial or legal action.

1.8. "Claim" means each Prescription or refill thereof ordered and issued by a Prescriber and submitted to ESI by a Member or a Participating Pharmacy for adjudication.

1.9. "COBRA" means the Consolidated Omnibus Budget Reconciliation Act of 1985, as amended.

1.10. "COBRA Beneficiary" means an individual who is eligible to elect and has elected continuation coverage under the Plan pursuant to COBRA.

1.11. "Compound Prescription" means a prescription that meets the following criteria: two or more solid, semi-solid, or liquid ingredients, bulk powder, at least one of which is a Covered Drug, that are weighed or measured then prepared according to the prescriber's order and the pharmacist's art. Compound Prescriptions exclude Claims with an affirmative compound indicator that contain only one ingredient. Compound Prescriptions will be priced at the lower of the U&C for the Compound Prescription or the sum of the cost of each ingredient plus a compounding fee dependent on the level of effort codes submitted on the claim. The cost of each individual ingredient will be based on the lower of MAC or discounted AWP.

1.12. "Copayment" means that portion of the charge for each Covered Drug dispensed to the Member that is paid by the Member (e.g., copayment, coinsurance and/or deductible). Sponsor will communicate the applicable Copayment on the Set-Up Forms. A Member's Copayment charged for a Covered Drug will be the lesser of the applicable Copayment, AWP discount (e.g. MAC price for Generic Drugs), or U&C.

1.13. "Covered Drug(s)" means those prescription drugs, supplies, Specialty Products and other items that are covered under the Plan, each as indicated on the Set-Up Forms.

1.14. "Data" means any program generated information, regardless of where it resides, including, but not limited to, utilization, Claims, financial, and enrollment information.

1.15. "Dependent" means the spouse, dependent, or domestic partner, as each of these terms is defined under the Plan, of an Employee, Retiree, or COBRA Beneficiary who is eligible for and elects coverage under the Plan by virtue of such person's relationship to an Employee.

1.16. "Eligibility Files" means the list submitted by Sponsor to ESI in reasonably acceptable electronic format indicating persons eligible for drug benefit coverage services under the Plan.

1.17. "Employee" means any individual employed by Sponsor and eligible for coverage under the Plan.

1.18. "ERISA" means the Employee Retirement Income Security Act of 1974, as amended.

1.19. "ESI National Plus Network" means ESI's broadest Participating Pharmacy network.

1.20. "ESI Mail Pharmacy" means a pharmacy owned or operated by ESI or one or more of its affiliates, other than an ESI Specialty Pharmacy, where prescriptions are filled and delivered to Members via mail delivery service.

1.21. "ESI Specialty Pharmacy" means Accredo Health Group, Inc., Express Scripts Specialty Distribution Services, Inc., or another pharmacy or home health agency wholly-owned or operated by ESI or one or more of its affiliates that primarily dispenses Specialty Products. When the ESI Mail Pharmacy dispenses a Specialty Product, it shall be considered an ESI Specialty Pharmacy hereunder.

1.22. "Exclusive or Limited Distribution Product" means a Specialty Product that is not generally available from most or all pharmacies but is restricted to select pharmacies as determined by a pharmaceutical manufacturer.

1.23. "Formulary" means a list of Covered Drugs consisting of FDA-approved prescription drugs and supplies that ESI's Pharmacy and Therapeutics Committee has evaluated for inclusion on the list, which may be modified from time to time as a result of factors including but not limited to medical appropriateness, manufacture rebate arrangement and patent expirations and/or customized by Sponsor, and which is selected and/or adopted by Sponsor. The drugs and supplies included on the Formulary will be modified by ESI from time to time as a result of factors, including, but not limited to, medical appropriateness, manufacturer Rebate arrangements, and patent expirations. Additions and/or deletions to the Formulary are hereby adopted by Sponsor, subject to Sponsor's discretion to elect not to implement any such addition or deletion through the Set-Up Form process, any such election shall be considered a Sponsor change to the Formulary.

1.24. "Generic Drug" means a prescription drug, whether identified by its chemical, proprietary, or non-proprietary name, that is therapeutically equivalent and interchangeable with drugs having an identical amount of the same active ingredient(s) and approved by the FDA, and which is identified as such in ESI's master drug file using indicators from First Databank (or other source nationally recognized in the prescription drug industry) on the basis of a standard Brand/Generic Algorithm, a copy of which may be made available for review by Sponsor or its Auditor upon request.

1.25. Identification Cards" means new identification cards issued to individuals who first become Members after the Effective Date and replacement identification cards for Members who have lost or had their identification cards stolen. Such Identification Cards shall include any information required under ERISA section 716(e) as added by section 107 of division BB of the CAA.

1.26. "MAC List" means a list of prescription drugs or supplies subject to maximum reimbursement payment schedules developed or selected by ESI.

1.27. "Manufacturer Administrative Fees" means those administrative fees paid by manufacturers to ESI pursuant to a contract between ESI and the manufacturer in connection with and specific to ESI's administering, invoicing, allocating and collecting the Rebates attributable to eligible utilization of manufacturers' contracted products under the Rebate program.

1.28. "Maximum Reimbursement Amount" or "MRA" means the maximum unit ingredient cost payable by Sponsor for a drug on the MAC List based on maximum reimbursement payment schedule(s) developed or selected by ESI. The application of MRA pricing may be subject to certain "dispensed as written" (DAW) protocols and Sponsor defined plan design and coverage policies.

1.29. "Member" means an Employee, Retiree, or COBRA Beneficiary who is participating in the Plan and eligible for Prescription drug benefits thereunder, and such persons' Dependents as indicated in the Eligibility Files.

1.30. "Member Submitted Claim" means a paper claim submitted by a Member for Covered Drugs dispensed by a pharmacy for which the Member paid cash.

1.31. "Network" means the collection of retail pharmacies which have been credentialed and contracted by ESI and designated as a Participating Pharmacy.

1.32. "OTC" means a Covered Drug that is available without a Prescription.

1.33. "Participating Pharmacy" means any licensed retail pharmacy with which ESI or one or more of its affiliates has executed an agreement to provide Covered Drugs to Members, but shall not include any mail order or specialty pharmacy affiliated with any such Participating Pharmacy. Participating Pharmacies are independent contractors of ESI.

1.34. "Pass-Through" means the actual ingredient cost and dispensing fee amount paid by ESI for the Prescription Drug Claim when the claim is adjudicated to the Participating Pharmacy, as set forth in the specific Participating Pharmacy remittances related to Sponsor's claims.

1.35. "PMPM" means per Member per month fee, if applicable, as determined by ESI from the Eligibility Files.

1.36. "Plan" means any plan of insurance or self-insurance, including an administrative services only arrangement, sponsored or administered by Sponsor or a subsidiary or affiliate of Sponsor which offers or provides a prescription drug benefit.

1.37. "Plan Design" means Plan drug coverage, days' supply limitation, Copayment, Formulary (including Formulary drug selection), and other specifications applicable to the Plan designated by Sponsor as set forth in this Agreement or otherwise documented between the parties.

1.38. "Prescriber" means a person licensed to prescribe medication under applicable Law.

1.39. "Prescription" means a Prescriber's written, electronic, or verbal order for a Covered Drug.

1.40. "Prescription Drug Claim" means a Member Submitted Claim, Subrogation Claim or claim for payment submitted to ESI by a Participating Pharmacy, ESI Mail Pharmacy, or ESI Specialty Pharmacy as a result of dispensing Covered Drugs to a Member.

1.41. "Rebates" mean formulary rebates that are paid to ESI pursuant to the terms of a formulary rebate contract negotiated independently by ESI and directly attributable to the utilization of certain Covered Drugs by Members. For sake of clarity, Rebates do not include, for example, Manufacturer Administrative Fees; product discounts or fees related to the procurement of prescription drug inventories by ESI Specialty Pharmacy or the ESI Mail Pharmacy; inflation protection amounts; fees received by ESI from pharmaceutical manufacturers for care management or other services provided in connection with the dispensing of products; or other fee-for-service arrangements whereby pharmaceutical manufacturers generally report the fees paid to ESI or its wholly-owned subsidiaries for services rendered as "bona fide service fees" pursuant to federal laws and regulations (collectively, "Other Pharma Revenue"). Such laws and regulations, as well as ESI's contracts with pharmaceutical manufacturers, generally prohibit ESI from sharing any such "bona fide service fees" earned by ESI, whether wholly or in part, with any ESI client. Rebates shall also include pharmaceutical manufacturer value applied at the point of sale.

1.42. "Reference Product" means a "reference product" as defined in the Biologics Price Competition and Innovation Act of 2009 at 42 U.S.C. §262(i)(4) and approved under Section 351(k) of the Public Health Services Act.

1.43. "Responsible Reporting Entity (RRE)" means an entity required to report certain information to the Centers for Medicare and Medicaid Services (CMS) pursuant to Section 111 of the Medicare, Medicaid, and SCHIP Extension Act of 2007 (MMSEA), as amended by the Substance Use-Disorder Prevention that Promotes Opioid Recovery and Treatment (SUPPORT) for Patients and Communities Act, and as further amended from time to time.

1.44. "Retiree" means a former Employee of Sponsor who has terminated employment from Sponsor after meeting the requirements for retirement under the Sponsor retirement plan and is eligible for participation in the Plan.

1.45. "Set-Up Forms" means any standard ESI document or form, which when completed by Sponsor (electronic communications from Sponsor indicating Sponsor's approval of a Set-Up Form shall satisfy the foregoing), will describe the essential benefit elements and coverage rules adopted by Sponsor for its Plan.

1.46. "Specialty Product List" means the list of Specialty Products applicable to Sponsor and maintained and updated by ESI from time to time. The Specialty Product List is available to Sponsor upon request.

1.47. "Specialty Products" means those injectable and non-injectable drugs on the Specialty Product List. Specialty Products, which may be administered by any route of administration, are typically used to treat chronic or complex conditions, and typically have one or more of several key characteristics, including frequent dosing adjustments and intensive clinical monitoring to decrease the potential for drug toxicity and increase the probability for beneficial treatment outcomes; patient training and compliance assistance to facilitate therapeutic goals; limited or exclusive product availability and distribution (if a drug is only available through limited specialty pharmacy distribution it is always considered a Specialty Product); specialized product handling and/or administration requirements.

1.48. "Subrogation Claim" means subrogation claims submitted by any state or a person or entity acting on behalf of a state under Medicaid or similar United States or state government health care programs, for which Sponsor is deemed to be the primary payor by operation of applicable federal or state laws.

1.49. "Usual and Customary Price" or "U&C" means the retail price charged by a Participating Pharmacy for the particular drug in a cash transaction on the date the drug is dispensed as reported to ESI by the Participating Pharmacy.

2. PBM SERVICES

2.1. Eligibility/Set Up. Sponsor will submit completed Set-Up Forms and Eligibility Files (initial and updated) on a mutually determined basis, which ESI will accurately implement. ESI shall maintain an eligibility file identifying all Members then eligible for the Plan, based upon the Eligibility File provided by Sponsor. Changes to the Set-Up Forms must be communicated to ESI in writing on ESI's standard forms or other mutually agreed upon method. ESI shall update its system to reflect the latest Eligibility File within two (2) Business Days after receipt by ESI of updated Eligibility File. Eligibility performed manually by ESI for Sponsor, or material changes to the Eligibility File processes requested by Sponsor during the term may be subject to additional fees. Sponsor will be responsible for all Prescription Drug Claims during the period of the Member's eligibility as indicated on the Eligibility File including for retroactively termed Members, except in the event that ESI does not accurately implement the Eligibility File.

2.2. Overpayments. ESI shall be responsible for correcting all errors arising from its negligence and reconciling with Sponsor any and all incorrect payments resulting therefrom promptly but not later than sixty (60) days after discovery unless the adjustment is unduly complex. In the event of complex adjustments that will take longer than 60 days, ESI will communicate the expected turnaround and will work in good faith to complete as quickly as possible. If a common overpayment error affects a large number of Members or a geographically concentrated number of Members, ESI will notify Sponsor of the error before initiating the recovery process and will work in good faith to resolve overpayment issues of this scope.

2.3. Pharmacy Network.

a. Participating Pharmacies. ESI will maintain Networks in which the Participating Pharmacies agree to provide prescription drugs and perform related professional pharmacy services for Members in accordance with the provisions of the Plan, this Agreement, and the contractual arrangement between each Participating Pharmacy and ESI. Participating Pharmacies are independent contractors of ESI and as such ESI does not direct or exercise any control over the Participating Pharmacies or the professional judgment exercised by any pharmacist in dispensing prescriptions or otherwise providing pharmaceutical related services at a Participating Pharmacy. ESI shall have no liability to Sponsor, any Member or any other person or entity for any act or omission of any Participating Pharmacy or it agents or employees. If, due to an access concern, Sponsor requests that ESI attempt to add a particular retail pharmacy to the network of Participating Pharmacies serving Sponsor and its Members hereunder, ESI will make commercially reasonable efforts to add any such pharmacy to the Participating Pharmacy network for Sponsor, provided that such pharmacy meets ESI's network participation requirements and agrees to ESI's standard terms and conditions. If any such pharmacy meets ESI's network participation requirements and agrees to ESI's standard terms and conditions except for ESI's standard network rates (i.e., the particular pharmacy will only agree to higher than standard reimbursement rates), and Sponsor nevertheless requests that ESI add such pharmacy, the rate charged to Sponsor for Prescription Drug Claims processed through such pharmacy (assuming ESI agrees to contract with such pharmacy) will be the net ingredient cost plus the dispensing fee paid by ESI to such Participating Pharmacy (plus applicable sales or excise tax or other governmental surcharge, if any). All such Prescription Drug Claims will be excluded from the pricing guarantees set forth in Exhibit A.

b. With respect to the Networks established by ESI and the Participating Pharmacies that are part of such Networks, ESI represents, warrants, and covenants that ESI has exercised and will continue to exercise during the term of this Agreement due diligence and care in its selection, credentialing, re-credentialing, and retention of such Participating Pharmacies and its establishment and maintenance of the Networks.

c. ESI represents and warrants that all Participating Pharmacies in the Network are required to be duly licensed within the applicable laws of the state in which they perform pharmaceutical services and covenants that all Participating Pharmacies shall be credentialed and re-credentialed in accordance with ESI's standard procedures during the term of this Agreement. ESI represents and warrants that all Participating Pharmacies are required to maintain general and professional liability insurance coverage in such form and amount as are standard in the industry, but in no event less than required by applicable law and covenants that such insurance coverage shall be required to remain in effect during the term of this Agreement. ESI will require each Participating Pharmacy to perform services (including dispensing and product labeling) in accordance with all applicable laws, rules and regulations, the Plan and the professional standards prevailing in the community at the time such services are rendered; and that each Participating Pharmacy not engaging in any conduct that would jeopardize the health, welfare or safety of any Member.. ESI also provides a standard suite of pharmacy audit services to determine Participating Pharmacies' compliance with their provider agreement billing requirements according to the parameters of the ESI pharmacy audit program and any other purposes contemplated by its standard audit program. ESI will attempt recovery of identified overpayments through offset, demand or other reasonable means; provided that ESI will not be required to institute litigation. 100% of recovered overpayments are credited to Sponsor. Copies of participation requirements and auditing processes are available upon request.

d. ESI shall maintain a complete listing of Participating Pharmacies through its internet web site. Additionally, ESI shall:

   i. Provide and maintain toll-free telephone access to a resource center for Participating Pharmacies to resolve Claim submission issues.

   ii. Maintain toll-free telephone access to pharmacists for DUR assistance.

   iii. Monitor Network Claim submission compliance including submission of U&C, dispensing rates of Generic Drugs, compliance with Formulary programs, compliance with DUR intervention programs, patient utilization and drug mix.

   iv. Maintain toll-free telephone access to voice response unit and a web site for Members to locate Participating Pharmacies in zip code area.

e. Identification Cards/Claim Forms - ESI will (i) produce Identification Cards for those Members designated by Sponsor and (ii) make direct reimbursement Claim forms available through the www.express-scripts.com internet site or toll-free customer service telephone line for use by Members who have not received their Identification Cards, or have had them lost or stolen. ESI will distribute Identification Cards and Claim forms to the designated Members. All costs associated with producing such materials are the responsibility of ESI.

f. Submission of Claims by Participating Pharmacies - ESI shall accept Claims submitted electronically by Participating Pharmacies and adjudicate such Claims in accordance with the terms of the Plan, including all applicable Copayments, Copayment maximums, benefit maximums, and other provisions thereof.

g. Participating Pharmacies shall be responsible for collection of all applicable Copayments from Members.

h. Submission of Claims by Members - ESI shall accept Claims submitted by Members directly to ESI on paper and adjudicate such Claims in accordance with the terms of the Plan, the Agreement, including all applicable Copayments, Copayment maximums, benefit maximums, and other provisions thereof. ESI shall produce and mail EOBs to Members both for allowable Claims, together with checks for reimbursement amounts, and for Claims that are rejected as ineligible for reimbursement.

i. ESI Mail Pharmacy. Subject to applicable law, ESI will make Members aware of the ability to fill their prescriptions through the ESI Mail Pharmacy, communicate any applicable cost savings, and provide supporting services (e.g. pharmacist consultation) in connection with any prescription dispensed by the ESI Mail Pharmacy. ESI may suspend ESI Mail Pharmacy services to a Member who is in default of any Copayment amount due ESI.

j. CAA Gag Clause Compliance. ESI represents and warrants that its Participating Pharmacy agreements would not directly or indirectly restrict the Plan from (a) providing provider-specific cost or quality of care information or data to referring providers, the Sponsor, participants, beneficiaries, or enrollees, or individuals eligible to become participants, beneficiaries, or enrollees, or individuals eligible to become participants, beneficiaries, or enrollees of the plan or coverage; (b) electronically accessing de-identified claims and encounter data for each participant, beneficiary, or enrollee; or (c) sharing such information, consistent with applicable privacy regulations and shall assists the Plan in comply with the attestation requirements as required by Code section 9824, ERISA section 724 and PHSA section 2799A-9, as added by Section 201 of division BB of the Consolidated Appropriations Act, 2021.

k. Credentialing and Insurance - ESI represents and warrants that all of its Mail Service Pharmacies are duly licensed under the applicable Laws of the state in which they perform pharmaceutical services and covenants that, during the term of this Agreement, all of its Mail Service Pharmacies shall comply with all applicable state and federal Laws. ESI represents and warrants that all of its Mail Service Pharmacies maintain general and professional liability insurance coverage in such form and amount as is standard in the industry, but in no event less than required by applicable Law and covenants that such insurance coverage shall remain in effect during the term of this Agreement.

  i. Eligibility - ESI shall use the Eligibility File to determine eligibility for Mail Order Services.

  ii. Dispensing Procedures - ESI's Mail Service Pharmacies will dispense Covered Drugs to Members in accordance with (i) applicable Law and regulations in the state in which ESI's Mail Service Pharmacy is located, and (ii) the terms of this Agreement and Plan Design(s).

    A. All matters pertaining to the dispensing of Covered Drugs or the practice of pharmacy in general are subject to the professional judgment of the dispensing pharmacist.

    B. Any drug that cannot be dispensed in accordance with ESI Mail Service Pharmacy dispensing protocols due to FDA or manufacturer requirements, or which requires special record-keeping procedures, may be excluded from dispensing by ESI, and Prescriptions for such drugs shall be returned to the Member with an explanation as to why it could not be dispensed.

    C. In the event that it becomes impracticable, for reasons of a Force Majeure (as defined herein) or otherwise, for ESI to dispense Prescriptions to Members under the Plan, ESI shall notify Sponsor, and use reasonable efforts to have Program Prescriptions dispensed from an affiliated mail service pharmacy, subject to applicable Laws and regulations.

l. Specialty Products and ASES. Subject to applicable law, ESI will make Members aware of the ability to fill their prescriptions through the ESI Specialty Pharmacy, communicate any applicable cost savings, and provide supporting services (e.g. pharmacist consultation) in connection with any prescription dispensed by the ESI Specialty Pharmacy. The ESI Specialty Pharmacy will be Sponsor's exclusive specialty pharmacy for select Specialty Products included on the Specialty Product List. Products included on the Specialty Product List that are deemed to be exclusive Specialty Products must be dispensed by the ESI Specialty Pharmacy. Specialty Products not deemed as exclusive on the Specialty Product List may be dispensed by Participating Pharmacies and will be excluded from any Exclusive Specialty guarantees set forth in the Agreement. Specialty Products will be excluded from any price guarantees set forth in the Agreement. In no event will the ESI Mail Pharmacy or Participating Pharmacy pricing specified in the Agreement apply to Specialty Products.

m. ESI will notify Sponsor monthly of any new Specialty Products that are introduced to the market on or after the Effective Date of this Agreement with their applicable reimbursement rates if available. If Sponsor has expressly excluded a specific therapy class or product, Specialty Products in those classes will automatically be excluded from coverage and will reject as "NDC Not Covered". If Sponsor later desires to cover otherwise excluded Specialty Products, Sponsor must notify ESI in writing that it desires to cover the Specialty Product before ESI may adjudicate the Specialty Product as a Covered Drug. Sponsor must notify ESI in writing if it wants to exclude any Specialty Product from coverage. The exclusion will be implemented within seven (7) Business Days after the date of ESI's receipt of such notification. ESI will not retroactively deny Prescription Drug Claims processed prior to ESI's implementation of the exclusion as provided above and Sponsor will be responsible for the payment of such Prescription Drug Claims processed prior to the rejection of coverage.

n. ESI may provide ASES that is necessary for the proper administration of a Specialty Product. Sponsor will be billed for such ASES as set forth in Exhibit A.

i. Services for Specialty Drugs under the ESI Specialty Pharmacy consist of:

A. Clinical support that provides, according to ESI's procedures:
- Member counseling
- Care management, including information and support directly to the Member
- Coordination of care with the Member's case manager and/or home care agency
- Specialty Drug educational materials and product information

B. Toll-free telephone line for Members using Specialty Drugs

C. Express delivery to physician's office or Member's home
- Standard two (2) day delivery
- Overnight delivery as physician required (excluding Sundays)
- As required by manufacturer

D. Logistics coordination of delivery to Member's home or physician's office

E. One initial targeted mailing, including:
- Analysis of integrated pharmacy and medical Claims databases to identify utilizers
- Standard communication materials notifying Members of changes in plan coverage
- ASES provided with each injectable medication

F. Drug Utilization Review ("DUR") applied to ESI Specialty Pharmacy related Prescription Claims and, when available from ESI, medical Claims

G. Enhanced physician services, consisting of communication materials, forms and informational hotline

o. ESI will collect a Copayment from the Member for all approved Prescription Drug Claims filled through ESI's Mail Service Pharmacy or ESI Specialty Pharmacy. The Member can pay the Copayment amount in the form of check or credit card.

2.4. Drug Utilization Review Services - ESI shall provide to the Plan its Drug Utilization Review Services which shall include, without limitation, the following:

a. Concurrent DUR Services - ESI shall provide a system for identifying indicators of potentially undesirable, suboptimal, or unsafe outcomes if a medication is dispensed exactly as written by the Prescriber. Examples of indicators include excessive utilization, drug-drug interactions, therapeutic duplications, insufficient or excessive drug doses, drug-age conflicts, drug-pregnancy advisories, drug-disease contraindications, premature refills, and late refills at the point of service.

b. Retrospective DUR Services – For the relevant fee, ESI shall provide a system for examining Claims history information for indicators of the quality and appropriateness of various aspects of drug utilization and Prescriber habits, including indicators related to controlled substances and Generic Drugs prescribing rate, and identifying patients and/or Prescribers whose drug use and prescribing patterns differ from the norm and contacting appropriate individuals and providing them with information to address the identified issues.

c. ESI represents, warrants, and covenants that ESI has exercised and will continue to exercise due diligence and care in its selection, credentialing, re-credentialing, and retention of the staff and personnel that administer the DUR Services. All guidelines and procedures used by ESI for purposes of administering the DUR Services emphasize, and shall continue to emphasize during the term of this Agreement, the delivery of appropriate pharmaceutical services in accordance with standards prevailing in the industry.

2.5. Standard Reports - ESI shall prepare and provide to Sponsor the management and utilization reports in accordance with the agreed upon frequency and time frames.

2.6. Toll-Free Phone Services - ESI shall provide toll-free phone service numbers with access for hearing-impaired Members, at all times during ESI's usual and customary hours of operation. Further, ESI shall staff such phone service with staff members from a team primarily designated to the Sponsor account and familiar with the terms of the Plan, including, without limitation, whether a drug is a Covered Drug, provisions regarding eligibility, applicable Copayments, Copayment maximums, benefit maximums, the procedure for completing a Claim form, and determining the status of Member Claims. ESI shall also provide Members access to a registered pharmacist 24 hours per day and 365 days a year.

2.7. <u>DUR, Subrogation Claims, Member Submitted Claims, Smart Rx Program</u>.

a. <u>Claims Processing</u>

ESI will perform claims processing services for Covered Drugs dispensed by Participating Pharmacies, ESI Mail Pharmacy and ESI Specialty Pharmacy in accordance with Section 2.8.

b. In connection with each Prescription submitted for processing on-line by a Participating Pharmacy, ESI will perform standard drug utilization review ("DUR") in order to assist the dispensing pharmacist and prescribing physician in identifying potential drug interactions, incorrect prescriptions or dosages, and certain other circumstances that may be indicative of inappropriate prescription drug usage. ESI's DUR processes are not intended to substitute for the professional judgment of the prescriber, the dispensing pharmacist or any other health care professional providing services to the Member.

c. If elected by Sponsor, ESI will, for an applicable fee, process Member Submitted Claims in accordance with the rules in the Set-Up Forms, the Claims Rules (as outlined in Section 2.8, below), and ESI's standard procedures.

d. If authorized by Sponsor on the Set-Up Forms, ESI will, for an applicable fee, process Subrogation Claims in accordance with applicable federal and state laws. If Sponsor does not authorize ESI to process Subrogation Claims, ESI will reject any Subrogation Claims and refer claimants to Sponsor, in accordance with applicable federal and state laws.

e. SmartShare Rx Program Fees -

1. As directed by Sponsor, ESI will apply 100.00% of estimated Rebates, adjusted for Rebate non-collection, associated with Covered Drugs, for which Copayment is required, to Members at the point of sale. ESI will adjudicate a Prescription Drug Claim with the Member's percent share of estimated Rebates applied to the ingredient cost of the Covered Drug, reducing the Copayment. At the point of sale, the Member will pay the reduced Copayment for the Covered Drug. In accordance with the Agreement, ESI will bill Sponsor for the ingredient cost of the Covered Drug, less the reduced Copayment, plus the dispensing fee.

2. Rebates will be paid and reconciled in accordance with the Agreement. This program does not impact the Rebate guarantees under the Agreement.

3. The ingredient cost of Covered Drugs will not be impacted by the estimated Rebates applied at the point of sale for the purpose of calculating the Annual Average Ingredient Cost Discount Guarantees.

4. Sponsor accepts any and all liability arising from any difference between estimated Rebates and actual Rebates.

2.8. Claims for Benefits. ESI will process Prescription Drug Claims consistent with the ERISA claims rules set forth in 29 CFR Part 2560 and any applicable regulations under the Patient Protection and Affordable Care Act of 2010 and its implementing regulations ("ACA") (ERISA and ACA claims rules collectively referred to as "Claims Rules") and in accordance with the terms of the Plan, including but not limited to all applicable Copayments, Copayment maximums, and benefit maximums, the Plan's summary plan description, this Agreement and the terms and conditions of ESI's agreements with pharmacies including Participating Pharmacies.

a. Appeals. ESI shall also provide notices of adverse determinations and of the claimant's right to appeal the adverse determination in accordance with the Claims Rules. Sponsor may elect to have ESI perform appeals services in connection with denied PA requests and denied Prescription Drug Claims in exchange for an applicable fee, or facilitate such services through Sponsor or a third party of Sponsor's choice. If Sponsor elects to conduct its own appeals or facilitate appeals through a third party, ESI will route Member appeals to Sponsor or other Sponsor designated entity. If Sponsor elects to have ESI perform appeals services, Sponsor agrees that ESI may perform such services through a third-party contracted with ESI for the performance of appeals (the "UM Company").

b. Named Fiduciary. Through its contract with ESI, the UM Company has agreed to be, and will serve as, the named fiduciary for its performance of such appeals. ESI also agrees to accept fiduciary status solely with respect to its performance of any appeal.

c. Prior Authorization. ESI will, for an applicable fee, provide prior authorization ("PA") services as specified and directed by Sponsor for drugs designated on the Set-Up Forms. Prior authorized drugs must meet Sponsor-approved coverage criteria ("Guidelines") before they are deemed to be Covered Drugs. In determining whether to authorize coverage of such drug under the PA program, ESI will apply only the Guidelines and will rely upon information about the Member and the diagnosis of the Member's condition provided by the prescriber. If prior authorization for a medication is not immediately available, a 72-hour emergency supply may be dispensed when the pharmacist on duty recommends it as clinically appropriate and when the medication is needed without delay. ESI will not make a determination of medical necessity, make diagnoses or substitute ESI's judgment for the professional judgment and responsibility of the prescriber.

d. <u>UM Company</u>. In the event ESI performs appeals services, or facilitates the performance of appeals services through a UM Company, ESI or the UM Company, as applicable, will be responsible for conducting the appeal on behalf of Sponsor and providing notices of adverse determinations and of claimant's right to seek further external review, if applicable, in accordance with the Claims Rules. ESI represents to Sponsor that UM Company has contractually agreed that: (A) UM Company will conduct appeals in accordance with the Claims Rules and Sponsor's plan, (B) Sponsor is a third party beneficiary of UM Company's agreement with ESI (a copy of which is available upon request) and the remedies set forth therein, and (C) UM Company will indemnify Sponsor for third party claims caused by the UM Company's negligence, willful misconduct, or its breach of fiduciary duty or of applicable federal, state or local laws or regulations promulgated thereunder, or breach of the UM Company's agreement with ESI in providing the appeal services.

e. <u>External Review Services</u>.

i. ESI will not conduct any external review services in the ACA; provided, however, Sponsor may elect to have UM Company facilitate the provision of external review services through UM company contracted independent review organizations ("IROs") (as such term is defined in the ACA), for the applicable fees. Sponsor must execute a standard ESI External Appeals Services Set-Up Form, which may be requested through ESI Account Management, in order to receive such services from UM Company.

ii. In the event that Sponsor elects to utilize UM Company to facilitate the provision of external review services through UM Company contracted IROs, UM Company will be responsible for facilitating all such appeals (and the IROs will be responsible for providing all such appeals) in accordance with PPACA and all other applicable federal and state laws, and Sponsor hereby acknowledges and agrees that:

iii. UM Company (with respect to facilitating the external reviews) and the IROs (with respect to performing the external reviews), and not ESI, will be providing external review services; UM Company is an independent contractor of ESI; the IROs are independent contractors of UM Company and not ESI; and ESI does not in any way control or direct either UM Company or the IROs with respect to facilitation or performance of external review services provided by each respectively.

iv. ESI represents to Sponsor that UM Company has contractually agreed that: (A) UM Company will facilitate all external review services in accordance with ACA and all other applicable federal and state laws; (B) UM Company will contractually require its contracted IROs to perform all external reviews in accordance with PPACA and all other applicable federal and state laws; (C) to the extent not prohibited by law, UM Company will indemnify, defend and hold Sponsor harmless from and against any and all losses, damages, injuries, causes of action, claims, demands and expenses (including reasonable attorney's fees, costs and expenses), arising out of, resulting from, or related to any act, omission or default by the IROs in their performance of the external reviews; and (D) Sponsor has third party beneficiary rights to enforce the preceding indemnification and hold harmless provision.

2.9. <u>Error Correction</u>: Claims determined to have been processed in error will be reprocessed to correct the error in the following manner:

a. If the error is determined to be the result of an ESI issue:

i. ESI will bear the cost of correcting the cause of the error.

ii. If the error resulted in Sponsor making overpayment on the Claim, ESI will reimburse Sponsor accordingly for the overpayment.

iii. If the error resulted in a Member making overpayment on the Claim, ESI will reimburse the Member accordingly for the overpayment.

iv. If the error resulted in Sponsor making underpayment on the Claim, ESI will bill Sponsor accordingly for the underpayment.

b. If the error is determined to be the result of Sponsor's or Sponsor's vendor's issue, Sponsor will be responsible for all costs associated with correcting the cause of the error and the Claims payment adjustments.

2.10. <u>Account Management</u>.

a. Account Team. ESI will provide account team support for Sponsor. The account team will be Sponsor's primary point of contact with ESI.

b. Sponsor/Member Call Center. ESI will provide toll-free telephone, IVR and Internet support to assist Sponsor, Sponsor's agents and Members with Member eligibility and benefits verification, location of Participating Pharmacies or other related Member concerns.

2.11. Formulary Support and Rebate Management.

a. Formulary Adherence and Clinical Programs. ESI may provide clinical, safety, adherence, and other like programs as appropriate. ESI will not implement any program for which Sponsor may incur an additional fee without Sponsor's prior written approval and election of such program.

b. Rebates. Subject to the remaining terms of this Agreement, ESI will pay to Sponsor the amounts set forth on Exhibit A.

2.12. Records. ESI will maintain all Claims records relating to services performed under this Agreement as required by applicable Law.

2.13. Exclusivity. During the Term, ESI will be Sponsor's exclusive provider of PBM Services for Sponsor's Plans offering a prescription benefit. The financial terms set forth in Exhibit A are conditioned on that exclusivity.

2.14. Sponsor Audits. Provided that this Agreement has been executed and Sponsor is current in the payment of invoices under this Agreement, Sponsor will be entitled to one individual audit of records consistent with the Audit Protocol set forth in Exhibit B per year at no additional cost from ESI. Sponsor retains the right to audit such information as reasonably required to determine that ESI is complying with the Agreement. Sponsor may use an independent third party auditor ("Auditor"), so long as such Auditor is not engaged in providing services for Sponsor or otherwise that conflict with the scope or independent nature of the audit (as determined by ESI acting reasonably and in good faith), and provided that Sponsor's Auditor executes a mutually acceptable confidentiality agreement. Any request by Sponsor to permit an Auditor to perform an audit will constitute Sponsor's direction and authorization to ESI to disclose PHI to the Auditor.

2.15. Performance Standards. ESI will conform to the performance standards set forth on Exhibit E hereto. The payments set forth in Exhibit E will be Sponsor's sole monetary remedy for any failure by ESI to meet a performance standard in addition to any correction or reimbursement associated with payment or billing errors.

2.16. Credentialing and Insurance - ESI represents and warrants that all Participating Pharmacies in the Network are required to be duly licensed within the applicable Laws of the state in which they perform pharmaceutical services and covenants that all Participating Pharmacies shall be credentialed and re-credentialed in accordance with ESI's standard procedures during the term of this Agreement. ESI represents and warrants that all Participating Pharmacies are required to maintain general and professional liability insurance coverage in such form and amount as are standard in the industry, but in no event less than required by applicable Law and covenants that such insurance coverage shall be required to remain in effect during the term of this Agreement. ESI also performs audits (i.e., electronic or on-site) of Participating Pharmacies to determine compliance with their provider agreement billing requirements. ESI will attempt recovery of identified overpayments through offset, demand or other reasonable means; provided that ESI will not be required to institute litigation. Recovered overpayments are credited to Sponsor. Copies of participation requirements and auditing processes shall be available upon request.

2.17. Identification Cards/Claim Forms - ESI will (i) produce Identification Cards for those Members designated by Sponsor, with an accompanying explanatory brochure, and provide Sponsor with a proof of final design layout and (ii) make direct reimbursement Claim forms available through the **www.express-scripts.com** internet site or toll-free customer service telephone line for use by Members who have not received their Identification Cards, or have had them lost or stolen. ESI will distribute Identification Cards and Claim forms to the designated Members. All costs associated with producing such materials are the responsibility of ESI.

2.18. ESI acknowledges and agrees it is Sponsor's Responsible Reporting Entity for the Services it provides under this Agreement. ESI will register with CMS as Sponsor's RRE for such services, and will timely fulfill all applicable compliance obligations including, without limitation, SUPPORT Act reporting for any prescription drug coverage provided hereunder.

2.19. Program Operations.

a. Reporting. ESI will make available to Sponsor ESI's on-line standard management information reporting applications. Upon Sponsor's request, ESI may develop special reporting packages or perform custom programming subject to additional fees to be disclosed prior to commencement of work.

b. Claims Data.

(i) Claims Data Retention. ESI will retain Sponsor's claims data for a total of ten (10) years from the date the prescription is filled. Thereafter, ESI will dispose of such data in accordance with its standard policies and practices and applicable state and federal law. Disposition of PHI shall be in accordance with the Business Associate Addendum.

(ii) Claims Data to Vendors. Upon Sponsor's written request and at no additional charge, ESI will provide regular prescription claims data in ESI's standard format(s) to Sponsor's vendors ("Vendors") for disease management, flexible savings account and other "payment," "treatment" and "healthcare operations" purposes (as defined under HIPAA). Requests for retrieval of data beyond thirty (30) months are subject to an hourly custom programming charge

(iii) De-Identified Claims Data. ESI or its affiliates may use and disclose both during and after the term of this Agreement the anonymized claims data (de-identified in accordance with HIPAA) including drug and related medical data collected by ESI or provided to ESI by Sponsor for research; provider profiling; benchmarking, drug trend, and cost and other internal analyses and comparisons; clinical, safety and/or trend programs; ASES; or other business purposes of ESI or its affiliates provided, that in all cases, such use and disclosure shall be subject to applicable law

3. FEES, BILLING AND PAYMENT

3.1. Fees. ESI will bill Sponsor for the difference between ESI's discounted amount for approved Prescription Drug Claims and the Member's Copayment ("Claims Reimbursements") and other administrative fees ("Administrative Fees") pursuant to the terms set forth on Exhibit A ("Claims Reimbursements," "Administrative Fees" and any other charge or fee that is the responsibility of Sponsor as may be described elsewhere in this Agreement are hereinafter referred to collectively as "Fees"). ESI may use an excess achieved in one or more of the guarantees within a channel (with the channels being retail and mail, Specialty Products will be included in the channel from which they were dispensed) under this Agreement to make up for, and offset, a shortfall in any other guarantee within the same channel, excluding any Rebate guarantees, which will be reconciled and offset only against other Rebate guarantees.

3.2. Billing and Payment. Sponsor will pay ESI as set forth in Exhibit A.

3.3. Deposit. If, at any time: (i) Sponsor has two or more invoices past due and outstanding, or (ii) ESI has reasonable grounds to believe Sponsor may be delinquent in payment of fees based on Sponsor's financial data (e.g., persistent negative cash flow, bankruptcy or insolvency), ESI may require that the Sponsor provide to ESI a deposit in an amount equal to the average of the last three (3) months of billing history as the basis for determining the one (1) month deposit amount or, if three (3) months billing history is not available, the most recent month of billing history as the basis. ESI will retain the deposit until the earlier of termination of this Agreement (following any run-off period), or six (6) consecutive months of timely payments of all Fees following submission of the deposit, and may apply the deposit to delinquent fees until return of the deposit. For the purposes of this Section 3.3 "reasonable grounds" includes the following items: (a) Sponsor is judged bankrupt or insolvent; (b) Sponsor makes a general assignment for the benefit of its creditors; (c) a trustee or receiver is appointed for Sponsor or for any of its property; (d) any petition by or on behalf of Sponsor is filed to take advantage of any debtor's act or to reorganize under the bankruptcy or similar laws; (e) repeated late payments; or (f) material adverse business or financial downturns documented in securities filings or national financial publications which may jeopardize payment.

4. DATA SECURITY, HIPAA AND CONFIDENTIAL INFORMATION

4.1. Data Security Addendum. ESI agrees to comply with the requirements of the Data Security Addendum, attached hereto as Exhibit F.

4.2. HIPAA. The parties agree that (a) as relates to use and disclosure of PHI, electronic transaction standards and security of electronic PHI under the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"), as amended, they are subject to the terms of the Business Associate Addendum set forth in Exhibit C and (b) ESI Specialty Pharmacy and ESI Mail Pharmacy are acting as covered entities under HIPAA and not as business associates to the Plan and shall abide by all HIPAA requirements accordingly.

4.3. Confidential Information.

a. Each party agrees that the terms of this Agreement and information of the other party, including, but not limited to the following, will constitute confidential and proprietary information ("Confidential Information"): (i) with respect to ESI: ESI's reporting and other web-based applications, eligibility and adjudication systems, system formats and databanks (collectively, "ESI's Systems"), clinical or formulary management operations or programs, fraud, waste and abuse tools and programs; anonymized claims data (de-identified in accordance with HIPAA) which contains financial information; ESI Specialty Pharmacy and ESI Mail Pharmacy data; information and contracts relating to Rebates and Manufacturer Administrative Fees, prescription drug evaluation criteria, drug pricing information, and Participating Pharmacy agreements; and (ii) with respect to Sponsor: Sponsor and Member identifiable health information and data, Eligibility Files, Set-Up Form information, business operations and strategies. Neither party will use the other's Confidential Information, or disclose it or this Agreement to any third party (other than Sponsor attorneys and accountants), at any time during or after termination of this Agreement, except as specifically contemplated by this Agreement, applicable law, or upon prior written consent, which will not unreasonably be withheld. Upon termination of this Agreement or as required by applicable law, each party will cease using the other's Confidential Information, and all such information will be returned or destroyed upon the owner's direction. Confidential Information does not include information which is or becomes generally available to the public; was within the recipient's possession or knowledge prior to its being furnished to the recipient pursuant to this Agreement, or is independently developed by the recipient under circumstances not involving a breach of this Agreement.

b. Other than as permitted under this Agreement, if the receiving party is requested or required (by oral questions, interrogatories, requests for information or documents, subpoena, civil investigative demand, any informal or formal investigation by any government or governmental agency or authority, law or regulation, or otherwise) to disclose any of the Confidential Information, the receiving party will notify the disclosing party promptly in writing so that the disclosing party may seek a protective order or other appropriate remedy or, in its sole discretion, waive compliance with the terms of this Agreement. The receiving party agrees not to oppose any action by the disclosing party to obtain a protective order or other appropriate remedy. If no such protective order or other remedy is obtained, or the disclosing party waives compliance with the terms of this Agreement, the receiving party will furnish only that portion of the Confidential Information which it is advised by counsel is legally required and will exercise its reasonable best efforts to obtain reliable assurance that confidential treatment will be accorded the Confidential Information.

c. Sponsor will not, and will not permit any third party acting on Sponsor's behalf to, access, attempt to access, test or audit ESI's Systems or any other system or network connected to ESI's Systems. Without limiting the foregoing, Sponsor will not: access or attempt to access any portion or feature of ESI's Systems, by circumventing ESI's Systems access control measures, either by hacking, password "mining" or any other means; or probe, active scan, audit or test the vulnerability of ESI's Systems, nor breach the security or authentication measures of ESI's Systems.

5. Compliance with Law, Fiduciary Acknowledgments, Financial Disclosure

5.1. Compliance with Law; Change in Law. Each party shall be responsible for ensuring its compliance with any federal laws and regulations applicable to its business, including maintaining any necessary licenses and permits. Sponsor shall be responsible for any governmental or regulatory charges and taxes imposed upon or related to the services provided hereunder. With respect to any Plan that is subject to the provisions of ERISA, Sponsor (or the plan sponsor if a party other than Sponsor) shall ensure that its activities in regard to such program are in compliance with ERISA, and shall be responsible for disclosing to Members any and all information relating to the Plan and this Agreement as required by law to be disclosed, including any information relating to Plan coverage and eligibility requirements, commissions, rebates, discounts, or provider discounts. In the event of a Change in Law that has a material adverse impact on the relative economics of this Agreement for either party, Sponsor and ESI shall work together to negotiate a change in the pricing terms that seeks to preserve the relative economics between the parties prior to such change. Such negotiations shall be completed within ninety (90) days of the effective date of the Change in Law. If ESI and Sponsor cannot agree to a mutually acceptable modification of the pricing terms within such ninety (90) day period, then either party may terminate this Agreement upon ninety (90) days' written notice after such period. Such negotiations shall be completed within ninety (90) days of the effective date of the Change in Law. If ESI and Sponsor cannot agree to a mutually acceptable modification of the pricing terms within such ninety (90) day period, then either party may terminate this Agreement upon ninety (90) days' written notice after such period.

5.2. Transparency Reporting. At Sponsor's election, ESI shall timely file all information which to which ESI has access, on behalf of the Plan, with the appropriate governmental agencies and shall prepare any disclosures to participants necessary for the Plan to comply with Section 204 of division BB of the Consolidated Appropriations Act, 2021 and any implementing regulations. In accordance with applicable guidance, ESI will disclose on a public website required machine readable files in the form and manner required under ERISA section 715, and any implementing regulations or applicable guidance issued by the Departments of Health and Human Services, Labor and the Treasury.

5.3. For the purpose of ensuring Sponsor's Plan has the information necessary to evaluate Sponsor's Plan's compliance with the Mental Health Parity and Addiction Equity Act of 2008 and its implementing regulations, (the "MHP Act"), and to enable the Plan to respond to a regulatory inquiry regarding such compliance pursuant to Sec. 203 of Title II of Division BB of Consolidated Appropriations Act of 2021 (the "CAA)", and only where Sponsor has adopted a standard ESI Formulary and standard ESI utilization management package without any customization, ESI shall provide to Sponsor an analysis under the MHP Act's nonquantitative treatment limitation (NQTL) requirements of ESI's development and application of Sponsor's adopted standard Formulary, and standard utilization management package(s), and medical necessity guidelines and provide support for audits initiated by the U.S. Department of Labor, U.S. Department of Health and Human Services or the U.S. Department of Treasury. Such analyses can be provided by Sponsor to plan members (or their authorized reps) and the U.S. Department of Labor, U.S. Department of Health and Human Services or the U.S. Department of Treasury upon request, as required by the CAA and MHP Act .

ESI shall provide a comparative analysis in ESI's then-standard format:

a. Within thirty (30) days after Sponsor's request; or

b. as applicable, within one (1) business day of the due date of any regulatory inquiry under the CAA,.

ESI represents and warrants that the content and format of such analysis shall comply with the CAA and any applicable subsequently-issued guidance, provided, however, that ESI shall not be responsible for including information that is in the Sponsor's possession. If a regulatory agency identifies insufficiencies in the analysis or in compliance with the MHP Act or generally has questions on the analysis, ESI will reasonably cooperate with Sponsor's Plan to respond to and address such insufficiencies and respond to such questions within one (1) business day of the due date, provided that this timing shall not apply if ESI receives from Sponsor the inquiry more than one (1) business day after Sponsor's receipt of the regulatory agency's response or less than 14 business days prior to the due date. For the sake of clarity, the foregoing shall not relieve the Plan of its responsibility to comply with the MHP Act or Section 203 of the CAA. ESI's analysis shall be subject to ESI's then-current fee, if any, for preparing the analysis.

5.4. Fiduciary Acknowledgements. ESI offers pharmacy benefit management services, products and programs for consideration by all clients, including Sponsor. The general parameters of these products and the systems that support these products, have been developed by ESI as part of ESI's administration of its business as a PBM. The parties agree that they have negotiated the financial terms of this Agreement in an arm's-length fashion. Sponsor acknowledges and agrees that, except for the limited purpose set forth in Section 2.8, neither it nor the Plan intends for ESI to be a fiduciary (as defined under ERISA or state law) of the Plan, and, except for the limited purpose as set forth in Section 2.8, neither will name ESI or any of ESI's wholly-owned subsidiaries or affiliates as a "plan fiduciary." Sponsor further acknowledges and agrees that neither ESI nor any of ESI's wholly-owned subsidiaries or affiliates: (a) have any discretionary authority or control respecting management of the Plan's prescription benefit program, or (b) exercise any authority or control respecting management or disposition of the assets of the Plan or Sponsor. Sponsor further acknowledges that all such discretionary authority and control with respect to the management of the Plan and plan assets is retained by Sponsor or the Plan. Upon reasonable notice, ESI will have the right to terminate PBM Services to any Plan (or, if applicable, Members) located in a state requiring a pharmacy benefit manager to be a fiduciary to Sponsor, a Plan, or a Member in any capacity.

5.5. Disclosure of Certain Financial Matters. In addition to the Fees paid to ESI by Sponsor, ESI and ESI's wholly-owned subsidiaries or affiliates derive revenue in one or more of the ways as further described in the Financial Disclosure to ESI PBM Clients set forth in Exhibit D hereto ("Financial Disclosure"), as updated by ESI from time to time. The revenues described in the Financial Disclosure are not direct or indirect compensation to ESI from Sponsor for services rendered to Sponsor or the Plan under this Agreement. In negotiating any of the fees and revenues described in the Financial Disclosure or in this Agreement, ESI and ESI's wholly-owned subsidiaries and affiliates act on their own behalf, and not for the benefit of or as agents for Sponsor, Members or the Plan. ESI and ESI's wholly-owned subsidiaries and affiliates retain all proprietary rights and beneficial interest in such fees and revenues described in the Financial Disclosure and, accordingly, Sponsor acknowledges that neither it, any Member, nor the Plan, has a right to receive, or possesses any beneficial interest in, any such fees or revenues; provided, that ESI will pay Sponsor amounts equal to the amounts expressly set forth on Exhibit A. ESI shall provide to Sponsor all information in its care, custody or control regarding compensation paid to ESI hereunder for the provision of PBM services, which is required for Form 5500 reporting or compliance with ERISA Section 408(b)(2) and any regulations or official guidance promulgated thereunder or any other applicable provisions of ERISA.

6. TERM AND TERMINATION, DEFAULT, REMEDIES

6.1. Term. The Term of this Agreement will be as set forth in Exhibit A-1.

6.2. Termination.

a. Breach or Default. Either party may give the other written notice of a material, substantial and continuing breach of this Agreement. If the breaching party has not cured said breach within thirty (30) days from the date such notice was sent, this Agreement may be terminated at the option of the non-breaching party. If the amount of time commercially reasonable for the breach to be cured is longer than thirty (30) days, this Agreement may not be terminated by the non-breaching party pursuant to this provision until such commercially reasonable period of time has elapsed; provided, however, that in no event will such period exceed sixty (60) days.

b. Sponsor reserves the right to terminate this Agreement by providing ESI ninety (90) days' written notice in the event of a Change of Control, provided such right shall expire thirty (30) days after the Change of Control occurs. For purposes of this section, "Change of Control" means: (i) any transaction or series of transactions that cause 50% or more of the stock of the ESI or Sponsor to be held by individuals or entities who are not stockholders of the ESI or Sponsor on the date hereof; or (ii) any sale of ESI assets or that are essential to the business of ESI or Sponsor; or (iii) any merger where ESI or Sponsor is not a surviving entity.

c. Non-Payment. Notwithstanding anything to the contrary herein, ESI (and its wholly-owned subsidiaries) may terminate or suspend their performance hereunder and cease providing or authorizing provision of Covered Drugs to Members upon forty-eight (48) hours written notice if Sponsor fails to pay ESI. ESI will attempt collection through written and verbal communications with Sponsor prior to sending the notice described herein.

d. Obligations Upon Termination. Upon notice of termination of this Agreement, the parties will mutually develop a run-off plan providing for: (i) Sponsor notification to Members of the timing of any transition to a successor pharmacy benefit manager at least thirty (30) days prior to the effective date of such termination; (ii) ESI's provision of open ESI Mail Pharmacy refill files and standard claims data and PA files for transition to the successor pharmacy benefit manager in accordance with then existing industry protocol; and (iii) whether Sponsor elects for ESI to process Participating Pharmacy or Member Submitted Claims for prescriptions filled during the Term but filed with ESI after the effective date of termination ("Termination Date"). Sponsor will continue to pay ESI in accordance with this Agreement for any Fees for PBM Services provided during the term and any run-off period. ESI will continue filing for Rebates for claims incurred prior to the Termination Date and will, subject to final reconciliation of any outstanding amounts owed by Sponsor to ESI, pay Sponsor Rebates for such claims in accordance with the Rebate payment schedule set out herein. Notwithstanding anything in this Agreement to the contrary, ESI shall not be obligated to provide post-transition services following the transition to the successor pharmacy benefit manager and conclusion of the run-off period, including, but not limited to, the provision of continued data reporting, reporting, consultation, or analysis.

6.3. Remedies.

a. Remedies Not Exclusive. A party's right to terminate this Agreement under Section 6 will not be exclusive of any other remedies available to the terminating party under this Agreement or otherwise, at law or in equity.

b. Force Majeure. Neither party will lose any rights under this Agreement or be liable in any manner for any delay to perform its obligations under this Agreement that are beyond a party's reasonable control, including, without limitation, any delay or failure due to riots, earthquakes, storms, floods or other extreme weather conditions, fires, acts of terrorism, epidemics, embargoes, war or other outbreak of hostilities, government acts or regulations, the failure or inability of carriers, suppliers, or telecommunications providers to provide services necessary to enable a party to perform its obligations hereunder, or any other reason where failure to perform is beyond the party's reasonable control, and is not caused by the negligence, intentional conduct or misconduct of the defaulting party ("Force Majeure"). ESI represents that it maintains and continually updates a business continuity plan designed to mitigate any disruption to the services provided by ESI under this Agreement. If a party asserts Force Majeure as an excuse for failure to perform the party's obligation, then the nonperforming party must prove that the party took reasonable steps to minimize delay or damages caused by foreseeable events, that the party substantially fulfilled all non-excused obligations, and that the other party was timely notified of the likelihood or actual occurrence of an event described.

Limitation of Liability. Except for the indemnification obligations set forth in Section 6.3(d), each party's liability to the other hereunder will not exceed the actual proximate losses or damages caused by breach of this Agreement. In no event will either party or any of their respective affiliates, directors, employees or agents, be liable for any indirect, special, incidental, consequential, exemplary or punitive damages, or any damages for lost profits relating to a relationship with a third party, however caused or arising, whether or not they have been informed of the possibility of their occurrence. Notwithstanding the foregoing, nothing in this Section shall limit the ability of either party to obtain damages that fully compensate such party for actual losses, fines, penalties, claims reprocessing costs and reasonable attorney's fees or other costs or related to a breach of confidentiality or the Business Associate Addendum.

c. Indemnification.

i. In addition to any indemnification obligations set forth in the Business Associate Addendum and Data Security Addendum, ESI will indemnify and hold Sponsor, the Plan and other fiduciaries harmless from and against any loss, cost, damage, expense or other liability, including, without limitation, reasonable costs and attorney fees ("Costs") incurred in connection with any and all third party claims, suits, investigations or enforcement actions ("Claims") which may be asserted against, imposed upon or incurred by Sponsor and arising as a result of (A) ESI's negligent acts or omissions or willful misconduct (including those of the ESI Mail Pharmacy and ESI Specialty Pharmacy), or (B) ESI's breach of this Agreement.

ii. Sponsor will indemnify and hold ESI harmless from and against any Costs for Claims which may be asserted against, imposed upon or incurred by ESI and arising as a result of (A) Sponsor's negligent acts or omissions or willful misconduct, benefit design and coverage decisions, or breach of this Agreement, or (B) any improper use Sponsor, an Auditor or Vendor may make of PHI or ESI System access provided to such party.

iii. As a condition of indemnification, the party seeking indemnification will notify the indemnifying party in writing promptly upon learning of any Claim for which indemnification may be sought hereunder, and will tender the defense of such claim to the indemnifying party. Failure to notify the other party shall not result in the waiver of indemnity rights with respect to such claim, suit, action or proceeding unless such failure materially prejudices the ability of the indemnifying party to defend such claim, suit, action or proceeding. No party will be obligated to indemnify the other with respect to any claim settled without the written consent of the other.

d. Survival. The parties' rights and obligations under Sections 3, 4 and 5; and Sections 6.2(c), 6.3, 6.4, 7.2, 7.3, 7.4 and 7.6 will survive the termination of this Agreement

7. INSURANCE

7.1 ESI shall, at its sole cost, maintain no less than the following insurance in full force and effect during the term of this Agreement with Sponsor:

a. Workers' Compensation and Employer's Liability Insurance. ESI shall maintain Workers' Compensation and Employer's Liability Insurance of the state in which the services are to be performed.

b. Statutory benefits as required by the state where is the services are being performed;

c. Employer's Liability Insurance at a limit of not less than Five Hundred Thousand Dollars ($500,000) for all damages arising from each accident or occupational disease.

i. ESI that is a legally permitted and qualified self-insurer in the state in which services are to be performed, may furnish proof that it is such a self-insurer in lieu of submitting proof of insurance.

ii. The Employer's Liability limits must be in an amount not less than the amount for each accident included in the workers' compensation policy or separately obtained in those states that do not provide employer liability under the workers' compensation policy.

d. Commercial General Liability and Commercial Umbrella Liability Insurance or Other Liability Insurance. Commercial General Liability or other liability insurance shall include but not be limited to the following coverages; Completed Operations; Product Liability; Contractual Liability; Personal Injury; and Property Damage; and Broad-Form Property Damage Endorsement. The limits of such liability insurance shall be no less than $10,000,000 per occurrence and in the aggregate per policy year.

e. Automobile Liability. Covering all owned, hired or non-owned vehicles, including the loading or unloading thereof, with limits no less than One Million Dollars ($1,000,000) combined single limit of liability for Automobile Bodily Injury, Personal Liability and Automobile Property Damage for each occurrence.

f. Fiduciary/ Crime. Limit of not less than $10,000,000 each occurrence and aggregate.

g. Privacy and network security coverage (cyber insurance) with limits of at least $15,000,000 per occurrence or aggregate, including, but not limited to, protection of private or confidential information whether electronic or non-electronic; network security and privacy liability; protection against liability arising out of ESI's failure to protect any information deemed confidential by any applicable or governing law, statute or regulation.

h. Professional Liability Insurance. Professional liability insurance with a limit of not less than $10,000,000 each occurrence and aggregate to provide coverage for claims arising out of the performance of professional services under this Agreement and caused by any error, omission, or negligent act for which ESI is held liable. ESI shall maintain this insurance for a minimum period of five (5) years after the completion of the Agreement.

7.2 Such insurance shall be carried with companies licensed to do business in the jurisdiction where the Services are to be performed.

7.3 Any insurance carrier providing such insurance must have at least an A- rating as defined by A. M. Best at the inception of each policy. ESI shall maintain this insurance at all times during performance of this Agreement. In addition, if insurance is written on a "claims-made" basis, such insurance shall be maintained by ESI for a minimum period of three (3) years after the completion or termination of the Agreement. ESI may elect to extend the discovery period under the existing policy for not less than three (3) years.

7.4 ESI shall have Sponsor named as an additional insured under the insurance policies required below (with the exception of the workers' compensation policy, Crime/Fidelity and any professional liability insurance), including any excess or umbrella policies. The coverage must be provided on a primary non-contributing basis and the limits will be exhausted before any other insurance is to apply.

7.5 ESI shall require all subcontractors to maintain appropriate levels of insurance based on the specific services being provided.

7.6 Each insurance policy required by this section shall contain a waiver of the right of subrogation, and shall be endorsed to provide for severability of interest, cross liability or cross suit protection, so that each insured is treated separately under the policy. The waiver of the right of subrogation shall also extend to parent companies, subsidiaries and affiliates of Sponsor and the officers, directors, agents, and employees of such entities. These provisions must survive expiration, termination or cancellation of this contract.

7.7 ESI shall provide evidence of the insurance policies listed above within thirty (30) days after signing this Agreement and will not be permitted to provide Services under this Agreement receives from ESI acceptable certificates of insurance. Such certificates shall state that the insurance carrier has issued the policies providing for the insurance specified herein, that such policies are in force, that Sponsor is an additional insured under the policies, that policies as required contain contractual liability coverage. For such time as insurance is required under this Agreement, ESI shall provide Sponsor with current certificates of insurance. At the request of Sponsor, ESI shall provide Sponsor with endorsements required under this section. ESI shall provide a 30-day notice of cancellation of any of the required insurance programs if any insurance policy(ies) is(are) cancelled or non-renewed and not immediately replaced by a substantially similar insurance program without a disruption in coverage while continuing to meet the requirements herein.

7.8 FAILURE TO MAINTAIN THE INSURANCE COVERAGE PROVIDED HEREIN THROUGHOUT THE LIFE OF THIS AGREEMENT SHALL CONSTITUTE A MATERIAL BREACH OF THE AGREEMENT.

8. MISCELLANEOUS

8.1 Notice. Any notice or document required or permitted to be delivered pursuant to this Agreement must be in writing and properly addressed to the other party at the address set forth below, or at such other address as such party will specify from time to time by written notice delivered in accordance herewith:

Express Scripts, Inc.
Attn: Senior Vice President of Account Management
One Express Way
St. Louis, Missouri 63121
With copy to: Legal Department

Disney Worldwide Services
500 South Buena Vista Street
Burbank, CA 91521

8.2 Independent Parties. No provision of this Agreement is intended to create or will be construed to create any relationship between ESI and Sponsor other than that of independent entities contracting with each other solely for the purpose of effecting the provisions of this Agreement. Neither party, nor any of their respective representatives, will be construed to be the partner, agent, fiduciary, employee, or representative of the other and neither party will have the right to make any representations concerning the duties, obligations or services of the other except as consistent with the express terms of this Agreement or as otherwise authorized in writing by the party about which such representation is asserted.

8.3 Integration; Amendments. This Agreement and any Exhibits hereto constitute the entire understanding of the parties hereto and supersedes any prior oral or written communication between the parties with respect to the subject matter hereof. No modification, alteration, or waiver of any term, covenant, or condition of this Agreement will be valid unless in writing and signed by the parties or the agents of the parties who are authorized in writing, except as may be otherwise permitted pursuant to the terms and conditions of this Agreement or any Exhibit hereto.

8.4 Choice of Law. This Agreement will be construed and governed in all respects according to the laws in the State of California, without regard to the rules of conflict of laws thereof.

8.5 Waiver. The failure of either party to insist upon the strict observation or performance of this Agreement or to exercise any right or remedy will not be construed as a waiver of any subsequent breach of this Agreement or impair or waive any available right or remedy.

8.6 Trademarks. Sponsor acknowledges ESI's sole and exclusive ownership of its trade names, commercial symbols, trademarks, and servicemarks, whether presently existing or later established (collectively "Marks"). Sponsor shall not use ESI's Marks in advertising or promotional materials or otherwise without ESI's prior written consent.

8.7 Name Prohibition. ESI, by virtue of this Agreement, shall acquire no right to use, and shall not use, the name "Disney", "ABC", "ESPN", "Buena Vista", "Touchstone", "Hollywood Pictures", "Miramax" or any other name associated with Disney or its Affiliates (either alone or in conjunction with or as a part of any other word or name), titles released under any of the foregoing, or any fanciful character, design, trademark, trade name, title or copyrighted work of Disney or its Affiliates: (a) in any advertising, publicity or other disclosures; (b) to express or to imply any endorsement of ESI's Work Product or Services; or (c) for any other purpose or in any other manner, except only as necessary for Vendor to properly perform under this Agreement. The provisions of this Section shall survive the expiration or earlier termination of this Agreement indefinitely.

8.8 Taxes and Assessments. Any federal government or any state, province, or other governmental body that assesses a tax not preempted by ERISA against ESI or the Plan with respect to any service or item dispensed under the Plan or this Agreement, shall be Sponsor or Member's responsibility. In no event shall Sponsor be liable for any taxes, license fees, or other amounts levied against ESI which relate to ESI's normal business operations, including, but not limited to, excise taxes resulting from the conduct of ESI's business operations, income taxes, gross receipts taxes, and state licensing fees for third party administrators and utilization review firms.

8.9 Accuracy of All Materials - ESI covenants that all enrollment, communication, financial, and other materials distributed to Members by ESI or provided to Sponsor by ESI are accurate in all material respects. Sponsor covenants that all enrollment, communication, financial and other information, or Data provided to ESI are accurate in all material respects.

8.10 Independent Contractor - The relationship between ESI and Sponsor will solely be that of independent contractors engaged in the operation of their own respective businesses.

8.11 Assignment - This Agreement may not be assigned by any party without the written approval of the other parties provided, however, that services to be performed by ESI hereunder may be performed by its subsidiaries, affiliates, divisions and/or subcontractor; provided, however, no substantially material service will be performed by a subcontractor without written notice to Sponsor. ESI is responsible and liable for the performance of its subsidiaries, affiliates, divisions and/or subcontractor in the course of their performance of any such service.

8.12 No Third-Party Beneficiary - This Agreement has been entered into solely for the benefit of Sponsor and ESI, and is not intended to create any legal, equitable, or beneficial interest in any third party or to vest in any third party any interest as to enforcement or performance.

8.13 Applicable Laws and Professional Judgment - The dispensing of any medication under this Agreement shall be made consistent with the Laws of the applicable jurisdiction and the professional judgment of the Prescriber and dispensing pharmacist. In the event any medication cannot be dispensed under the Mail Service Pharmacy program due to FDA or manufacturer requirements, such medication shall be excluded from dispensing through ESI's Mail Service Pharmacy, but may be dispensed through the Participating Pharmacies.

8.14 Enforceability - The invalidity or unenforceability of any of the terms or provisions hereof will not affect the validity or enforceability of any other term or provision.

8.15 Section Headings - Section headings are inserted for convenience only and will not be used in any way to construe the terms of this Agreement.

8.16 Waiver - The waiver of any breach or violation of any term or provision hereof will not constitute a waiver of any subsequent breach or violation of the same or any other term or provision.

8.17 Approvals - Whenever approval of any party is required under this Agreement, such approval will not be unreasonably withheld.

8.18 Entire Agreement - This Agreement, together with the Exhibits hereto, embodies the entire understanding of the parties in relation to the subject matter hereof, supersedes any prior agreement among the parties in relation to the subject matter hereof, and no other agreement, understanding, or representation, verbal or otherwise, relative to the subject matter hereof exists among the parties at the time of execution of this Agreement.

8.19 Organization - Each party is duly organized, validly existing and in good standing, and has the power to own its property and to carry on its business as now being conducted by it.

8.20 Authorization - The execution and delivery of this Agreement and the consummation of the transactions contemplated herein on its part, has been duly authorized by all necessary action by each party.

8.21 No Conflict of Interest or Other Restrictions - No party has a conflict of interest which would impact its ability to perform fairly its obligations under this Agreement, and no party is subject to any restrictions, contractual or otherwise, which prevent or would prevent it from entering into this Agreement or carrying out its obligations hereunder.

8.22 No Violation - Neither the execution and delivery of this Agreement nor the consummation of the transactions contemplated hereby will be a violation or default of any term or provision of the party's governance documents (e.g., its certificate of incorporation or by Laws or operating agreement) or of any material contract, commitment, indenture, or other agreement or restriction to which it is a party or by which it is bound.

8.23 Binding Effect - This Agreement has been duly executed and delivered by each party, and is a valid and binding obligation of each party, enforceable against such party in accordance with its terms, except to the extent that the enforceability thereof may be limited by applicable bankruptcy, insolvency, reorganization, moratorium or similar Laws affecting creditors' rights generally and general principles of equity.

8.24 Counterparts - This Agreement may be executed in one or more counterparts, any one of which need not contain the signatures of more than one party, but all counterparts taken together will constitute one instrument.

8.25 Public Announcement - Except as required by Law or regulation, neither party will make any public announcement nor issue any press release relating to this Agreement without the written consent of the other party. This provision does not restrict either party from submitting necessary or appropriate filings with the SEC.

8.26 Construction - Sponsor and ESI have participated jointly in the negotiation of this Agreement, and each has had the advice of legal counsel to review, comment upon, and draft this Agreement. Accordingly, it is agreed that no rule of construction shall apply against any party or in favor of any party, and any uncertainty or ambiguity shall not be interpreted against any one party and in favor of the other.

IN WITNESS WHEREOF, the undersigned have executed this Pharmacy Benefit Management Agreement as of the day and year below set forth.

EXPRESS SCRIPTS, INC.

By: DocuSigned by: David L. Brodsky 16F7F849646C443...

Printed Name: David L. Brodsky

Title: VP Commercial Division

Date: 06/30/2023 | 3:58 PM EDT

DISNEY WORLDWIDE SERVICES

By: DocuSigned by: Pascale Thomas 1D4746487FF449D...

Printed Name: Pascale Thomas

Title: Vice President, Employee Benefits

Federal ID Number: 95-4245682

Date: 06/30/2023 | 2:36 PM PDT

EXHIBIT A

PRICING TERMS AND PHARMACY PROGRAM FEES

Exhibit A-1
Billing, Payment, and Miscellaneous Pricing Terms

Exhibit A-2
Claims Reimbursement Rates

Exhibit A-3
Rebates

Exhibit A-4
Administrative Services and Clinical Program Fees

Exhibit A-5
Inflation Protection Program

Exhibit A-1

Term, Billing, Payment, and Miscellaneous Pricing Terms

1. **Term**. This Agreement will commence as of January 1, 2022 and will continue for a period of three (3) years ("Initial Term"). The Initial Term plus any renewal terms will be known as the Term ("Term"). Thereafter, this Agreement will automatically renew with the same terms and conditions as set forth herein for successive one (1) year renewal terms, subject to the right of termination as otherwise provided herein. Not less than ninety (90) days prior to the end of the Initial Term or any renewal term of this Agreement either party may notify the other party in writing that it desires to terminate this Agreement effective as of the end of the then current term. Notwithstanding the termination of this Agreement, ESI agrees to continue to render services hereunder and Sponsor agrees to pay for services of ESI in accordance with the terms of this Agreement for any Claims incurred for Prescription drug benefits by Members while this Agreement was in force.

   a. In the event of a material breach of this Agreement, the party alleging such breach will give written notice thereof to the other parties. If such breach is not cured within sixty (60) days of receipt of such notice, the non-breaching party may terminate this Agreement upon written notice to the other party.

   b. Sponsor reserves the right to terminate this Agreement at any time during any Term by providing ESI ninety (90) days' written notice in the event of a Change of Control, provided such right shall expire thirty (30) days after the Change of Control occurs. For purposes of this section, "Change of Control" means: (i) any transaction or series of transactions that cause 50% or more of the stock of the ESI or Sponsor to be held by individuals or entities who are not stockholders of the ESI or Sponsor on the date hereof; or (ii) any sale of ESI assets or that are essential to the business of ESI or Sponsor; or (iii) any merger where ESI or Sponsor is not a surviving entity.

   c. Termination Without Cause. Following the initial twelve (12) months of this Agreement (but not before), either party may terminate this Agreement for any reason or for no reason upon ninety (90) days prior written notice of such termination to the other party.

2. **Billing and Payment.**

   a. Billing. ESI will invoice Sponsor: (i) biweekly for Claims Reimbursements; and (ii) on a monthly basis for the Administrative Fees. If Sponsor disputes any portion of any invoice, Sponsor shall notify ESI, in writing, of the specific amount and reason for such dispute. ESI and Sponsor shall work together, in good faith, to resolve any such dispute after ESI's receipt of such notice.

   b. Payment. Sponsor will pay ESI by wire, ACH transfer or pre-authorized debit within two (2) Business Days from the date of Sponsor's receipt of each ESI invoice. Sponsor will be responsible for all costs of collection, and agrees to reimburse ESI for such costs and expenses, including reasonable attorneys' fees. All amounts not paid by the due date thereof will bear interest at the rate of 1.5% per month or, if lower, the highest interest rate permitted by law. ESI may apply amounts otherwise owed to Sponsor against any unpaid Fees.

3. **Pharmacy Management Fund ("PMF")**

   a. ESI will provide up to $3,000,000 (Flat Amount) implemented as of the Effective Date to reimburse the actual, fair market value of: (i) expense items and services related to transitioning, administering, and implementing the pharmacy benefit initially and throughout the term, such as, custom ID Cards, IT programming, custom formulary letters, member communications, and benefit set-up quality assurance; and/or (ii) mutually agreed upon expense items and services related to implementation of additional clinical or other similar programs provided by ESI throughout the Term; in either case subject to submission of adequate documentation to support reimbursement within 180 days of incurring the applicable expense. Both Sponsor and ESI (upon agreement from Sponsor) may use the PMF to cover the fair market value of expenses for projects requiring joint resources. All reimbursement under the PMF is subject to ESI's standard PMF business practices for all clients. Any unused PMF dollars from the contract period January 1, 2022 through December 31, 2024 will roll over to the contract period January 1, 2025 – December 31, 2027, solely for the use of purchasing Health Connect 360. Additionally, any unused PMF dollars from the parties' prior contract period (January 1, 2019 through December 31, 2021) will remain available until December 31, 2024, solely for reimbursement of fees for Health Connect 360.

b. Sponsor confirms that: (i) it will only request reimbursement under the PMF for its actual expenses incurred in transitioning, administering, and implementing the pharmacy benefit managed by ESI hereunder, and/or the additional clinical or other similar program provided by ESI throughout the Term; (ii) that the applicable service, item or program was actually performed or provided; (iii) the amount of the reimbursement is equal to or less than the reasonable fair market value of the actual expenses incurred by Sponsor; (iv) it will notify and disclose the amount and the terms of any PMF reimbursements to Members and other third parties to the extent required by applicable laws and regulations. In addition, if the Sponsor and the Plan are subject to ERISA, Sponsor represents and warrants that it will only request reimbursement under the PMF for items or services for which Sponsor, in the absence of the PMF, would be allowed reimbursement from the Plan (i.e., not "settlor functions").

c. Sponsor shall comply with all applicable federal and state requirements, including, but not limited to, all applicable federal and state reporting requirements with respect to any expense, item or service reimbursed under this section. Upon request by ESI, Sponsor shall provide reasonable documentation regarding a PMF-reimbursed expenditure sufficient to verify that the expenditure complies with requirements set forth in this section.

d. ESI intends to amortize the PMF over the Initial Term of the Agreement on a straight-line basis. In the event of a termination of this Agreement for any reason other than ESI's uncured material breach prior to the expiration of the Initial Term, Sponsor will reimburse ESI an amount equal to any paid but unamortized portion of the PMF. Reimbursement to ESI by Sponsor pursuant to this Section will not be in lieu of any other rights or remedies ESI may have in connection with the termination of this Agreement, including monetary or other damages. PMF reimbursements shall not be paid prior to the Effective Date of this Agreement and are not payable until this Agreement is executed. Sponsor will have no right to interest on, or the time value of, any PMF, and unused funds shall be retained by ESI.

4. **Market Check**. Sponsor shall be permitted to perform a market check of the program pricing terms of this Agreement (the "Market Check"). The Market Check will compare the aggregate value of the Sponsor's program pricing terms, and all other contractual terms with a financial impact, such as performance guarantees, using twelve (12) months of ESI historical data, with the aggregate value of pricing terms then currently available in the market for similar services and for individual companies of similar size and plan designs and drug utilization to Sponsor, in the aggregate, for a contract term that is equal to the remainder of the current contract term and which contains the same annual market check and early termination provisions. On an annual basis, Sponsor or its designee may provide ESI with a written comparison (the "Report"), prepared by an independent pharmacy benefit management consultant, for pharmacy benefit management services offered by a third party PBM provider which includes and takes into account similar plan design, formulary exclusions, clinical and trend programs, retail pharmacy, mail pharmacy, and specialty pharmacy mix and utilization, size, demographics, and other relevant factors necessary to provide an appropriate comparison ("Sponsor's Current Market Price"). In evaluating whether Sponsor's Current Market Price is comparable to pricing ESI offers Sponsor under the terms of this Agreement, ESI will validate that, at a minimum, price points used in determining Sponsor's Current Market Price were selected from benchmark plans that satisfy the comparable Sponsor Current Market Price factors listed herein. Sponsor's Current Market Price shall be evaluated on the basis of a total, aggregate comparison of the pricing terms offered by a single vendor to a single plan, and not on the basis of individual or best price points available from multiple vendors to a single plan or a single vendor to multiple plans. A copy Sponsor's Current Market Price analysis prepared by the consultant will be submitted to both Sponsor and to ESI. The consultant will also provide a reasonably detailed description of the methods and assumptions used in the analysis including the methods and assumptions related to the calculation of the individual pricing components and the Net Plan Costs, as defined below. ESI will provide its comments to the Report to Sponsor and the Sponsor's consultant within fifteen (15) Business Days of receipt a format specified by ESI, Sponsor, or its designee, shall provide any information necessary for

ESI to validate Sponsor's compliance with the terms of this Section including, but not limited to, relevant details about any benchmark plans Sponsor relied upon in selecting any price point(s)/financial guarantees used to determine Sponsor's Current Market Price or Net Plan Cost. If the parties agree that the comparison analysis concludes that Sponsor's Current Market Price would yield an annual one percent (1%) or more savings of "Net Plan Costs" (with Net Plan Costs defined as the sum of the cost of Covered Drugs, dispensing fees, and claims Administrative Fees, less Rebates received by Sponsor) under the Agreement, then the parties shall negotiate in good faith a modification of the pricing terms herein.

The revised pricing terms will become effective on the first day of the contract year following the issuance of the report or sixty (60) days following a fully executed amendment or agreement memorializing the revised pricing terms, whichever is later. The market check shall be at Sponsor's expense, except that ESI shall be responsible for its costs related to responding to the market check.

5. **Pricing Conditions**. In the event one or more of the following occurs (whether between the date of the proposal and the Effective Date, or during the Term), ESI will have the right, upon notice, to make an equitable adjustment to the rates, Administrative Fees and/or Rebates, solely as necessary to return ESI to its contracted economic position as of the effective date of such event:

   a. Sponsor's Membership falls below 129,000 Members;

   b. Sponsor has Members enrolled in a 100% co-payment plan (plans where Sponsor has no liability for the payment of pharmacy claims);

   c. There is a material change (defined as 15% or more) in the demographics of Sponsor's Membership, or in the Sponsor's pharmacy or drug mix, compared to data provided by Sponsor;

   d. There is a material change to the manner in which AWP is calculated or reported for Brand Drugs and/or Generic Drugs.

   Further, if ESI's ability to provide the financial terms herein are adversely affected due to Brand Drugs moving off-patent to generic status, due to another action by a manufacturer, due to any other industry or market condition, or due to a Change in Law, an appropriate adjustment will be made to the reimbursement rates, financial guarantees, Administrative Fees, and/or Rebates hereunder.

Exhibit A-2

Claims Reimbursement Rates

Sponsor will pay to ESI for each Prescription Drug Claim dispensed or processed pursuant to the terms of this Agreement. Sales or excise tax or other governmental surcharge, if any, will be the responsibility of Sponsor.

1. **BASE ADMINISTRATIVE FEES.**

1.1. Sponsor will pay ESI the following base Administrative Fees on all claims processed by ESI under this Agreement. These shall be in addition to any other Administrative Fees set forth in this Agreement.

Per Prescription Drug Claim
See pricing tables below

2. **PARTICIPATING PHARMACY AND ESI MAIL PHARMACY AVERAGE AGGREGATE ANNUAL INGREDIENT COST AND PASS-THROUGH DISPENSING FEE GUARANTEES (DOES NOT APPLY TO SPECIALTY PRODUCTS).**

2.1. **Participating Pharmacy Commercial Ingredient Cost and Dispensing Fee**

a. **ESI National Plus Network**

National Plus Network Smart90 Walgreens (Voluntary)		1-83 Days' Supply	84-90 Days' Supply
Brand Drug	Admin. Fees/Rx	$0.50	$0.50
	Average Annual Ingredient Cost Guarantee	Year 1:AWP-19.25% Year 2:AWP-19.35% Year 3:AWP-19.45%	AWP-25.00%
	Dispensing Fee/Rx Guarantee	Year 1: $0.55 Year 2: $0.50 Year 3: $0.45	$0.00
Generic Drug	Admin. Fees/Rx	$0.50	$0.50
	Average Annual Ingredient Cost Guarantee	Year 1:AWP-85.00% Year 2:AWP-85.10% Year 3:AWP-85.20%	Year 1:AWP-86.50% Year 2:AWP-86.60% Year 3:AWP-86.70%
	Dispensing Fee/Rx Guarantee	Year 1: $0.55 Year 2: $0.50 Year 3: $0.45	$0.00

2.2. **ESI Mail Pharmacy Ingredient Cost and Dispensing Fee**

a. **Commercial Ingredient Cost and Dispensing Fee**

ESI Mail Pharmacy		
Brand Drug	Admin. Fees/Rx	$0.00
	Average Annual Ingredient Cost Guarantee	Year 1:AWP-25.00% Year 2:AWP-25.10% Year 3:AWP-25.20%
	Dispensing Fee/Rx Guarantee[1]	$0.00
Generic Drug	Admin. Fees/Rx	$0.00
	Average Annual Ingredient Cost Guarantee	Year 1:AWP-88.00% Year 2:AWP-88.10% Year 3:AWP-88.20%
	Dispensing Fee/Rx Guarantee[1]	$0.00

[1]Dispensing fee guarantees are inclusive of shipping and handling. If carrier rates (i.e., U.S. mail and/or applicable commercial courier services) increase during the term of this Agreement, the dispensing fee guarantee will not be increased to reflect such increase(s).

On-Site Pharmacies.
Sponsor maintains three on-site pharmacies, Pharmacy for Living Well and Center for Living Well Pharmacy (2 locations), (the "On-Site Pharmacies"). Sponsor will pay ESI on a pass through pricing basis for Covered Drugs dispensed and submitted by the On-Site Pharmacies under the Retail Pharmacy Program, subject to the applicable Copayment amounts. Drug claims dispensed at the On-Site Pharmacies are not subject to the guarantees set forth in Exhibit A. Walgreens Smart90 Voluntary program will not apply to the on-site pharmacies.

3. **SPECIALTY PRODUCT PRICING**

3.1. Dispensing Fee for Specialty Products dispensed at Participating Pharmacy and ESI Specialty Pharmacy. There will be a dispensing fee/Rx of $0.55 for Year 1, $0.50 for Year 2, $0.45 for Year 3 for Specialty Products dispensed through Participating Pharmacies. There will be a dispensing fee of $0.00 for Specialty Products dispensed through ESI Specialty Pharmacy.

3.2. Average Annual Ingredient Cost and Dispensing Fee Guarantees. The following pricing guarantees shall apply to Specialty Products.

ESI Specialty Pharmacy[1]	
	Exclusive[2]
Average Annual Ingredient Cost Guarantee	Year 1:AWP-20.75% Year 2:AWP-21.00% Year 3:AWP-21.25%

[1]In addition to the general exclusions identified in this Agreement, all non-Specialty Products are excluded from this guarantee. All Exclusive or Limited Distribution Products are also excluded from this guarantee.

[2]This guarantee shall only apply to Plans for which the ESI Specialty Pharmacy is the exclusive pharmacy that may fill Specialty Products for Members, other than Exclusive or Limited Distribution Products not available at the ESI Specialty Pharmacy.

Participating Pharmacy[1]	
	Exclusive[2]
Average Annual Ingredient Cost Guarantee	Year 1:AWP-20.25% Year 2:AWP-20.50% Year 3:AWP-20.75%

[1]In addition to the general exclusions identified in this Agreement, all non-Specialty Products are excluded from this guarantee. All Exclusive or Limited Distribution Products are also excluded from this guarantee.
[2]The above guarantee shall only apply to Plans for which the ESI Specialty Pharmacy is the exclusive pharmacy that may fill Specialty Products for Members, other than Exclusive or Limited Distribution Products not available at the ESI Specialty Pharmacy.

Limited Distribution Guarantee (ESI Specialty Pharmacy)	
Average Annual Limited Distribution Guarantee	AWP-17.00%

New To Market Guarantee (ESI Specialty Pharmacy)	
Average Annual Limited Distribution Guarantee	AWP-15.50%

3.3. ASES. For Specialty Products needing an additional charge to cover costs of all ASES required to administer the Specialty Products, ESI or ESI Specialty Pharmacy will bill, at ESI's option, either the Sponsor's medical plan or the Sponsor directly at the following standard per diem and nursing fee rates set forth below, maintained and updated by ESI from time to time. If ESI elects to bill Sponsor's medical plan for ASES, Sponsor will work with ESI to coordinate the invoicing and payment of ASES through Sponsor's medical plan. If Sponsor's medical plan will not cover the cost of ASES billed through ESI or ESI Specialty Pharmacy, Sponsor shall be responsible for the costs of all ASES. Unless otherwise set forth in an agreement directly between ESI Specialty Pharmacy and Sponsor or a Plan, if a Specialty Product dispensed or ASES provided by ESI Specialty Pharmacy is billed to Sponsor or a Plan directly by ESI Specialty Pharmacy instead of being processed through ESI, Sponsor or Plan will timely pay ESI Specialty Pharmacy for such claim pursuant to the rates below and within thirty (30) days of Sponsor's, Plan's, or its designee's, receipt of such electronic or paper claim from ESI Specialty Pharmacy. ESI Specialty Pharmacy shall have 360 days from the date of service to submit such electronic or paper claim.

Therapeutic Class	Brand Name	Nursing & Per Diem
ALPHA 1 DEFICIENCY	All Alpha 1 Deficiency Drugs requiring Per Diem	\$55.00 / Infusion
ENZYME DEFICIENCY	All Enzyme Deficiency Drugs required Per Diem	\$60.00 / Infusion
IMMUNE DEFICIENCY	All Immune Deficiency Drugs requiring Per Diem	\$60.00 / Infusion

INFLAMMATORY CONDITIONS	Remicade, Renflexis, Inflectra	$60.00 / Infusion
MISCELLANEOUS SPECIALTY CONDITIONS	Soliris	$60.00 / Infusion
MISCELLANEOUS SPECIALTY CONDITIONS	Duopa	$65.00 / Day
PAH	Tyvaso	$30.00 / Day
PAH	Flolan , Veletri, Epoprostenol Sodium (generic-Flolan/Veletri), Remodulin, Treprostenol Sodium (generic-Remodulin).	$65.00 / Day
PAH	Ventavis	$65.00 / Day
Cystic Fibrosis	Cayston (Replacement Nebulizer)	$975.00
Nursing Rates	All drugs / therapies requiring nursing	$150.00 per Initial Visit up to two (2) hours / $75.00 per additional hour or a fraction thereof

4. **COMPOUND PRESCRIPTION DRUG PRICING.**

	ALL YEARS
Compound Prescriptions (not listed elsewhere)	Pass-Through

5. **GENERAL PRICING TERMS**. The following terms are applicable to all pricing terms set forth in this Agreement.

5.1. Calculation of Ingredient Cost Guarantees. ESI will guarantee an average aggregate annual discounts to Sponsor to be calculated as follows:

[1-(total discounted AWP ingredient cost excluding dispensing fees and ancillary charges, and prior to application of Copayments) of applicable Prescription Drug Claims for the annual period divided by total undiscounted AWP ingredient cost (both amounts will be calculated as of the date of adjudication) for the annual period)]. Discounted ingredient cost will be the lesser of MRA (as applicable), U&C or AWP discount.

5.2. Calculation of Dispensing Fee Guarantees. ESI will guarantee an average aggregate annual per Prescription Drug Claim dispensing fee to Sponsor to be calculated as follows:

[total dispensing fee of applicable claims for the annual period divided by total claims for the annual period].

5.3. All-In Guarantees. Notwithstanding anything herein to the contrary: (i) a Prescription Drug Claim that processes as a Brand Drug at adjudication shall be reconciled as part of the Brand Drug guarantee; and (ii) a Prescription Drug Claim that processes as a Generic Drug at the time of adjudication shall be reconciled as part of the Generic Drug guarantee. The only Prescription Drug Claims that shall be excluded from the reconciliation of the pricing guarantees are as identified in the "Exclusions" section. All other Prescription Drug Claims shall be included in the reconciliation of the guarantees. The application of brand and generic pricing below may be subject to certain "dispensed as written" (DAW) protocols and Sponsor or Plan defined plan design and coverage policies for adjudication and Member Copayment purposes.

5.4. Guarantee Reconciliation Period. The ingredient cost and dispensing fee guarantees under this Agreement will be measured and reconciled on an annual basis within ninety (90) days and for Specialty Product guarantee (90) days of the end of each contract year. ESI will pay the shortfall, if any, between Sponsor's net cost and the applicable guarantee. The guarantees are annual guarantees - if this Agreement is terminated prior to the completion of the then current contract year (hereinafter, a "Partial Contract Year"), then the guarantees will not apply for such Partial Contract Year. To the extent Sponsor changes its benefit design or Formulary during the term of the Agreement, the guarantee will be equitably adjusted if there is a material impact on the discount achieved. Subject to the remaining terms of this Agreement, ESI will pay the difference attributable to any shortfall between the actual result and the guaranteed result; provided, however, that ESI may use an excess achieved in one or more of the guarantees within a channel (with the channels being retail and mail, Specialty Products will be included in the channel from which they were dispensed) under this Agreement to make up for, and offset, a shortfall in any other guarantee within the same channel, excluding any Rebate guarantees, which will be reconciled and offset only against other Rebate guarantees.

5.5. Exclusions. The following will be excluded from all ingredient cost and dispensing fee guarantees under this Agreement: Specialty Products (other than specialty guarantee, if any), coordination of benefit claims, no bill/no remit, Claims through 340B pharmacies, Subrogation Claims, claims dispensed from an on-site or Sponsor or Plan owned pharmacy, Member Submitted Claims, Compound Prescription, OTCs, vaccines, and Biosimilar Drugs. Claims where pharmacy reimbursement is determined by law, not ESI's contract with the provider will be excluded from dispensing fee guarantees only.* *Additionally, ESI will retrospectively invoice Sponsor for the difference between Sponsor's contracted dispensing fee and any state mandated pharmacy dispensing fee resulting from claims incurred in any state that mandates the use of NADAC or another pricing benchmarks in pharmacy reimbursement.

5.6. Adjudication Rates. If no adjudication rates are specified herein, individual claims dispensed at Participating Pharmacies will be billed on a Pass-Through basis. Claims dispensed at ESI Mail Pharmacy will be adjudicated to Sponsor at the applicable ingredient cost, and will be reconciled to the applicable guarantee as set forth herein.

5.7. Conditions Applicable to Extended Days' Supply Pricing. The Extended Days' Supply pricing set forth in this Agreement shall be subject to certain requirements, as set forth in this Section. Extended Days' Supply shall mean; for all lines of business other than Medicare or EGWP, any supply of a Covered Drug of 84 days.

a. Walgreens Smart90 (Voluntary). Certain Participating Pharmacies have agreed to participate, together with the ESI Mail Pharmacy, in the ESI "Smart90 Walgreens Network" extended 84-90 days' supply network for maintenance drugs (such Participating Pharmacies and the ESI Mail Pharmacy are hereinafter collectively referred to as "ESI's Smart90 Walgreens Network"). Pricing in the 84-90 days' supply column set forth in this Agreement is applicable only to fill such extended days' supply at either the ESI Mail Pharmacy or a Participating Pharmacy in the ESI Smart90 Walgreens Network (i.e., Sponsor must implement a plan design whereby Members who fill an extended 84-90 days' supply at a Participating Pharmacy other than an ESI Smart90 Walgreens Network Participating Pharmacy do not receive benefit coverage under the Plan for such prescription). If no such plan design is implemented, the pricing for such days' supply will be the same as for Prescription Drug Claims for less than an 84 days' supply, and pricing for an 84-90 days' supply as set forth in this Agreement shall not apply, even if an ESI Smart90 Walgreens Network Participating Pharmacy is used. The co-payment amount must also be level between the ESI Smart90 Walgreens Network and the ESI Mail Pharmacy, and the co-payment for 84-90 days' supply cannot exceed 2.5 times the co-payment for less than 83 day retail days' supply. For coinsurance/percentage co-payments, co-payments could be different at ESI Smart90 Walgreens Network Participating Pharmacy vs. ESI Mail Pharmacy. If a regulatory body enacts a law, regulation, or other guidance that prohibits the Walgreens Smart90 Program, ESI will adjust Sponsor's rates accordingly.

b. Walgreens Smart90 (Exclusive)
Certain Participating Pharmacies have agreed to participate, together with the ESI Mail Pharmacy, in the ESI "Smart90" extended 84-90 days' supply network for maintenance drugs (such Participating Pharmacies and the ESI Mail Pharmacy are hereinafter collectively referred to as "ESI's Smart90 Network"). Pricing in the 84-90 days' supply column set forth in this Agreement is applicable only if Sponsor implements a plan design that requires Members: (i) to fill maintenance drugs (based on ESI's standard list of identified maintenance drugs) in extended 84-90 days' supply quantities only (i.e., no 30 day fills except for initial courtesy fill(s)); and (ii) to fill such extended days' supply at either the ESI Mail Pharmacy or a Participating

Pharmacy in the ESI Smart90 Network (i.e., Sponsor must implement a plan design whereby Members who fill maintenance drugs for less than an extended 84-90 days' supply or who fill an extended 84-90 days' supply at a Participating Pharmacy other than an ESI's Smart90 Network Participating Pharmacy do not receive benefit coverage under the Plan for such prescription). If no such plan design is implemented, the pricing for such days' supply will be the same as for Prescription Drug Claims for less than an 84 days' supply, and pricing for an 84-90 days' supply as set forth in this Agreement shall not apply, even if an ESI Smart90 Network Participating Pharmacy is used. The co-payment amount must also be level between the ESI Smart90 Network and the ESI Mail Pharmacy. For coinsurance/percentage co-payments, co-payments could be different at ESI Smart90 Network Participating Pharmacy vs. ESI Mail Pharmacy. If a regulatory body enacts a law, regulation, or other guidance that prohibits the Smart90 Program, ESI will adjust Sponsor's rates accordingly.

6. **VACCINE CLAIMS (NO VACCINE CLAIMS WILL BE INCLUDED IN ANY PRICING OR REBATE GUARANTEE SET FORTH IN THE AGREEMENT).**

6.1. General Terms applicable to Vaccine Claims

a. "Vaccine Claim" means a claim for a Covered Drug which is a vaccine.

b. "Vaccine Vendor Transaction Fee" means the data interchange fee that ESI is charged by its third party vendor to convert Vaccine Claims submitted electronically by physicians to NCPDP 5.1 format in order for ESI to process the claim.

c. Vaccine Claims shall adjudicate at the lower of U&C or the amounts shown in the table below. In the case of Vaccine Claims, the U&C shall be the retail price charged by a Participating Pharmacy for the particular vaccine, including administration and dispensing fees, in a cash transaction on the date the vaccine is dispensed as reported to ESI by the Participating Pharmacy.

d. The Vaccine Administration Fee for Vaccine Claims for Members enrolled in Sponsor's Medicaid programs, if any, will be capped at the maximum reimbursable amount under the state Medicaid program in which the Member is enrolled.

e. All Vaccine Claims will be subject to any Administrative Fees set forth in the Agreement.

f. Vaccine Claims will be charged a program fee of $2.50 per Vaccine Claim (except for Medicare Part D covered Vaccine Claims, if applicable). The Vaccine Program Fee will be billed separately to Sponsor as part of the administrative invoice according to the billing frequency set forth in this Agreement.

6.2. Commercial (Including Medicaid and Exchange, if applicable)

	Participating Pharmacy INFLUENZA	**Participating Pharmacy COVID19[1]**	**Participating Pharmacy ALL OTHER VACCINES**	**Member Submitted Vaccine Claims (excluding foreign claims)**
Vaccine Administration Fee	Pass-Through (capped at $15 per vaccine claim)	Pass-Through	Pass-Through (capped at $20 per vaccine claim)	Submitted amount
Ingredient Cost	Participating Pharmacy Ingredient Cost as set forth in the Agreement	Pass-Through[2]	Participating Pharmacy Ingredient Cost as set forth in the Agreement	Submitted amount
Dispensing Fee	Participating Pharmacy Dispensing Fee as set forth in the Agreement	Pass-Through	Participating Pharmacy Dispensing Fee as set forth in the Agreement	Submitted amount

Administrative Fee/Vaccine Claim	Administrative Fee per Prescription Drug Claim as set forth in the Agreement	Administrative Fee per Prescription Drug Claim (plus manual claim administrative fee) as set forth in the Agreement
Vaccine Program Fee	$2.50 per vaccine claim	N/A

[1]Notwithstanding anything in the Agreement to the contrary, claims for COVID19 vaccines will be excluded from all pricing and rebate guarantees.
[2]Not applicable for claims paid for by Federal funding during public health emergency.

7. **<u>Surplus Value Guarantee</u>.** Following reconciliation of all discount, dispensing fee, or rebate guarantees, on an annual basis, ESI will calculate the value of any over-performance of any discount, dispensing fee, or rebate guarantee set forth in the Agreement and will guarantee that the annual, aggregate over-performance of the aforementioned guarantees will equate to a minimum of $2,000,000. The measurement will be performed no later than 240 days following the end of the applicable measurement period. Each individual guarantee's over-performance shall be aggregated with one another to calculate the value of the total Surplus Value Guarantee. To the extent that the value of the Surplus Value Guarantee is less than $2,000,000 Dollars, ESI will remit the difference to Sponsor within 90 days of the measurement. This Surplus Value Guarantee is conditioned on a Sponsor maintaining a minimum 129,000 Members throughout the calendar year.

Scenario 1 - No Surplus Guarantee - Illustrative Only

Guarantee	Guarantee	Actual	Overage/Shortfall ($)
Retail Brand Discount	18.00%	17.80%	$ (15,000)
Retail Generic Discount	80.00%	79.00%	$ (400,000)
Mail Brand Discount	24.00%	24.00%	$ -
Mail Generic Discount	85.00%	86.00%	$ 50,000
Retail Brand Dispensing Fee	$ 0.90	$ 0.88	$ 2,000
Retail Generic Dispensing Fee	$ 0.90	$ 0.85	$ 15,000
Mail Brand Dispensing Fee	$ -	$ -	$ -
Mail Generic Dispensing Fee	$ -	$ -	$ -
Retail Rebates	$ 110.00	$ 115.47	$ 2,000
Mail Rebates	$ 330.00	$ 352.24	$ 15,000
Specialty Rebates	$ 500.00	$ 841.20	$ 87,000
Specialty NED	17.00%	17.24%	$ 4,000
Total Overage			***$ 175,000***
Paid Gurantee Shortfall			***$ 415,000***
Surplus Guarantee			***$ -***
Paid Surplus Guarantee			***$ -***
Pre-Reconciliation Cost			***$ 99,700,000***
Paid Gurantee Shortfall			***$ 415,000***
Paid Surplus Gtee			***$ -***
Post-Reconciliation Cost			***$ 99,285,000***

Scenario 2 - Surplus Guarantee - Illustrative Only

Guarantee	Guarantee	Actual	Overage/Shortfall ($)
Retail Brand Discount	18.00%	17.80%	$ (15,000)
Retail Generic Discount	80.00%	79.00%	$ (400,000)
Mail Brand Discount	24.00%	24.00%	$ -
Mail Generic Discount	85.00%	86.00%	$ 50,000
Retail Brand Dispensing Fee	$ 0.90	$ 0.88	$ 2,000
Retail Generic Dispensing Fee	$ 0.90	$ 0.85	$ 15,000
Mail Brand Dispensing Fee	$ -	$ -	$ -
Mail Generic Dispensing Fee	$ -	$ -	$ -
Retail Rebates	$ 110.00	$ 115.47	$ 2,000
Mail Rebates	$ 330.00	$ 352.24	$ 15,000
Specialty Rebates	$ 500.00	$ 841.20	$ 87,000
Specialty NED	17.00%	17.24%	$ 4,000
Total Overage			***$ 175,000***
Paid Gurantee Shortfall			***$ 415,000***
Surplus Guarantee			***$ 2,000,000***
Paid Surplus Guarantee			***$ 1,825,000***
Pre-Reconciliation Cost			***$ 99,700,000***
Paid Gurantee Shortfall			***$ 415,000***
Paid Surplus Gtee			***$ 1,825,000***
Post-Reconciliation Cost			***$ 97,460,000***

EXHIBIT A-3

Rebates

1. NON-SPECIALTY REBATE AMOUNTS

1.1. Subject to the conditions set forth in this Agreement, ESI will pay to Sponsor an amount equal to the greater of:

a. 100.00% of the Rebates and Manufacturer Administrative Fees received by ESI; or subject to Sponsor meeting the Plan design conditions identified in the table below, the following guaranteed amounts:

b. Commercial

Formulary:	**Basic Formulary**		
	Onsite Pharmacies & Participating Pharmacies		**ESI Mail Pharmacy**
Days' Supply	**1-83 Days' Supply**	**84-90 Days' Supply**	
Per Brand Drug Claim (non-Specialty Products)	Year 1: $180.00 Year 2: $190.00 Year 3: $200.00	Year 1: $467.50 Year 2: $495.00 Year 3: $508.75	Year 1: $510.00 Year 2: $540.00 Year 3: $555.00

NPF Open			
Formulary:	**National Preferred (NPF)**		
	Onsite Pharmacies & Participating Pharmacies		**ESI Mail Pharmacy**
Days' Supply	**1-83 Days' Supply**	**84-90 Days' Supply**	
Per Brand Drug Claim (non-Specialty Products)	Year 1: $250.00 Year 2: $255.00 Year 3: $260.00	Year 1: $420.00 Year 2: $480.00 Year 3: $520.00	Year 1: $700.00 Year 2: $710.00 Year 3: $740.00

NPF Closed			
Formulary:	**National Preferred (NPF)**		
	Onsite Pharmacies & Participating Pharmacies		**ESI Mail Pharmacy**
Days' Supply	**1-83 Days' Supply**	**84-90 Days' Supply**	
Per Brand Drug Claim (non-Specialty Products)	Year 1: $325.00 Year 2: $330.00 Year 3: $335.00	Year 1: $685.00 Year 2: $750.00 Year 3: $770.00	Year 1: $820.00 Year 2: $840.00 Year 3: $860.00

1.2. REBATE PAYMENT TERMS

a. Subject to the conditions set forth herein, ESI shall pay Sponsor the percentage amount set forth above during each calendar quarter hereunder within ninety (90) days following the end of such calendar quarter.

b. On an annual basis, ESI shall reconcile the guaranteed amounts set forth above (against the percentage amount paid to Sponsor quarterly including any amounts applied at the point of sale) within one hundred eighty (180) days following the end of each contract year and shall credit Sponsor for any deficit on the next invoice immediately following the reconciliation. If, upon reconciliation, the annual aggregate percentage amount paid to Sponsor for the contract year is greater than the guaranteed aggregate amounts, ESI shall be entitled to make up for, and offset, a shortfall in other Rebate guarantee(s) set forth in this offer with such excess annual aggregate percentage amount, and such excess amount shall be applied either directly to the other shortfall guarantee(s) or applied as a credit against future Rebate payments and Manufacturer Administrative Fee payments (or as a direct invoice amount to be paid by Sponsor, if a credit is not feasible).

2. SPECIALTY REBATE AMOUNTS

2.1. Subject to the conditions set forth in this Agreement, ESI will pay to Sponsor an amount equal to the greater of:

a. 100.00% of the Rebates and Manufacturer Administrative Fees received by ESI; or subject to Sponsor meeting the Plan design conditions identified in the table below, the following guaranteed amounts:

b. Commercial

Formulary:	**Basic Formulary**	
	Participating Pharmacies	**ESI Specialty Pharmacy**
Per Brand Drug Claim (Specialty Products)	Year 1: \$200.00 Year 2: \$250.00 Year 3: \$350.00	Year 1: \$2,250.00 Year 2: \$2,770.00 Year 3: \$3,320.00

	NPF Open	
Formulary:	**National Preferred (NPF)**	
	Participating Pharmacies	**ESI Specialty Pharmacy**
Per Brand Drug Claim (Specialty Products)	Year 1: \$295.00 Year 2: \$340.00 Year 3: \$396.00	Year 1: \$2,650.00 Year 2: \$3,350.00 Year 3: \$3,950.00

	NPF Closed	
Formulary:	**National Preferred (NPF)**	
	Participating Pharmacies	**ESI Specialty Pharmacy**
Per Brand Drug Claim (Specialty Products)	Year 1: \$375.00 Year 2: \$475.00 Year 3: \$575.00	Year 1: \$2,720.00 Year 2: \$3,445.00 Year 3: \$4,030.00

Formulary:	**Basic Formulary**	
	Onsite Pharmacies	
Days' Supply	**1-83 Days' Supply**	**84-90 Days' Supply**
Per Brand Drug Claim (Specialty Products)	Year 1: \$200.00 Year 2: \$250.00 Year 3: \$350.00	Year 1: \$2,250.00 Year 2: \$2,770.00 Year 3: \$3,320.00

NPF Open		
Formulary:	**National Preferred (NPF)**	
	Onsite Pharmacies	
Days' Supply	**1-83 Days' Supply**	**84-90 Days' Supply**
Per Brand Drug Claim (Specialty Products)	Year 1: $295.00 Year 2: $340.00 Year 3: $396.00	Year 1: $2,650.00 Year 2: $3,350.00 Year 3: $3,950.00

NPF Closed		
Formulary:	**National Preferred (NPF)**	
	Onsite Pharmacies	
Days' Supply	**1-83 Days' Supply**	**84-90 Days' Supply**
Per Brand Drug Claim (Specialty Products)	Year 1: $375.00 Year 2: $475.00 Year 3: $575.00	Year 1: $2,720.00 Year 2: $3,445.00 Year 3: $4,030.00

2.2. <u>REBATE PAYMENT TERMS</u>

a. Subject to the conditions set forth herein, ESI shall pay Sponsor the percentage amount set forth above for during each calendar quarter hereunder within ninety (90) days following the end of such calendar quarter.

b. On an annual basis, ESI shall reconcile the guaranteed amounts set forth above (against the percentage amount paid to Sponsor quarterly including any amounts applied at the point of sale) within one hundred eighty (180) days following the end of each contract year and shall credit Sponsor for any deficit on the next invoice immediately following the reconciliation. If, upon reconciliation, the annual aggregate percentage amount paid to Sponsor for the contract year is greater than the guaranteed aggregate amounts, ESI shall be entitled to make up for, and offset, a shortfall in other Rebate guarantee(s) set forth in this offer with such excess annual aggregate percentage amount, and such excess amount shall be applied either directly to the other shortfall guarantee(s) or applied as a credit against future Rebate payments and Manufacturer Administrative Fee payments (or as a direct invoice amount to be paid by Sponsor, if a credit is not feasible).

3. <u>CONDITIONS (APPLIES TO ALL REBATES)</u>

3.1. ESI contracts for Rebates and Manufacturer Administrative Fees, if indicated to be paid above, on its own behalf and for its own benefit, and not on behalf of Sponsor. Accordingly, ESI retains all right, title and interest to any and all actual Rebates and Manufacturer Administrative Fees received. ESI will pay Sponsor amounts equal to the Rebate and Manufacturer Administrative Fees amounts allocated to Sponsor, as specified above, from ESI's general assets (neither Sponsor, its Members, nor Sponsor's plan retains any beneficial or proprietary interest in ESI's general assets). Sponsor acknowledges and agrees that neither it, its Members, nor its Plan will have a right to interest on, or the time value of, any Rebate payments or Manufacturer Administrative Fee payments received by ESI during the collection period or moneys payable under this Section. No amounts for Rebates or Manufacturer Administrative Fees will be paid until this Agreement is executed by Sponsor. ESI will have the right to apply Sponsor's allocated Rebate amount and Manufacturer Administrative Fees amount to unpaid Fees.

3.2. <u>Guarantee Exclusions:</u> Specialty Products (other than Specialty guarantees, if any), Member Submitted Claims, Subrogation Claims, Medicaid Subrogation claims, Biosimilar Drugs, DAW5 multi-source brands, vaccines, OTC products, claims older than 180 days, Claims through 340B pharmacies, coordination of benefit claims, claims with no cost to Sponsor, Compound Prescriptions, and claims pursuant to a 100% Member Copayment plan are not eligible for guaranteed Rebate amounts (if any).

3.3. ESI reserves the right to adjust the Rebate guarantees if Rebate revenue is materially decreased (defined as 15% or more) because Brand Drugs move off-patent to generic status or due to a Change in Law. Any Rebate guarantees apply only to claims where Sponsor incurs a claims cost. ESI reserves the right to adjust the Rebate guarantees if Rebate revenue is materially decreased because Brand Drugs unexpectedly move off-patent to generic status or due to a Change in Law.

3.4. Sponsor acknowledges that it may be eligible for Rebate amounts and Manufacturer Administrative Fee amounts under this Agreement only so long as Sponsor, its affiliates, or its agents do not contract directly or indirectly with anyone else for discounts, utilization limits, rebates or other financial incentives on pharmaceutical products or formulary programs for claims processed by ESI pursuant to the Agreement, without the prior written consent of ESI. In the event that Sponsor negotiates or arranges for Rebates or similar discounts for any Covered Drugs hereunder, but without limiting ESI's right to other remedies, ESI may immediately withhold any Rebate amounts or Manufacturer Administrative Fee amounts earned but not yet paid to Sponsor. To the extent Sponsor knowingly negotiates and/or contracts for discounts or rebates on claims for Covered Drugs without prior written approval of ESI, such activity will be deemed to be a material breach of this Agreement, entitling ESI to suspend payment of Rebate amounts and Manufacturer Administrative Fee amounts hereunder and to renegotiate the terms and conditions of this Agreement.

3.5. Under its Rebate program, ESI may implement ESI's Formulary management programs and controls, which may include, among other things, cost containment initiatives, and communications with Members, Participating Pharmacies, and/or physicians. ESI reserves the right to modify or replace such programs from time to time. Guaranteed Rebate amounts, if any, set forth herein, are conditioned on adherence to various Formulary management controls, benefit design requirements, claims volume, and other factors stated in the applicable rebate agreements, as communicated by ESI to Sponsor from time to time. If any government action, change in law or regulation, change in the interpretation of any law or regulation, or any action by a pharmaceutical manufacturer has material adverse effect (defined as 15% or more) on the availability of Rebates, then ESI may make an adjustment to the Rebate terms and guaranteed Rebate amounts, if any, hereunder.

3.6. Rebate and Manufacturer Administrative Fee amounts paid to Sponsor pursuant to this Agreement are intended to be treated as "discounts" pursuant to the federal anti-kickback statute set forth at 42 U.S.C. §1320a-7b and implementing regulations. Sponsor is obligated if requested by the Secretary of the United States Department of Health and Human Services, or as otherwise required by applicable law, to report the Rebate amounts and to provide a copy of this notice. ESI will refrain from doing anything that would impede Sponsor from meeting any such obligation.

Exhibit A-4

Administrative Services and Clinical Program Fees

INCLUDED SERVICES

Services listed below are included within the pricing offered; additional services may be available for additional fees. Additional terms and conditions may apply for the below services.

Benefits Management	
Basic PBM Services	• Electronic claims processing • Customer service for members • Eligibility submission and maintenance • Plan set-up and validation • FSA eligibility feeds • Primary claim avoidance for secondary payers based on eligibility file (i.e. reject claims submitted as primary) • Strategic account planning support
Formulary & Retail Network Services	• Formulary services and notifications • Pharmacy network management and reimbursement • Basic network pharmacy audit • Pharmacy help desk
Implementation Services	• Implementation support • New member packets (includes two standard resin ID cards) • Member replacement cards printed via web
Technology and Communication Services	• Express Scripts member website (express-scripts.com) and mobile app • Co-branding on communication materials
Pharmacy	
Personalized Pharmacy Experience	• Online ordering and prescription management through Express Scripts Pharmacy • Specialty Pharmacy Website (accredo.com) and Accredo Mobile App • Standard prescription delivery • Specialized pharmacist support through Therapeutic Resource Centers • Extended Payment Program (EPP)
Clinical	
Simple and Affordable Clinical Solutions	• e-Prescribing and Electronic Prior Authorization (ePA) • Overrides - Sponsor requested overrides, lost/stolen overrides, vacation supplies • Concurrent Drug Utilization Review (DUR) • Drug Conversion Program (Therapeutic Interchange) • Digital Health Formulary Development • Patient Assurance Program
Intelligence	
Advanced Analytics and Insights	• Client Website — eService Delivery (eligibility, claims, and benefit administration), coverage management and appeals, eligibility file transfer • Trend Central – on demand web-based reporting • Billing reports with electronic claims detail extract file (NCPDP) • Load 12 months claims history for clinical reports and reporting • Software training for our online systems

ADDITIONAL SERVICES

Below are common additional services and fees. A comprehensive list of additional services and associated fees is available upon request. Additional services may be subject to additional terms and conditions.

Benefits Management

Additional PBM Services	
Direct/Paper Claims	$1.50 per claim
Standard Single Sign-On (SSO)	$0.00
Subrogation Claims COB Adjudication (Standalone)	• 17% of the overpayment amounts recovered • $3.00 per paid claim • $3.00 per paid claim
Electronic Pharmacy Benefit Eligibility Verification	Pass-through at Express Scripts' preferred rate with data switch such as Surescripts
Enhanced Network Pharmacy Audit	Enhanced Plus $0.04/paid claim
Vaccine Program	$2.50 per vaccine claim
Emerging Therapeutic Issues Program (ETIP) (optional): Alerts members and healthcare professionals about significant safety-related drug recalls for scripts filled at a retail pharmacy	$0.05 PMPM and $1.35 /letter + postage for mailed communications
SafeGuard Programs	• No out-of-pocket expense to Plan Sponsor; Sponsor's fees to ESI are paid through retention of portion of manufacturer value associated with program.
SaveonSP (Must be enrolled in exclusive specialty program through Accredo)	• Sponsor's fee to SaveonSP 25% of realized savings
Express Scripts Right Price (optional) *Not applicable to Medicare Part D plans*	• No out-of-pocket expense to Plan Sponsor; any generic surplus value created from Right Price impacted claims may be applied towards meeting other channel guarantees

Reviews and Appeals Management			
Purchase Arrangement		Fee per Initial Determination	
Purchasing PMPM based AUM Package/List?	Purchasing ESI Level 2 and Urgent Appeal Service?	UM (PA, Step, QLL)	Benefit Reviews
Yes	No	$0	$55
Yes	Yes	$10	$65
No	No	$55	$55
No	Yes	$65	$65
External Reviews (optional) Facilitated by UM company, reviewed by independent review organizations		$800 per review	

Advanced Benefit Management / Data Integration	
Consumer-Directed Health (CDH) Plan Enrollees Advanced Data Integration, Member Decision Support, Member Adherence and Member Education	$0.35 PMPM
Combined Benefit Management (Non-CDH Plan Enrollees) Services to manage combined medical-pharmacy benefits that are not a consumer-directed health (CDH) plan. Combined benefit types may include deductible, out of pocket, spending account, and lifetime maximum.	$0.10 PMPM per combined accumulator for existing connection with medical carrier or TPA (up to a maximum $0.20 PMPM)

Fees Applicable to Retiree Drug Subsidy Plans Only	
Retiree Drug Subsidy (RDS) enhanced service Express Scripts sends reports to CMS on behalf of Sponsor	$0.40 per claim for Medicare-qualified members

Clinical Solutions

Below are common clinical services and fees, all of which are optional. A comprehensive list of additional services and associated fees is available upon request. These offerings may change or be discontinued from time to time as Express Scripts updates its offerings to meet the needs of the marketplace. Offerings may be subject to additional terms and conditions.

Health Connect 360 *For $3.00 per member per month (PMPM) fee, Health Connect 360 leverages the benefits of a suite of Express Scripts care solutions without the individual costs and management of standalone solutions.* *Pricing is client-specific*	
Member Care Support *Personalized digital tools, adherence solutions, education, and counseling*	**Physician Support** *Bi-directional EHR communication, real-time safety alerts, and provider engagement*
Pharmacy Support *Point of sale pharmacy messaging and clinical care improvement opportunities*	**Plan Management Support** *Care coordination with Care Insights Hub and Population Health Manager*

Digital Health Solutions *PPPM – Per participating patient per month* *PPPY – Per participating patient per year*	
Hinge Health	Hinge Health Full MSK Clinic™ • Chronic: $995 PPPY, billed in month 1 of the program • Acute: $250 PPPY, billed in month 1 of the program • Surgery: $995 PPPY, billed in month 1 of the program • Prevention: $0 PPPY • Expert Medical Opinion: $0 PPPY *The maximum billable amount per participant is $995 per year (for example, if a member moves from chronic to surgery, the client will only be charged $995 for that member per year). There is no refund if client or member terminates.
Omada	Diabetes + Hypertension: Included in HealthConnect360 Musculoskeletal: • Prevention: $0 • Self-Guided Recovery: $175 PT Consult Fee; $0 PPPM thereafter • Physical Therapist-Guided Recovery: $175 PT Consult Fee; $225 PPPM thereafter, max of 3 months ($850 max per year) • Post Care: $0
Quit Genius	Tobacco & Vaping Cessation: Total Lives Invited Into Solution — PPPM Pricing 0-50,000 — $35.00 50,001-250,000 — $27.91 250,001+ — $25.42 *For minimum of 12 months Optional Program Components include Nicotine Replacement Therapy (NRT) and Carbon Monoxide (CO) Sensor. Price is per participant per order. Clients will only be charged for the amount each Member orders, i.e, if a client opts in for up to 12 weeks but a Member only uses 4 weeks of NRT, the client will only be charged for 4 weeks of NRT for that Member. 4 weeks of NRT: $67.50 8 weeks of NRT: $82.50

	12 weeks of NRT: \$97.50 CO Sensor: \$57.50
RecoveryOne	Musculoskeletal Care: \$97.50PPPM for a minimum of 12 months

Some programs may impact Rebates. Development and maintenance of customized rules and/or criteria may incur additional fees.

Exhibit A-5

Inflation Protection Program

1. Inflation Protection Program. Under the Inflation Protection Program, ESI will guarantee (the "Inflation Rate Guarantee") that Sponsor's Brand Drug AWP inflation will not exceed 8.50% for the commercial population (will be determined based on prior year data) (the "Inflation Cap") for the initial contract year of this Agreement. The Inflation Cap for subsequent years shall be the greater of: (i) the preceding year's Inflation Cap or (ii) the actual CYIR of the preceding contract year; and may be adjusted up or down based on differences in Sponsor's individual mix and utilization. If the Inflation Rate Guarantee is not met, ESI will make a client inflation payment to Sponsor calculated as follows: (Contract Year Inflation Rate – Inflation Cap) * Adjusted Base AWP * Effective Discount (the "Inflation Guarantee Payment"). Any payment owed will be issued within 180 days following the end of the applicable contract year. To remain eligible for the inflation guarantee payment in a given contract year, Sponsor's plan's formulary compliance for Brand Drugs must average at least 74.69% for the commercial population (will be determined based on prior year data) on total utilization for that contract year.

2. For the purposes of the Inflation Protection Program, the following definitions will apply:

   2.1. "Adjusted Base AWP" shall mean the PCYA adjusted to account for total quantity changes between the prior year and the current year. Adjusted Base AWP will be calculated as follows (PCYA / Prior Year Brand Quantities) * Current Year Brand Quantities.

   2.2. "Current Calendar Year AWP" or "CCYA" shall be equal to the aggregate weighted average Brand Drug AWP amount for the calendar year for which the Inflation Guarantee is being calculated, adjusted for the previous year's dispensed Brand Drug quantities. CCYA shall be calculated as the sum of the average unit AWP for each Brand Drug dispensed in the current calendar year multiplied by the quantities of each such Brand Drug dispensed in the preceding calendar year.

   2.3. "Current Year Brand Quantities" shall be equal to the aggregate quantities of each Brand Drug used in the calculation of CCYA dispensed during the calendar year for which the Inflation Guarantee Payment is being calculated.

   2.4. "Calendar Year Inflation Rate" or "CYIR" shall be expressed as a percentage, and calculated as (CCYA/PCYA) - 1.

   2.5. "Effective Discount" is the effective discount Sponsor has received (including the impact of Rebates and Manufacturer Administrative Fees (if applicable)) on Brand Drugs dispensed during the calendar year for which the Inflation Guarantee is being calculated. The Effective Discount will be expressed as a percentage and calculated as (net ingredient cost paid by Sponsor for all Brand Drugs in the applicable calendar year – Rebates received by Sponsor) / Aggregate AWP for all Brand Drugs dispensed in the applicable year.

   2.6. "Prior Calendar Year AWP" or "PCYA" shall be equal to, for the same Brand Drug NDCs used for the "CCYA" calculation, the average Brand Drug AWP amount for such NDCs during the calendar year immediately preceding the calendar year for which the Inflation Guarantee payment is being calculated.

   2.7. "Prior Year Brand Quantities" shall be equal to the aggregate quantities of each Brand Drug used in the calculation of CCYA dispensed during the calendar year prior to the year for which the inflation guarantee is being calculated.

3. Terms and Conditions of the Inflation Protection Program

   3.1. In order to be eligible for the Inflation Rate Guarantee payment for a given calendar year, Sponsor must, on average, meet the specified formulary compliance percentage on its total utilization for the calendar year. If Sponsor makes material changes to its Formulary or benefit design that negatively impact ESI's ability to control inflation relative to Sponsor's Formulary drug mix, then ESI reserves the right to make an equitable adjustment to the Inflation Rate Guarantee.

   3.2. The following claims will be excluded from all calculations related to the Inflation Protection Program: Medicare claims, Medicaid claims, any other government health care program claims, OTCs, Member Submitted Claims, Subrogation Claims, Compound Prescriptions, Generic Drugs, claims submitted by Sponsor owned, in-house, or on-site pharmacies, 340B claims, claims submitted through a 100% member cost-share program, Biosimilar Drugs, drugs where the quantity or packaging has been changed by the manufacturer from the past year, and drugs for which there was no utilization in the calendar year prior to the calendar year for which the Inflation Rate Guarantee payment is being determined.

3.3. ESI's Inflation Protection Program, and the underlying economics, is separate and apart from, any Rebates/Total Rebates paid to Sponsor and the amounts described above will be paid to Sponsor in addition to any Rebate/Total Rebate payments to which Sponsor is entitled. ESI contracts for inflation payments for its own account and ESI may realize positive margin between amounts paid to Sponsors and amounts received from pharmaceutical manufacturers. Conversely, ESI may realize negative margin if inflation payments are less than payments due to Sponsor. Sponsor will not be entitled to receive any amounts related to drug price inflation or a related guarantee other than as set forth above.

3.4. No payments will be made to Sponsor unless Sponsor has an executed PBM Agreement with ESI.

3.5. Notwithstanding anything in the Agreement to the contrary, to the extent that ESI has guaranteed any Ingredient Cost or Dispensing Fee amounts, ESI may use the value of any overperformance of those guarantees to offset any amounts owed to Sponsor for the Inflation Guarantee Payment or the Inflation Rate Guarantee. No payments will be made to Sponsor unless Sponsor has an executed PBM agreement with Sponsor.

3.6. ESI has structured the terms of this program to comply with certain exceptions and safe harbors to the Federal Anti-Kickback Statute (42 U.S.C. §1320a-7b(b)), including the discount exception (42 U.S.C. § 1320a-7b(b)(3)(A) and safe harbor (42 C.F.R. § 1001.952(h)). ESI will treat any reimbursement made to Sponsor hereunder as retrospective discounts on the price of the product paid by Sponsor. ESI will fully and accurately report such discounts on the payment advice submitted to Sponsor. ESI hereby informs Sponsor that it may be required by law to properly disclose and appropriately reflect (in any costs claimed or charges made) all such discounts. Further, ESI will refrain from taking any action that would impede or frustrate Sponsor in any such disclosure requirements. Sponsor may be required to provide information on the discount furnished to Sponsor to the Secretary of Health and Human Services, or any state or other governmental agency, upon request. ESI will comply with all applicable reporting and disclosure obligations.

EXHIBIT B

AUDIT PROTOCOL

1. AUDIT PRINCIPLES

ESI recognizes the importance of its clients ensuring the integrity of their business relationship by engaging in annual audits of their financial arrangements with ESI, and, where applicable (i.e. Medicare Part D), by auditing compliance with applicable regulatory requirements. ESI provides this audit right to each and every client. In granting this right, ESI's primary interest is to facilitate a responsive and responsible audit process. In order to accomplish this goal, for all clients, ESI has established the following Protocol. Our intent is in no way to limit Sponsor's ability to determine that ESI has properly and accurately administered the financial aspects of the Agreement or complied with applicable regulatory requirements, but rather to create a manageable process in order to be responsive to our clients and the independent auditors that they may engage.

2. AUDIT PREREQUISITES

A. There are four components of your arrangement with ESI eligible for audit on an annual basis (calendar year) from February through October, with the exception of the Medicare Part D oversight component which is available on an annual basis from March through November:

- Retrospective Claims
- Rebates (subsequent to true up)
- Performance Guarantees (subsequent to true up)
- Compliance with Regulatory Requirements (i.e. Medicare Part D) Note: If ESI is supporting a government initiated audit on behalf of Sponsor concurrently with the Sponsor initiated oversight audit, ESI resources will primarily be utilized to address the government audit requests. As such, ESI's response to Sponsor initiated audits may be delayed.

Balancing the need to adequately support the audit process for all ESI clients, with an efficient allocation of resources, clients who choose to audit one or more components of the arrangement must do so for all lines of business, as applicable, through a single annual audit.

B. ESI will provide all data reasonably necessary for Sponsor to determine that ESI has performed in accordance with contractual terms. ESI will provide the retrospective claims and benefit information in no more than thirty (30) days from audit kickoff call and having an executed confidentiality agreement. Our pledge to respond within the foregoing timeframe is predicated on a good faith and cooperative effort between Sponsor and/or its Auditor and ESI.

C. ESI engages a national accounting firm, at its sole cost and expense, to conduct a SSAE 18, SOC 1 audit on behalf of its clients. Upon request, ESI will provide the results of its most recent SSAE 18, SOC 1 audit. Testing of the areas covered by the SSAE 18, SOC 1 is not within the scope of Sponsor's audit rights (i.e., to confirm the financial aspects of the Agreement) and is therefore not permitted. However, if requested, ESI will explain the SSAE 18, SOC 1 audit process and findings to Sponsor in order for Sponsor to gain an understanding of the SSAE 18, SOC 1.

3. AUDITS

A. The initial audit period for a retrospective claims, rebates and performance guarantee audit covers a timeframe not to exceed twenty-four (24) months immediately preceding the request to audit (the "Audit Period"). This Audit Period allows a reasonable amount of time for both parties to conclude the audit before data is archived off the adjudication system.

B. CMS generally modifies its requirements for administering the Medicare Part D annually. For this reason, the initial audit period for a Medicare Part D compliance audit cover a timeframe is not to exceed the twelve (12) months immediately preceding the request to audit (collectively, the "Medicare Part D Audit Period"). This Medicare Part D Audit Period is intended to assist our clients with the CMS annual oversight requirements. ESI will be responsible for support of all services delegated to ESI. Mock audits intended to simulate a CMS Program Audit shall not exceed a one (1) day webinar to review three (3) samples per each data universe review. ESI will provide data universes within ten (10) Business Days of Sponsor request and responses to webinar follow-up requests within fifteen (15) Business Days of Sponsor request. ESI shall not be required to provide data or responses in a more aggressive timeline than CMS requirements. If Sponsor has requested that ESI assist with findings related to services not delegated during an audit, ESI may accommodate such requests, which will be provided at ESI's standard audit charges.

C. When performing a Rebate audit, Sponsor may perform an on-site review of the applicable components of manufacturer agreements, selected by Sponsor, as reasonably necessary to audit the calculation of the Rebate payments made to Sponsor by ESI. Our ability to drive value through the supply chain and in our negotiations with manufacturers is dependent upon the strict confidentiality and use of these agreements. Providing access to these agreements to third parties that perform services in the industry beyond traditional financial auditing jeopardizes our ability to competitively drive value. For this reason, unless otherwise agreed by the Parties, access to and audit of manufacturer agreements is restricted to a mutually agreed upon CPA accounting firm whose audit department is a separate stand-alone division of the business, which carries insurance for professional malpractice of at least Two Million Dollars ($2,000,000).

D. The Sponsor may select an initial number of manufacturer contracts to enable Sponsor to audit fifty percent (50%) of the total rebate payments due to Sponsor for two (2) calendar quarters during the twenty-four (24) month period immediately preceding the audit (the "Rebate Audit Scope and Timeframe").

E. If you have a Pass-Through pricing arrangement for Participating Pharmacy claims, ESI will provide the billable and payable amount for a sampling of claims provided by you or your auditor (i.e., ESI will provide the actual documented claim record) during the audit to verify that ESI has administered such Pass-Through pricing arrangement consistent with the terms of the Agreement. If further documentation is required, ESI may provide a sample of claims remittances to the Participating Pharmacies to demonstrate ESI's administration of Pass-Through pricing. In any instance where the audit demonstrates that the amount billed to you does not equal the Pass-Through amount paid to the Participating Pharmacy, Sponsor's Auditor may perform an on-site audit of the applicable Participating Pharmacy contract rate sheet(s).

4. AUDIT FINDINGS

A. Following Sponsor's initial retrospective claims audit, Sponsor (or its Auditor) will provide ESI with suspected errors, if any. In order for ESI to evaluate Sponsor's suspected errors, Sponsor shall provide an electronic data file in a mutually agreed upon format containing up to 300 claims for further investigation by ESI. ESI will respond to the suspected errors in no more than sixty (60) days from ESI's receipt of such findings. Our pledge to respond within the foregoing timeframe is predicated on a good faith and cooperative effort between Sponsor and/or its Auditor and ESI.

B. Following Sponsor's initial rebate and performance guarantee audit, Sponsor's Auditor will provide ESI with suspected errors, if any. ESI will respond to the suspected errors in no more than sixty (60) days from ESI's receipt of such findings. Our pledge to respond within the foregoing timeframe is predicated on a good faith and cooperative effort between Sponsor and/or its Auditor and ESI.

C. Following Sponsor's initial audit of Medicare Part D compliance, Sponsor (or its Auditor) will provide ESI with suspected non-compliant issues, if any. In order for ESI to evaluate Sponsor's suspected errors, Sponsor shall provide ESI with specific regulatory criteria and Medicare Part D program requirements used to cite each suspected non-compliant issue. ESI will respond to the suspected errors in no more than thirty (30) days from ESI's receipt of the findings. Our pledge to respond within the foregoing timeframe is predicated on a good faith and cooperative effort between Sponsor and/or its Auditor and ESI.

5. FINAL REPORT

A. Upon receipt and review of ESI's responses to Sponsor (or its Auditor), Sponsor (or its Auditor) will provide ESI with a written report of findings and recommendations. ESI will respond to the audit report in no more than thirty (30) days from ESI's receipt of the report. Our pledge to respond within the foregoing timeframe is predicated on a good faith and cooperative effort (i.e., no new issues noted) between Sponsor and/or its Auditor and ESI.

B. Sponsor agrees that once audit results are accepted by both parties, the audit shall be considered closed and final. To the extent the mutually accepted audit results demonstrate claims errors, ESI will reprocess the claims and make corresponding adjustments to Sponsor through credits to a future invoice(s). If we are unable to reprocess claims and issue corresponding credits to Sponsor through this process, ESI will make adjustments to Sponsor via a check or credit.

C. New audits cannot be initiated until all parties have agreed that the prior audit is closed.

6. AUDITS BY GOVERNMENT ENTITIES

A. In the event CMS, the OIG, MEDIC, or another government agency has engaged in an audit of Sponsor and/or its "first tier" and "downstream entities", Sponsor shall contact the ESI Account Management team and provide a written copy of the audit notice or request from the government agency promptly upon receipt.

B. Sponsor agrees that CMS may have direct access to ESI's and any such "downstream entity's" pertinent contracts, books, documents, papers, records, premises and physical facilities, and that ESI and such "downstream entity" will provide requested information directly to CMS unless otherwise agreed upon by ESI and Sponsor.

C. Following the government audit of Sponsor and its "first tier" and "downstream entities", Sponsor shall provide ESI with a written report of suspected non-compliant issues noted in the government audit that relate to services provided by ESI, if any. If there are such findings, ESI will work with Sponsor and/or government agency to respond to any suspected non-compliant issues.

D. Support for all such audits by government entities will be subject to ESI's standard charges. All such fees shall be reasonable and based on ESI's costs for supporting such audits.

7. CONFIDENTIALITY

ESI's contracts are highly confidential and proprietary. For this reason, ESI only permits on-site review rather than provide copies to our clients. During on-site contract review, Sponsor (or its Auditor) may take and retain notes to the extent necessary to document any identified errors, but may not copy (through handwritten notes or otherwise) or retain any contracts (in part or in whole) or related documents provided or made available by ESI in connection with the audit. ESI will be entitled to review any notes to affirm compliance with this paragraph.

EXHIBIT C
HIPAA BUSINESS ASSOCIATE ADDENDUM

This HIPAA Business Associate Addendum ("Addendum") supplements and is made a part of the Pharmacy Benefit Management Agreement ("Agreement") effective as of January 1, 2022 by and between Express Scripts, Inc., a Delaware corporation ("Business Associate" or "Associate") and Disney Worldwide Services, Inc., acting on behalf of the Signature Benefits Plan (hereby designated as "Covered Entity" or "CE"), and is effective as of January 1, 2022 (the "Addendum Effective Date").

RECITALS

A. CE wishes to disclose certain information to Associate pursuant to the terms of the Agreement, some of which may constitute Protected Health Information ("PHI") or Electronic Health Information ("ePHI"), both as defined below.

B. CE and Associate intend to protect the privacy and provide for the security of PHI and ePHI disclosed to Associate pursuant to the Agreement in compliance with the Health Insurance Portability and Accountability Act of 1996, Public Law 104-191 ("HIPAA") as amended by the American Recovery and Reinvestment Act of 2009, Public Law No. 111-5 ("ARRA") and regulations promulgated under both such statutes by the U.S. Department of Health and Human Services (the "HIPAA Regulations") and other applicable laws.

C. As part of the HIPAA Regulations, the Privacy Rule and Security Rule (both as defined below) require Associate to enter into a contract containing specific requirements with Associate prior to the disclosure of PHI and ePHI, as set forth in, but not limited to, Title 45, Sections 164.502(e) and 164.504(e) of the Code of Federal Regulations ("CFR") and contained in this Addendum.

In consideration of the mutual promises below and the exchange of information pursuant to this Addendum, the parties agree as follows:

1. Definitions.

a. "Business Associate" shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 CFR Section 160.103.

b. "Covered Entity" shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 CFR Section 160.103.

c. "Data Aggregation" shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 CFR Section 164.501.

d. "Designated Record Set" shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 CFR Section 164.501.

e. "ePHI" shall have the meaning given to such term under the Security Rule, including, but not limited to, 45 CFR Section 160.103.

f. "Health Care Operations" shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 CFR Section 164.501.

g. "Individual" shall have the same meaning given to such term in 45 CFR 160.103 and shall include a person who qualifies as the Individual's personal representative in accordance with 45 CFR 164.502(g).

h. "Privacy Rule" shall mean the HIPAA Regulation that is codified at 45 CFR Parts 160 and 164.

i. "Protected Health Information" or "PHI" means any information, whether oral or recorded in any form or medium: (i) that relates to the past, present or future physical or mental condition of an individual; the provision of health care to an individual; or the past, present or future payment for the provision of health care to an individual; and (ii) that identifies the individual or with respect to which there is a reasonable basis to believe the information can be used to identify the individual, and shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 CFR Section 164.501.

j. "Protected Information" shall mean PHI provided by CE to Associate or created or received by Associate on CE's behalf.

k. “Required by Law” shall have the same meaning given to such term in 45 CFR 164.103.

l. “Secretary” shall mean the Secretary of the U.S. Department of Health and Human Services or his/her designee.

m. “Security Incident” shall have the meaning given such term in 45 CFR 164.304, which generally means the attempted or successful unauthorized access to, disclosure, modification or destruction of, or interference with PHI or system operations in information systems containing Protected Information, excluding certain unintentional and inadvertent disclosures.

n. “Security Rule” shall mean the HIPAA Regulations that are codified at 45 CFR Parts 160 and 164.

2. Obligations of Associate.

a. Permitted Uses. Associate shall not use Protected Information except for the purpose of performing Associate’s obligations under the Agreement and as permitted under the Agreement and Addendum or as Required by Law. Further, Associate shall not use Protected Information in any manner that would constitute a violation of the Privacy Rule if so used by CE, except that Associate may use Protected Information, (i) for the proper management and administration of Associate, (ii) to carry out the legal responsibilities of Associate, or (iii) for Data Aggregation purposes for the Health Care Operations of CE.

b. Permitted Disclosures. Associate shall not disclose Protected Information in any manner that would constitute a violation of the Privacy Rule or Security Rule if disclosed by CE, except that Associate may disclose Protected Information (i) in a manner permitted pursuant to the Agreement and Addendum, (ii) for the proper management and administration of Associate; (iii) as required by law and in compliance with each applicable requirement of 45 CFR 164.504(e), or (iv) for Data Aggregation purposes for the Health Care Operations of CE. To the extent that Associate discloses Protected Information to a third party, Associate must obtain, prior to making any such disclosure, (i) reasonable assurances from such third party that such Protected Information will be held confidential as provided pursuant to this Addendum and only disclosed as required by law or for the purposes for which it was disclosed to such third party, and (ii) an agreement from such third party to immediately notify Associate of any breaches of confidentiality of the Protected Information, any Security Incident affecting PHI and any breach of any Unsecured PHI as defined in and in accordance with the security breach notification requirements set forth in 42 U.S.C. 17932.

c. Appropriate Safeguards. Associate shall (i) implement appropriate safeguards as are necessary to prevent the use or disclosure of Protected Information otherwise than as permitted by this Agreement; (ii) reasonably and appropriately protect the confidentiality, integrity, and availability of the ePHI that it creates, maintains or transmits on behalf of the Covered Entity and (iii) as of the required compliance date of 42 U.S.C. 17931, comply with the Security Rule requirements set forth in 45 CFR 164.308, 164.310, 164.312 and 164.316. Associate shall maintain a comprehensive written information privacy and security program that includes administrative, technical and physical safeguards appropriate to the size and complexity of the Associate’s operations and the nature and scope of its activities.

d. Reporting of Improper Use, Disclosure or Breach. Without unreasonable delay and in no case later than 10 business days after discovery, Associate shall report to CE in writing of (i) any use or disclosure of Protected Information otherwise than as provided for by the Agreement and this Addendum (ii) any Security Incident affecting PHI of which it becomes aware and (iii) any Breach of any Unsecured PHI as defined in and in accordance with, the security breach notification requirements set forth in 42 U.S.C. 17932. The parties acknowledge and agree that this section constitutes notice by Associate to CE of the ongoing existence and occurrence of attempted but Unsuccessful Security Incidents (as defined below) for which no additional notice to CE shall be required. “Unsuccessful Security Incidents” shall include, but not be limited to, pings and other broadcast attacks on Associate’s firewall, port scans, unsuccessful log-on attempts, denials of service and any combination of the above, provided such incident does not result in the unauthorized access, use or disclosure of PHI. Associate shall cooperate with CE in rectifying any improper use, disclosure or breach subject to the provisions of this section and shall take prompt corrective action to cure such deficiencies at Associate’s expense, including actions required by HIPAA, ARRA, the HIPAA regulations and other applicable federal and state laws and regulations.

e. Associate’s Agents. In accordance with 45 CFR 164.502 (e) (1) (ii) and 45 CFR 164.308 (b) (2), if applicable, Associate shall ensure that any agents, including subcontractors, that create, receive, maintain or transmit Protected Information agree in writing to the same restrictions and conditions that apply to Associate with respect to such PHI. Associate shall implement and maintain sanctions against agents and subcontractors that violate such restrictions and conditions and shall mitigate the effects of any such violation.

f. Access to Protected Information. Associate shall make Protected Information maintained by Associate or its agents or subcontractors in Designated Record Sets available to CE for inspection and copying within ten (10) days of a request by CE to enable CE to fulfill its obligations under the Privacy Rule, including, but not limited to, 45 CFR Section 164.524.

g. Amendment to PHI. Within ten (10) days of receipt of a request from CE for an amendment of Protected Information or a record about an individual contained in a Designated Record Set, Associate or its agents or subcontractors shall make such Protected Information available to CE for amendment and incorporate any such amendment to enable CE to fulfill its obligations under the Privacy

Rule, including, but not limited to, 45 CFR Section 164.526. If any individual requests an amendment of Protected Information directly from Associate or its agents or subcontractors, Associate must notify CE in writing within ten (10) business days of the request. Any denial of amendment of Protected Information maintained by Associate or its agents or subcontractors shall be the responsibility of CE.

h. Accounting Rights. Within ten (10) days of notice by CE of a request for an accounting of disclosures of Protected Information, Associate and its agents or subcontractors shall make available to CE the information required to provide an accounting of disclosures to enable CE to fulfill its obligations under the Privacy Rule, including, but not limited to, 45 CFR Section 164.528 and, as of its compliance date, in accordance with the requirements for accounting for disclosures made through an Electronic Health Record in 42 U.S.C. 17935(c). As set forth in, and as limited by, 45 CFR Section 164.528, Associate shall not provide an accounting to CE of disclosures: (i) to carry out treatment, payment or health care operations, as set forth in 45 CFR Section 164.506; (ii) to individuals of Protected Information about them as set forth in 45 CFR 164.502; (iii) to persons involved in the individual's care or other notification purposes as set forth in 45 CFR Section 164.510; (iv) for national security or intelligence purposes as set forth in 45 CFR 164.512(k)(2); or (v) to correctional institutions or law enforcement officials as set forth in 45 CFR Section 164.512(k)(5). Associate agrees to implement a process that allows for an accounting to be collected and maintained by Associate and its agents or subcontractors for at least six (6) years prior to the request, but not before the compliance date of the Privacy Rule. At a minimum, such information shall include: (i) the date of disclosure; (ii) the name of the entity or person who received Protection Information and, if known, the address of the entity or person; (iii) a brief description of Protected Information disclosed; and (iv) a brief statement of purpose of the disclosure that reasonably informs the individual of the basis for the disclosure, or a copy of the individual's authorization, or a copy of the written request for disclosure. In the event that the request for an accounting is delivered directly to Associate or its agent or subcontractors, Associate shall within five (5) days of a request forward it to CE in writing. It shall be CE's responsibility to prepare and deliver any such accounting requested. Associate shall not disclose any Protected Information except as set forth in Sections 2(b) of this Addendum. In the event Associate in connection with the Agreement or this Addendum uses or maintains ePHI of or about an Individual then the Associate shall provide an electronic copy (at the request of CE, and in the time and manner designated by CE) of the PHI to CE or, as directed by CE, to an Individual or a third party designated by the Individual, all in accordance with 42 U.S.C. 17935(e) as of its applicable compliance date.

i. Governmental Access to Records. Associate shall make its internal practices, books and records relating to the use and disclosure of Protected Information available to the Secretary for purposes of determining CE's compliance with the Privacy Rule or to report violations of law consistent with the requirements of 45 CFR 164.502(j)(1). Associate shall provide to CE a copy of any Protected Information that Associate provides to the Secretary concurrently with providing such Protected Information to the Secretary, except as prohibited by law.

j. Minimum Necessary. Associate (and its agents or subcontractors) shall only request, use and disclose the minimum amount of Protected Information necessary to accomplish the purpose of the request, use or disclosure. In addition Associate shall comply with 42 U.S.C. 17935(b) as of its applicable compliance date.

k. Data Ownership. Associate acknowledges that Associate has no ownership rights with respect to the Protected Information.

l. Retention of Protected Information. Notwithstanding Section 5(c) of this Addendum, Associate and its subcontractors or agents shall retain all Protected Information throughout the term of the Agreement and shall continue to maintain the information required under Section 2(h) of this Addendum for a period of six (6) years after termination of the Agreement.

m. Audits, Inspection and Enforcement. Within ten (10) days of a written request by CE, Associate and its agents or subcontractors shall allow CE to conduct a reasonable inspection of the facilities, systems, books, records, agreements, policies and procedures relating to the use or disclosure of Protected Information pursuant to this Addendum, for the purpose of determining whether Associate has complied with this Addendum; provided, however, that (i) Associate and CE shall mutually agree in advance upon the scope, timing and location of such an inspection and that such inspection shall be conducted in accordance with applicable law and shall not include access to documents, records or materials that would violate Associate's contractual confidentiality requirements under any agreements with third parties, including business associate agreements with other covered entities, (ii) CE shall protect the confidentiality of all confidential and proprietary information of Associate to which CE has access during the course of such inspection; and (iii) CE shall execute a nondisclosure agreement, upon terms mutually agreed upon by the parties, if requested by Associate. The fact that CE inspects, or fails to inspect, or has the right to inspect, Associate's facilities, systems, books, records, agreements, policies and procedures does not relieve Associate of its responsibility to comply with this Addendum, nor does CE's (i) failure to detect or (ii) detection, but failure to notify Associate or require Associate's remediation of any unsatisfactory practices, constitute acceptance of such practice or a waiver of CE's enforcement rights under this Agreement.

n. Accounting of Disclosures. Associate agrees to document such disclosures of PHI and information related to such disclosures as would be required for CE to respond to a request by an Individual for an accounting of disclosures of PHI in accordance with 45 CFR 164.528 and any subsequent legislation or guidance regarding an Individual's right to an accounting of disclosures of his or her PHI, including but not limited to, the requirements of Sections 13405 of ARRA and the HIPAA regulations.

Associate agrees to provide to CE, upon request and in the time and manner Required by Law, an accounting of disclosures of an Individual's PHI, collected in accordance with this subsection to permit CE to respond to a request by an Individual for an accounting of disclosures of PHI in accordance with 45 CFR 164.528 and any subsequent legislation or guidance regarding an Individual's right to an accounting of the disclosures of his or her PHI including, but not limited to, the requirements of Section 13405 of ARRA and the HIPAA regulations.

3. Obligations of CE.

a. CE shall be responsible for using appropriate safeguards to maintain and ensure the confidentiality, privacy and security of PHI transmitted to Associate pursuant to this Agreement, in accordance with the standards and requirements of the Privacy Rule and Security Rule, until such PHI is received by Associate.

b. In accordance with 45 CFR 164.520, CE shall notify Associate of any limitation(s) in CE's notice of privacy practices, to the extent that such limitation may affect Associate's use or disclosure of Protected Health Information under this Agreement.

c. CE shall notify Associate of any changes in, or revocation of, permission by an Individual to use or disclose Protected Health Information, to the extent that such changes may affect Business Associate's use or disclosure of Protected Health Information under this Agreement.

d. CE shall notify Associate of any restriction on the use or disclosure of Protected Health Information to which CE has agreed in accordance with 45 CFR § 164.522 or 42 U.S.C. § 17935(a) as of its applicable compliance date to the extent that such restriction may affect Associate's use or disclosure of Protected Health Information under the Agreement and this Addendum.

4. Security.

CE will make available to the Associate certain ePHI to enable performance of contracted services and therefore, CE and Business Associate agree to be bound by the following terms and conditions, in accordance with the standards and requirements of the Security Rule.

a. The Associate agrees to implement administrative, physical and technical safeguards that reasonably and appropriately protect the confidentiality, integrity and availability of the ePHI that the Associate creates, receives, maintains or transmits on behalf of the CE.

b. The Associate warrants and ensures that any agent, including a subcontractor, to who it provides such information, agrees to implement reasonable and appropriate safeguards to protect the ePHI.

c. The Associate agrees to report to the CE any Security Incident of which it becomes aware.

d. The Associate agrees to annually certify its adherence to the Privacy Rule and the Security Rule.

5. Termination.

a. Material Breach. A breach by Associate of any material provision of this Addendum, as determined by CE, shall constitute a material breach of the Agreement and shall provide grounds for immediate termination of the Agreement by CE.

b. Reasonable Steps to Cure Breach. If CE knows of a pattern of activity or practice of Associate that constitutes a material breach or violation of the Associate's obligations under the provisions of this Addendum or another arrangement and does not terminate this Agreement pursuant to Section 5(a), then CE shall take reasonable steps to cure such breach or end such violation, as applicable. If CE's efforts to cure such breach or end such violation are unsuccessful, CE shall either (i) terminate the Agreement, if feasible or (ii) if termination of the Agreement is not feasible, CE shall report Associate's breach or violation to the Secretary.

c. Effect of Termination. Upon termination of this Agreement for any reason, Associate shall return or destroy all Protected Information that Associate or its agents or subcontractors still maintain in any form, and shall retain no copies of such Protected Information. If return or destruction is not feasible, Associate shall continue to extend the protections of Sections 2(a), 2(b), 2(c) and 2(e) of this Addendum to such information, and limit further use of such PHI to those purposes that make the return or destruction of such PHI infeasible. If Associate elects to destroy the PHI, Associate shall certify in writing to CE that such PHI has been destroyed.

6. Disclaimer.

CE makes no warranty or representation that compliance by Associate with this Addendum, HIPAA, ARRA or the HIPAA Regulations will be adequate or satisfactory for Associate's own purposes. Associate is solely responsible for all decisions made by Associate regarding the safeguarding of PHI.

7. Certification.

To the extent that CE determines that such examination is necessary, to comply with CE's legal obligations pursuant to HIPAA relating to certification of its security practices, CE or its authorized agents or contractors, may, at CE's expense, examine Associate's procedures and records as may be necessary for such agents or contractors to certify to CE the extent to which Associate's security safeguards comply with HIPAA, the HIPAA Regulations or this Addendum.

8. Automatic Amendment.

The parties agree to amend this Agreement to comply with applicable requirements of HIPAA and/or the HIPAA Regulations, where necessary.

9. No Third Party Beneficiaries.

Nothing express or implied in this Agreement is intended to confer, nor shall anything herein confer, upon any person other than CE, Associate and their respective successors or assigns, any rights, remedies, obligations or liabilities whatsoever.

10. Effect on Agreement.

Except as specifically required to implement the purposes of this Addendum, or to the extent inconsistent with this Addendum, all other terms of the Agreement shall remain in force and effect.

11. Interpretation.

The provisions of this Addendum shall prevail over any provisions in the Agreement that may conflict or appear inconsistent with any provision in this Addendum. This Addendum and the Agreement shall be interpreted as broadly as necessary to implement and comply with HIPAA, the Privacy Rule, the Security Rule and ARRA. The parties agree that any ambiguity in this Addendum shall be resolved in favor of a meaning that complies and is consistent with HIPAA, the Privacy Rule, the Security Rule and ARRA.

IN WITNESS WHEREOF, the parties hereto have duly executed this Addendum as of the Addendum Effective Date.

DISNEY WORLDWIDE SERVICES, INC.

By: ______________________

Print Name: ______________________

Title: ______________________

EXPRESS SCRIPTS, INC.,

By: ______________________

Print Name: ______________________

Title: ______________________

EXHIBIT D

FINANCIAL DISCLOSURE TO ESI PBM CLIENTS

This disclosure provides an overview of the principal revenue sources of Express Scripts, Inc. and Medco Health Solutions, Inc. (individually and collectively referred to herein as "ESI"), as well as ESI's affiliates. In addition to administrative and dispensing fees paid to ESI by our clients for pharmaceutical benefit management ("PBM") services, ESI and its affiliates derive revenue from other sources, including arrangements with pharmaceutical manufacturers, wholesale distributors, and retail pharmacies. Some of this revenue relates to utilization of prescription drugs by members of the clients receiving PBM services. ESI may pass through certain manufacturer payments to its clients or may retain those payments for itself, depending on the contract terms between ESI and the client.

Relationship with Cigna Corporation. On December 20, 2018, ESI's parent company, Express Scripts Holding Company, was acquired by Cigna Corporation.

Relationship with Evernorth Health, Inc. Evernorth Health, Inc., a wholly-owned subsidiary of Cigna Corporation, is the parent company of ESI.

Network Pharmacies – ESI contracts for its own account with retail pharmacies to dispense prescription drugs to client members. Rates paid by ESI to these pharmacies may differ among networks (e.g., Medicare, Worker's Comp, open and limited), and among pharmacies within a network, and by client arrangements. PBM agreements generally provide that a client pays ESI an ingredient cost, plus dispensing fee, for drug claims. If the rate paid by a client exceeds the rate contracted with a particular pharmacy, ESI will realize a positive margin on the applicable claim. The reverse also may be true, resulting in negative margin for ESI. ESI also enters into pass-through arrangements where the client pays ESI the actual ingredient cost and dispensing fee amount paid by ESI for the particular claim when the claim is adjudicated to the pharmacy. In addition, when ESI receives payment from a client before payment to a pharmacy, ESI retains the benefit of the use of the funds between these payments. ESI may maintain non-client specific aggregate guarantees with pharmacies and may realize positive margin. ESI may charge pharmacies standard transaction fees to access ESI's pharmacy claims systems and for other related administrative purposes. ESI may also maintain certain preferred value or quality networks; pharmacies participating in those networks may pay or receive aggregated payments related to these networks.

Brand/Generic Classifications – Prescription drugs may be classified as either a "brand" or "generic;" however, the reference to a drug by its chemical name does not necessarily mean that the product is recognized as a generic for adjudication, pricing or copay purposes. For the purposes of pharmacy reimbursement, ESI distinguishes brands and generics through a proprietary algorithm ("BGA") that uses certain published elements provided by First DataBank (FDB), a third-party vendor, including price indicators, Generic Indicator, Generic Manufacturer Indicator, Generic Name Drug Indicator, Innovator, Drug Class and abbreviated new drug application (ANDA). The BGA uses these data elements in a hierarchical process to categorize the products as brand or generic. The BGA also has processes to resolve discrepancies and prevent "flipping" between brand and generic status due to price fluctuations and marketplace availability changes. The elements listed above and sources are subject to change based on the availability of the specific fields. Updated summaries of the BGA are available upon request. Brand or generic classification for client reimbursement purposes is either based on the BGA or specific code indicators from Medi-Span, a third-party vendor, or a combination of the two as reflected in the client's specific contract terms. Application of an alternative methodology based on specific client contract terms does not affect ESI's application of its BGA for ESI's other contracts.

Maximum Allowable Cost ("MAC")/Maximum Reimbursement Amount ("MRA") – As part of the administration of the PBM services, ESI maintains a MAC List of drug products identified as requiring pricing management due to the number of manufacturers, utilization and/or pricing volatility. The criteria for inclusion on the MAC List are based on whether the drug has readily available generic product(s), is generally equivalent to a brand drug, is cleared of any negative clinical implications, and has a cost basis that will allow for pricing below brand rates. ESI also maintains MRA price lists for drug products on the MAC List based on current price reference data provided by MediSpan or other nationally recognized pricing sources, market pricing and availability information from generic manufacturers and on-line research of national wholesale drug company files, and client arrangements. Similar to the BGA, the elements listed above and sources are subject to change based on the availability of the specific fields. Updated summaries of the MAC methodology are available upon request.

Manufacturer Programs Formulary Rebates, Associated Administrative Fees, and PBM Service Fees – ESI contracts with manufacturers and/or group purchasing organizations ("GPOs") for its own account to obtain formulary rebates attributable to the utilization of certain drugs and supplies. Formulary rebate amounts received vary based on client specific utilization, the volume of utilization as well as formulary position applicable to the drug or supplies, and adherence to various formulary management controls, benefit design requirements, claims volume, and other similar factors, and in certain instances also may vary based on the product's market-share. ESI pays formulary rebates it receives to a client based on the client's PBM agreement terms and may realize positive margin. In addition, ESI provides administrative services to contracted manufacturers, which include, for example, maintenance and operation of systems and other infrastructure necessary for invoicing and processing rebates, pharmacy discount programs, access to drug utilization data, as allowed by law, for purposes of verifying and evaluating applicable payments, and for other purposes related to the manufacturer's products. ESI receives administrative fees directly from participating manufacturers and indirectly from GPOs. In its capacity as a PBM company, ESI may receive other compensation from manufacturers for the performance of various programs or services, including, for example, formulary compliance initiatives, clinical services, therapy management services, education services, inflation protection programs, medical benefit management services, cost containment programs, discount programs, and the sale of non-patient identifiable claim information. This compensation is not part of the formulary rebates or associated administrative fees, and ESI may realize positive margin between amounts paid to clients and amounts received. ESI retains the financial benefit of the use of any funds held until payment is made to the client.

Copies of ESI's standard formularies may be reviewed at https://www.controlcenter.com/.

Third Party Offerings - ESI partners with multiple third party vendors to provide clinical programs and other product offerings to clients. ESI may have an ownership interest in certain third party vendors.

ESI Subsidiary Pharmacies – ESI has several licensed pharmacy subsidiaries, including our specialty pharmacies. These entities may maintain product purchase discount arrangements and/or fee-for-service arrangements with pharmaceutical manufacturers, wholesale distributors, and other health care providers. These subsidiary pharmacies contract for these arrangements on their own account in support of their various pharmacy operations. Many of these subsidiary arrangements relate to services provided outside of PBM arrangements, and may be entered into irrespective of whether the particular drug is on one of ESI's national formularies. Discounts and fee-for-service payments received by ESI's subsidiary pharmacies are not part of the PBM formulary rebates or associated administrative fees paid to ESI in connection with ESI's PBM formulary rebate programs. However, certain purchase discounts received by ESI's subsidiary pharmacies, whether directly or through ESI, may be considered for formulary purposes if the value of such purchase discounts is used by ESI to supplement the discount on the ingredient cost of the drug to the client based on the client's PBM agreement terms. From time to time, ESI and its affiliates also may pursue and maintain for its own account other supply chain sourcing relationships not described below as beneficial to maximize ESI's drug purchasing capabilities and efficiencies, and ESI or affiliates may realize an overall positive margin with regard to these initiatives.

The following provides additional information regarding examples of ESI subsidiary discount arrangements and fee-for-service arrangements with pharmaceutical manufacturers, and wholesale distributors:

ESI Subsidiary Pharmacy Discount Arrangements – ESI subsidiary pharmacies purchase prescription drug inventories, either from manufacturers or wholesalers, for dispensing to patients. Often, purchase discounts off the acquisition cost of these products are made available by manufacturers and wholesalers in the form of either up-front discounts or retrospective discounts. These purchase discounts, obtained through separate purchase contracts, are not formulary rebates paid in connection with our PBM formulary rebate programs. Drug purchase discounts are based on a pharmacy's inventory needs and, at times, the performance of related patient care services and other performance requirements. When a subsidiary pharmacy dispenses a product from its inventory, the purchase price paid for the dispensed product, including applicable dispensing fees, may be greater or less than that pharmacy's acquisition cost for the product net of purchase discounts. In general, our pharmacies realize an overall positive margin between the net acquisition cost and the amounts paid for the dispensed drugs.

ESI Subsidiary Fee-For-Service Arrangements – One or more of ESI's subsidiaries, including, but not limited to, its subsidiary pharmacies also may receive fee-for-service payments from manufacturers, wholesalers, or other health care providers in conjunction with various programs or services, including, for example, patient assistance programs for indigent patients, dispensing prescription medications to patients enrolled in clinical trials, various therapy adherence and fertility programs, administering FDA compliance requirements related to the drug, 340B contract pharmacy services, product reimbursement support services, and various other clinical or pharmacy programs or services. As a condition to having access to certain products, and sometimes related to certain therapy adherence criteria or FDA requirements, a pharmaceutical manufacturer may require a pharmacy to report selected information to the manufacturer regarding the pharmacy's service levels and other dispensing-related data with respect to patients who receive that manufacturer's product. A portion of the discounts or other fee-for-service payments made available to our pharmacies may represent compensation for such reporting.

Other Manufacturer Arrangements – ESI also maintains other lines of business that may involve discount and service fee relationships with pharmaceutical manufacturers and wholesale distributors. Examples of these businesses include a wholesale distribution business, group purchasing organizations (and related group purchasing organization fees), and a medical benefit management company. Compensation derived through these business arrangements is not considered for PBM formulary placement, and is in addition to other amounts described herein. These service fees are not part of the formulary rebates or associated administrative fees.

Third Party Data Sales – Consistent with any client contract limitations, ESI or its affiliates may sell HIPAA compliant information maintained in their capacity as a PBM, pharmacy, or otherwise to data aggregators, manufacturers, or other third parties on a fee-for-service basis or as a condition of discount eligibility. All such activities are conducted in compliance with applicable patient and pharmacy privacy laws and client contract restrictions.

August 4, 2022

THIS EXHIBIT REPRESENTS ESI'S FINANCIAL POLICIES. ESI MAY PERIODICALLY UPDATE THIS EXHIBIT AND THE FINANCIAL DISCLOSURES CONTAINED HEREIN TO REFLECT CHANGES IN ITS BUSINESS PROCESSES; THE CURRENT FINANCIAL DISCLOSURE IS AVAILABLE UPON REQUEST AND ACCESSIBLE ON HTTPS://WWW.EXPRESS-SCRIPTS.COM/CORPORATE AND HTTPS://WWW.CONTROLCENTER.COM/.

EXHIBIT E

PERFORMANCE STANDARDS

In the event that any failure by ESI to meet any performance standard is due to a "force majeure" as defined in the Agreement, failure of Sponsor to perform its obligations under the Agreement, or actions or inactions of Sponsor that adversely impact ESI's ability to maintain the subject standard (e.g., faulty eligibility, changes in benefit design not adequately communicated to Members and benefit designs that substantially change the Members' rights under the Plan), ESI will be excused from compliance with such performance standards until such circumstances have been resolved and any existing backlogs or other related effects have been eliminated.

Within ninety (90) days after the end of each quarter, ESI shall measure and report performance guarantees denoted as quarterly in the table below (with the exception of the Member Satisfaction Rate, and Specialty Satisfaction Rate which will be provided on an annual basis). All performance guarantees denoted as annual in the table below will be measured and reported within ninety (90) days after the end of the Contract Year, with the exception of the Claims Adjudication Accuracy, which will be reported within 120 days. All performance guarantees will be reconciled and paid annually and amounts due resulting from an ESI failure to meet any performance standard(s), if any, shall be calculated and paid to Sponsor within thirty (30) days following Sponsor's receipt of reconciliation report.

Any Business Day penalties assessed against ESI pursuant to this Agreement, will be credited against future billings to Sponsor under the Plan in accordance with ESI standard procedures.

No performance penalties, if any, will be paid until this Agreement is executed by Sponsor. In no event will the sum of the payments to Sponsor, as a result of ESI's failure to meet the performance standards exceed $1,300,000 per year for the annual performance standards. Sponsor can choose to distribute the maximum liability for any individual performance standard allocated to one performance standard. Sponsor may reallocate performance guarantee penalty amounts across each guarantee listed in this Exhibit provided, that (i) no greater than 20% of the total performance guarantee risk pool can be allocated to an individual guarantee, (ii) any reallocation is provided in writing to ESI no later than 30 days prior to the start of each contract year, and (iii) the sum of all penalty allocations equal 100% of the total performance guarantee risk pool.

The following performance standards are based on 129,000 Members as of the Effective Date and throughout the Term. Any material change below such number may result in a renegotiation of the standards and penalties set forth below.

Performance standards for ESI Mail Pharmacy assume a minimum of 1,000 ESI Mail Pharmacy prescriptions submitted annually. Unless otherwise specified, the performance standards set forth in this exhibit will not apply to ESI Specialty Pharmacy.

Service Feature	Standard	Penalty
Member Satisfaction Survey	For purposes of this standard "satisfied" shall mean the top three responses on a scale of 1 to 7 (7 being the best). The Member Satisfaction Rate for each Contract Year will be 90% or greater. "Member Satisfaction Rate" means (i) the number of Eligible Persons responding to ESI's annual standard Member Satisfaction Survey as being satisfied with the overall performance under the Integrated Program divided by (ii) the number of Eligible Persons responding to such annual Member Satisfaction Survey. A minimum of 200 surveys must be returned for the performance standard and penalty in this section to be applicable. For purposes of this member survey "satisfied" shall mean the top three responses on a scale of 1 to 7 (7 being the best).	Sponsor may assess a penalty of $80,000 per Contract Year to ESI for failure to meet this standard.
Specialty Member Satisfaction	The Specialty Member Satisfaction Rate for each Contract Year will be 90% or greater. "Specialty Member Satisfaction Rate" means (i) the number of responses to Accredo's annual standard Specialty Member Satisfaction Survey as being satisfied with the overall performance under the Specialty Pharmacy Program divided by (ii) the	Sponsor may assess a penalty of $40,000 per Contract Year against ESI for failure to meet this standard.

Service Feature	Standard	Penalty
	total number of responses to such annual Specialty Member Satisfaction Survey. For purposes of this survey, "satisfied" shall mean the top three responses on a scale of 1 to 7 (7 being the best).	
Account Management Satisfaction	Sponsor may assess a penalty each quarter it does not rate ESI's account team's performance for such Contract Quarter on an average of three (3) or better on a scale of 1 to 4 (4 being the best) as measured on a mutually developed performance assessment tool, to be mutually agreed upon within (3) three months of the implementation date. Prior to the start of each Contract Year SPONSOR shall provide ESI with a list of four (4) designated individuals on the SPONSOR corporate benefit staff who are to receive and complete the Account Management Scorecard for the following Contract Year. Such designated individuals shall be SPONSOR staff members who work directly with ESI on a day-to-day basis on projects and operations issues. SPONSOR shall return each quarterly scorecard to ESI no later than three (3) weeks of the date the survey is distributed by ESI. Failure of SPONSOR to meet the obligations of this standard shall nullify the Account Management Satisfaction standard for the Contract Quarter being measured. Survey results of each designated staff member and for each scorecard category shall be weighted equally.	Sponsor may assess a $25,000 per contract quarter up to a maximum penalty of $100,000 per Contract Year for failure to meet this standard
Claims Adjudication Accuracy Rate	The Claims Adjudication Accuracy Rate for each Contract Quarter will be 99% or greater. The Claims Adjudication Accuracy Rate shall be measured on a Sponsor specific basis. "Claims Adjudication Accuracy Rate" means (i) the number of retail claims, mail order claims and directly submitted paper claims adjudicated by ESI in a Contract Quarter that do not contain a material adjudication error, divided by (ii) the number of all such claims adjudicated by ESI in such Contract Quarter.	Sponsor may assess a penalty against ESI in the amount of $18,750 for each Contract Quarter that this standard is not met, subject to a maximum penalty of $75,000 per Contract Year.
ID Card Production Turn Around	ESI guarantees that standard replacement ID cards will be produced within an annual average of four (4) Business Days of the receipt and update of machine-readable eligibility information. At least 98% of all Maintenance Identification Cards issued by ESI each Contract Quarter will be mailed within an average of four (4) Business Days following ESI's receipt and update of a processable eligibility tape or transmission identifying the applicable Eligible Person(s). "Maintenance Identification Cards" means new Identification Cards issued to individuals who first become Eligible Persons after the Effective Date (exclusive of new Groups or Group re-enrollments) and replacement	Sponsor may assess a penalty against ESI in the amount of $3,750 for each Contract Quarter that this standard is not met, subject to a maximum penalty of $15,000 per Contract Year.

Service Feature	Standard	Penalty
	Identification Cards for Eligible Persons who have lost or had their Identification Cards stolen.	
Plan Pharmacy Access to Participating Pharmacy	ESI will establish and maintain a network of Participating Pharmacies to provide service under the Retail Pharmacy Program. At least 98.5% of Employees will have at least one Participating Pharmacy within 3 miles of his/her five (5) digit home zip code, where any retail pharmacy exists within 3 miles of his/her five (5) digit home zip code (the "Retail Pharmacy Access Rate"). Notwithstanding the foregoing, ESI will not be required to meet the Retail Pharmacy Access Rate to the extent that ESI removes Participating Pharmacies from its network for good cause and the removal of such pharmacies causes the rate to be below 98.5%.	Sponsor may assess a penalty against ESI in the amount of $60,000 for each Contract Year that ESI fails to achieve this Retail Pharmacy Access Rate, measured on a Contract Year basis.
Average Speed of Answer (ESI)	ESI will make available a dedicated toll free member service telephone line for use by Eligible Persons. The target Average Speed of Answer ("ASA") of the member service telephone line each Contract Quarter will be thirty (30) seconds or less from the time the Eligible Person selects either the IVRU (Interactive Voice Response Unit) option or Member Service Representative Option. This ASA standard excludes calls to the toll-free telephone line separately established for Specialty Drugs.	Sponsor may assess a penalty against ESI for failure to meet this standard in the amount of $13,750 for each Contract Quarter that this standard is not met, subject to a maximum penalty of $55,000 per Contract Year.
Specialty Average Speed of Answer	The target Specialty Pharmacy Average Speed of Answer ("ASA") of the specialty national call center each Contract Year will be thirty (30) seconds or less from the time the Eligible Person selects either the IVRU (Interactive Voice Response Unit) option or Member Service Representative Option. The Specialty Pharmacy Average Speed of Answer shall be measured on a Book of Business basis.	Sponsor may assess a penalty against ESI for failure to meet this standard in the amount of $40,000 for each Contract Year that this standard is not met measured on a Contract Year basis
Blockage Rate (Busy Signal ESI)	The Blocked Calls Rate for each Contract Quarter will be 2% or less. This standard excludes calls to the toll-free telephone line separately established for Specialty Drugs. "Blocked Calls Rate" means the (i) the number of incoming telephone calls received by the member service telephone line during a Contract Quarter which were never received by the ESI Member Service Representative, due to being incomplete, unanswered or the caller receiving a busy signal, divided by (ii) the total number of incoming telephone calls received by the member service telephone line during such Contract Quarter.	Sponsor may assess a penalty against ESI in the amount of $10,000 for each Contract Quarter that this standard is not met, subject to a maximum penalty of $40,000 per Contract Year.
Percent of Calls Abandoned (ESI)	The Telephone Abandonment Rate of the member service telephone line will be 3% or less of all incoming calls received during each Contract Quarter. This standard excludes calls to the toll-free telephone line separately established for Specialty Drugs. "Telephone Abandonment Rate" means (i) the number of incoming telephone calls received by the member service telephone line during a Contract Quarter which are abandoned by the caller after a selection is made either to	Sponsor may assess a penalty against ESI in the amount of $10,000 for each Contract Quarter that this standard is not met, subject to a maximum penalty of $40,000 per Contract Year.

Service Feature	Standard	Penalty
	the IVRU (Interactive Voice Response Unit) system or a Member Services Representative, divided by (ii) the number of incoming telephone calls received by the member service telephone line during such Contract Quarter.	
Customer Service — First Call Resolution (ESI)	The First Call Resolution Rate for each Contract Quarter will be 94% or greater. This standard excludes calls to the toll-free telephone line separately established for Specialty Drugs. "First Call Resolution Rate" means (i) the total number of telephone calls made by an Eligible Person and resolved by a ESI Member Service Representative on the first call as measured by the Eligible Person not calling back the ESI Member Call Center within five (5) days regarding the same inquiry, divided by (ii) the total number of telephone calls made by Eligible Persons and received by ESI's Member Call Center.	Sponsor may assess a penalty against ESI in the amount of $20,000 for each Contract Quarter that this standard is not met, subject to a maximum penalty of $80,000 per Contract Year.
Dispensing Accuracy	The Dispensing Accuracy Rate for each Contract Quarter will be 99.996% or greater. "Dispensing Accuracy Rate" means (i) the number of all mail order pharmacy prescriptions dispensed by ESI in a Contract Year less the number of those prescriptions dispensed by ESI in such Contract Year which are reported to ESI and verified by ESI as having been dispensed with the incorrect drug or strength, divided by (ii) the number of all mail order pharmacy prescriptions dispensed by ESI in such Contract Year.	Sponsor may assess a penalty against ESI in the amount of $10,000 for each Contract Quarter that the Dispensing Accuracy Rate is missed, subject to a maximum penalty of $40,000 per Contract Year.
Turnaround Time for Routine (Clean) Prescriptions and those subject to Intervention.	ESI guarantees to dispense prescriptions not subject to intervention within an average of two (2) Business Days. This standard will be reported annually. ESI will dispense all Non-Protocol Prescriptions received each Contract Quarter under the Mail Order Pharmacy Program within an average of two (2) Business Days following receipt. All other Mail Order Pharmacy Program prescriptions received each Contract Quarter will be dispensed within an average of four (4) Business Days following receipt by ESI. This standard does not include Specialty Drugs. "Non-Protocol Prescriptions" means Mail Order Pharmacy Program prescriptions for Covered Drugs received by ESI that are in stock and which do not require physician or patient contact or other non-standard procedures prior to dispensing by ESI.	Sponsor may assess a penalty against ESI in the amount of $20,000 for each Contract Quarter that ESI fails to meet either one or both of these dispensing time period standards. This standard is subject to a maximum penalty of $20,000 per Contract Quarter, and $80,000 per Contract Year.
Data Systems Availability and Adjudication	The TelePAID® System Availability Rate for each Contract Year will be 99.5% or greater. "TelePAID® System Availability Rate" means the percentage of normal operating hours that the TelePAID® System is operational,	Sponsor may assess a penalty against ESI in the amount of $60,000 for each Contract Year that the TelePAID® System Availability

Service Feature	Standard	Penalty
	excluding scheduled maintenance time, measured on an annual basis.	Rate averages less than 99.5% for a Contract Year.
Eligibility — Timeliness of Installations	Processable maintenance eligibility transactions received by ESI via host to host, tape or floppy disc before 12:00 p.m. E.S.T. on any Business Day will be processed by ESI within an average of two (2) Business Days of receipt each Contract Year.	Sponsor may assess a penalty against ESI in the amount of $1,000 for each processable host to host, tape or floppy disc not processed by ESI within this time period, subject to a maximum penalty of $25,000 per Contract Year.
Direct (paper) Claim Processing	ESI will respond to (process a check or reject notice) at least 97% of direct reimbursement paper claims received at the address designated by ESI for such claims each Contract Quarter from Eligible Persons within an average of five (5) Business Days following receipt. All such claims for each Contract Quarter will be responded to within an average of ten (10) Business Days following receipt by ESI at the address designated by ESI for such claims.	Sponsor may assess a penalty against ESI in the amount of $10,000 for each Contract Quarter that either one or both of these rates are not met measured on a Contract Quarter basis. This standard is subject to a maximum penalty of $10,000 per Contract Quarter, and $40,000 per Contract Year.
Correspondence: Written Response time	ESI will respond to at least 95% of written inquiries received at the address designated by ESI for such inquiries each Contract Quarter from Eligible Persons that require a response (excluding appeals under Section 2.7) within an average of five (5) Business Days following receipt. All such correspondence for each Contract Year will be responded to within an average of ten (10) Business Days following receipt.	Sponsor may assess a penalty against ESI in the amount of $18,750 for each Contract Quarter that quarterly standard is not met. This standard is subject to a maximum penalty of $18,750 per Contract Quarter, and $75,000 per Contract Year.
Data Files: Cigna	ESI shall provide Sponsor's Claims Detail Layout ("CDL") file to CIGNA within five (5) Business Days after the end of ESI's biweekly billing cycle.	Sponsor may assess a penalty of $3,100 for each CDL file that does not meet this standard, subject to a maximum penalty of $80,000 per Contract Year.
Data Files: Data Vendor	ESI shall provide a Claims Detail Layout ("CDL") file to Sponsor's selected data warehouse vendor within five (5) Business Days after the end of ESI's biweekly billing cycle.	Sponsor may assess a penalty of $3,100 for each CDL file that does not meet this standard, subject to a maximum penalty of $80,000 per Contract Year.
Retail Pharmacy Audits	ESI will perform audits, including but not limited to field, desk and internal claims reviews of three (3%) of the Participating Retail Pharmacies that received reimbursement for a least 1,000 Sponsor retail pharmacy claims per Contract Year.	Sponsor may assess a penalty against ESI in the amount of $60,000 for each Contract Year that ESI fails to meet this standard, measured on a Contract Year basis.
CDH Transmissions	ESI guarantees that 99% of all CDH claims shall be accurately transmitted to Cigna through the established CDH process as validated by ESI to Sponsor's reasonable satisfaction. This standard is dependent upon ESI' receipt of accurate benefit intent provided to ESI, and all eligibility files must be provided to ESI without error.	Sponsor may assess a penalty of $20,000 for each Contract Year ESI fails to meet this standard.

Service Feature	Standard	Penalty
Member Website Availability	ESI guarantees an annual average of 90% availability of the ESI Website excluding scheduled maintenance or systems downtime attributed to telecommunications failure or other circumstances outside the control of ESI.	Sponsor may assess a penalty of $20,000 for each Contract Year ESI fails to meet this standard.
Compound Based Utilization Analysis	On a quarterly basis (i.e. January, April, July, October) ESI will provided the latest compound analysis, including pharmacy specific details for Sponsor's review and assessment. Within 2 weeks of receipt, Sponsor would provide ESI with a decision (i.e. modify PA criteria, remove additional pharmacies from the network, etc.) on any recommended changes. ESI will then move forward with implementing any requested modifications within an agreed upon time frame.	Sponsor may assess a penalty of $20,000 for each Contract Year ESI fails to meet this standard.
Rebate Payment Timeliness	ESI guarantees that it will make Rebate payments in accordance with the timeframe set forth in Sections 1.2 and 2.2 of Exhibit A-3 of the Agreement.	Sponsor may assess a penalty against ESI in the amount of $10,000 for each Contract Quarter that this standard is not met, subject to a maximum penalty of $40,000 per Contract Year."

EXHIBIT F

Data Security Addendum

This Data Protection Exhibit, in combination with other applicable requirements of the Agreement, shall constitute a material part of the Agreement between the parties. If there are any conflicts between this Exhibit and the terms of the Agreement, the terms of this exhibit shall control with respect to such conflict, as otherwise required by Laws or as specifically outlined herein or with respect to with regard to Protected Health Information governed by the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"). Capitalized terms not defined herein shall have the meanings ascribed to them in the Agreement or the Data Protection Laws. ESI and DWS agree that certain provisions and terms of this Exhibit that explicitly only apply to the General Data Protection Regulation (Regulation (EU) 2016/679) to the extent GDPR applies to current or future services shall apply only to Personal Information governed by the General Data Protection Regulation (Regulation (EU) 2016/679).

1. Definitions.

(a) "**Argentinian Model Clauses**" mean the model contract for the international transfer of "personal data" (as defined under Argentina Data Protection Law) to other countries that do not provide an adequate level of protection for personal data related to Data Subjects residing in Argentina, as set out in Disposition 60-E/2016.

(b) "**Confidential Information Security Incident**" means any known or reasonably suspected (i) loss or misuse, unauthorized access, acquisition, use, disclosure, destruction, deletion, modification, or unauthorized Processing, or any other compromise to the security of Disney Companies Confidential Information, (ii) intrusion into, interference with, penetration of, unauthorized access to, or other compromise of, Vendor's or its Subcontractor's network, computer resources, or electronic or other media on which Disney Companies Confidential Information is Processed or from which Disney Companies Confidential Information may be accessed which compromises or is reasonably suspected to compromise the Confidential Information of Disney, or (iii) other act or omission that compromises, the privacy, security, confidentiality, availability, or integrity of any Confidential Information or the proper functioning of Disney Companies' network resources.

(c) "**Data Protection Laws**" mean any applicable treaty, statute, regulation, ordinance, order, directive, code, or other rule, or any administrative guidance regarding the same, whether of or by any legislative, administrative, judicial, or other government authority, that relates to the confidentiality, security, privacy, or Processing of Personal Information.

(d) "**Data Subject**" means any identified or identifiable individual, and shall also have any meaning as set forth in Data Protection Laws.

(e) "**Disney Company**" or "**Disney Companies**" means singularly or collectively, as applicable, DWS and its Affiliates who are parties to or beneficiaries under the Agreement.

(f) "**European Data Protection Laws**" mean to the extent applicable to the Services the Data Protection Laws of (i) the European Union and the European Economic Area ("**EEA**"), including the GDPR; (ii) states party to the EEA, including European Union Member States; (iii) the United Kingdom ("**UK**"), including the Data Protection Act 2018 (together with any amended or successor Data Protection Laws thereto) and including any subsequent UK Data Protection Laws that adopt, implement, or are otherwise designed to comply with the GDPR; (iv) any state that subsequently becomes a Member State of the European Union or of the EEA; and (v) the Swiss Confederation.

(g) "**European Model Clauses**" mean the "standard contractual clauses for the transfer of personal data to third countries pursuant to Regulation (EU) 2016/679 of the European Parliament and of the Council" as set out in Commission Implementing Decision (EU) 2021/914, issued June 4, 2021, and any amendments or successors to the same.

(h) "**European Personal Data**" means Personal Information originating from or Processed in the European Union or otherwise subject to European Data Protection Laws.

(i) "**GDPR**" means the General Data Protection Regulation (Regulation (EU) 2016/679) (together with any amended or successor Data Protection Laws thereto).

(j) "**Laws**" means applicable federal, state and local laws, statutes, acts, ordinances, rules, codes and regulations, executive orders and other official binding releases of or by any government, or any authority, department or agency thereof, including those in any jurisdiction from or in which the Services are provided or received.

(k) "**Personal Information**" means any information or combination of information that ESI (or any of its Subcontractors) Processes in connection with the Services, that refers to, is related to, is associated with, or can be reasonably linked to, an identified or identifiable individual (a "**Data Subject**") or to a specific computing device used by an identifiable individual, and shall include, but is not limited to, all "personal data," "personal information," or similar terms, as defined in any Data Protection Laws.

(l) "**Process"** or **"Processing**" means any operation or set of operations that is performed upon Confidential Information, whether or not by automatic means, such as collection, using, accessing, recording, reproducing, organization, structuring, storage, adaptation or alteration, retrieval, consultation, disclosure by transmission, dissemination or otherwise making available, alignment or combination, evaluation or control, modification, blocking, restriction, erasure or destruction, or classification, and including all "processing" as defined in any Data Protection Laws.

(m) "**Security Incident**" means any known or reasonably suspected (i) loss or misuse, any unauthorized access, acquisition, use, disclosure, destruction, deletion, modification, or Processing, or any other compromise, of Personal Information; (ii) an intrusion into, interference with, penetration of, unauthorized access to, or other compromise of, ESI's or its Subcontractor's network, computer resources, or electronic or other media on which Personal Information is Processed or from which Confidential Information may be accessed and which compromises or is reasonably suspected to compromise the Confidential Information of Disney or (iii) other act or omission that compromises, the privacy, security, confidentiality, availability, or integrity of any Personal Information or the proper functioning of Disney Companies' network resources.

(n) "**Subcontractor**" means any person or party who is not a full time employee of or under contract with ESI (including, without limitation, agents, consultants, independent contractors, subcontractors, etc.) providing Services under the Agreement.

2. Processing of Personal Information by ESI and ESI's Subcontractors. When ESI or a Subcontractor Process Personal Information under the Agreement for or on behalf of Disney Companies, ESI agrees both for itself and on behalf of each such Subcontractor, that it shall:

(a) when Processing Personal Information, comply with all Data Protection Laws applicable to such Personal Information, and shall not intentionally take any actions or fail to take any actions that would cause ESI, a Subcontractor, or Disney Companies to be in violation of Data Protection Laws.

(b) Process Personal Information solely for the provision of the Services including Processing permitted or required as part of the Services and/or otherwise on the documented instructions of DWS (acting on its own behalf or on behalf of an Affiliate, as applicable), which instructions may be specific or of a general nature as set forth in the Agreement, including Attachment 1 hereto, in any related statement of work or order form, as part of any configuration of the Services, or in a separate writing, unless ESI is required to Process Personal Information pursuant to Data Protection Laws. In the event ESI is required by Data Protection Laws to Process Personal Information for any other purpose other than for the provision of the Services, ESI shall process Personal Information only as required by the Data Protection Laws , such legal requirement, and where feasible provide written notice to DWS unless such notice is prohibited by such Data Protection Laws;

(c) act only as a "processor," "subprocessor," "service provider," "or operator," or in an equivalent role as defined by Data Protection Laws in performing the Services, and not as a "controller" (also as defined by Data Protection Laws) or equivalent role.

(d) not disclose any Personal Information to any third party, for any reason, whatsoever, without DWS's prior express written consent, unless such disclosure is: (1) to a Subcontractor or as necessary for the performance of the Services as required by the Agreement for the benefit of DWS and its Affiliates, if applicable, provided that ESI and Subcontractor comply in all respects with Section 2(e) below; or (2) required by Data Protection Laws unrelated to the Services, in which case to the extent feasible ESI shall, notify DWS without undue delay after receiving a request for disclosure, unless such notice is prohibited by such Data Protection Laws or other Law. In such instances where disclosure of Personal Information is required by Data Protection Laws, ESI shall reasonably cooperate with DWS in resisting the disclosure request to the full extent permitted by Data Protection Laws, and in any event shall disclose the minimum Personal Information necessary to comply with Data Protection Laws.

(e) disclose, enable Processing of, or otherwise make accessible any Personal Information to a Subcontractor only under the following conditions: (1) ESI shall obtain the prior written consent of DWS for each Subcontractor and for each location at which such Subcontractor will provide Services hereunder that is located outside of the United States, (2) ESI shall provide prior notice to DWS for each new Subcontractor and DWS shall have an opportunity to reasonably object to any such new Subcontractor (in the event the parties are unable to resolve an objection by DWS, either party shall have the right to terminate this Agreement, (3) ESI shall be responsible for all acts and omissions of the Subcontractor; and (4) ESI agrees that it shall require each of its Subcontractors, as a condition of performing work under the Agreement, to enter into a written agreement with the ESI that contains obligations of confidentiality, security, and privacy at least as strict as those contained in the Agreement. ESI further agrees that it shall (x) conduct due diligence sufficient to ensure that each Subcontractor (A) is competent to perform the Services subcontracted to it in conformance with the standards of the Agreement and (B) has adopted and can adequately implement comprehensive written protocols to carry out the obligations of confidentiality, security, and privacy required by the Agreement; (y) closely monitor all work by each Subcontractor for compliance with the Agreement; and (z) prevent Subcontractors from further assigning or subcontracting any part of their work without the prior express written consent of DWS;

(f) promptly, and in no event later than forty-eight (48) hours of such request, notify Disney if it receives a request from a Data Subject to exercise the Data Subject's rights under GDPR, or without undue delay, and in no event later than five (5) days of such request notify Disney if it receives a request from a Data Subject to exercise the Data Subject's rights under other applicable Data Protection Laws other than HIPAA, where the request submitted is available under applicable law such as the right of access, right to rectification, right to restrict Processing, right to erasure ("right to be forgotten"), right to data portability, or right to object to the Processing, (collectively, a "**Data Subject Request**"). For Data Subject Requests or other inquiries governed by HIPAA, such requests shall be handled in accordance with the Business Associate Agreement. ESI shall provide to DWS, in writing, all details surrounding such Data Subject Request. In accordance with subsection (d), above, ESI shall not respond to any Data Subject Request without DWS's express written consent, unless ESI is required to respond to such individual requests directly under Data Protection Laws. Further, ESI shall fully cooperate as requested by DWS to enable DWS to comply with any Data Subject Request;

(g) inform DWS without undue delay if, in ESI's opinion, DWS's instructions would be in breach of European Data Protection Laws;

(h) ensure that all ESI or Subcontractor personnel engaged in Processing of Personal Information (1) Process Personal Information only as set forth in the Agreement or as required by Data Protection Laws applicable to the Processing of such Personal Information, and (2) have committed themselves to maintaining the confidentiality of Personal Information or are under an appropriate legal obligation of confidentiality;

(i) provide reasonable assistance to DWS so that DWS may comply with its obligations under Data Protection Laws in connection with the Services provided under the Agreement, including, but not limited to, any assistance that DWS deems necessary to fulfill Data Subjects Requests;

(j) make available to DWS all information necessary to demonstrate compliance with Data Protection Laws, including: (1) allowing for and facilitating audits and inspections of ESI and Subcontractor facilities conducted by DWS or DWS's authorized representatives; and (2) providing DWS with accurate books and records consistent with generally accepted practices regarding ESI's performance under the Agreement. ESI shall, at its own cost, make any changes reasonably requested by DWS to correct any compliance failures discovered during such audits, inspections, or tests.

(k) maintain records of its Processing activities under the Agreement, which will include, without limitation, the name or title of ESI personnel who access Personal Information, the categories of Personal Information Processed on behalf of Disney Companies, a description of any international data transfers conducted on behalf of Disney Companies (including a list of any countries to which Personal Information has been transferred), a general description of the technical and organizational measures used to safeguard Personal Information, and any other information required by Data Protection Laws;

(l) be directly liable (without seeking reimbursement or indemnification from Disney Companies) to any Data Subject who has suffered damage as a result of ESI's or a Subcontractor's violation of the terms of this exhibit or any violation by ESI or a Subcontractor of Data Protection Laws.

(m) limit any disclosure of Personal Information to those of its personnel and Subcontractors who have a need to know the information to effect the use permitted herein, and keep a record of such disclosures.

3. **Security Practices/Information Security Program.**

(a) ESI shall implement, comply with, and maintain industry leading security procedures, technical measures, and practices (including, if applicable, adherence to any code of conduct approved by relevant government authorities), appropriate to the nature of the information, in connection with any Confidential Information that is Processed in connection with the Services. Such measures shall include, at a minimum, establishing, implementing and at all times complying with and maintaining a comprehensive, written information security program consistent with, and applying protective security measures at least as stringent as, the most protective standards set forth in (i) generally accepted technical industry standards (e.g., ISO/IEC 27001) and (ii) any Laws, including Data Protection Laws (the "**Information Security Program**").

(b) The Information Security Program shall contain the following:

(i) an organizational information security governance structure that is maintained in writing and that contains (1) comprehensive practices and procedures that address the entire organizational process, both physical and technical, and that ensure ongoing adherence to Laws, including Data Protection Laws, with accountability at the highest levels of senior management and executive staff; (2) training on the Information Security Program, on at least an annual basis, for all personnel and relevant Subcontractors involved in Processing Personal Information; and (3) appropriate disciplinary measures for non-compliance with the Information Security Program;

(ii) administrative, logical, technical, and physical controls, including anonymization, pseudonymization, and/or encryption of Personal Information, that ESI utilizes to: (1) monitor for, identify, assess, test, evaluate, and effectively protect against, internal and external risks to the security, confidentiality, and/or integrity of Confidential Information, or to the legal rights of Data Subjects; or (2) ensure the security of ESI's Processing systems and services, with regular evaluation and testing of, and where appropriate, improvements to, the effectiveness of such controls; and

(iii) detective and corrective controls that are designed to promptly recognize, escalate, and respond to Security Incidents, Confidential Security Incidents, and other incidents that threaten the security, availability, confidentiality, and/or integrity of Confidential Information, as well as minimize adverse impacts of such Security Incidents and Confidential Security Incidents; facilitate the gathering of forensic evidence; restore the security, availability, confidentiality, and/or integrity of Confidential Information; and make systematic improvements to ESI's management of data security risks as a consequence of any such incident.

(c) ESI shall implement, maintain, comply with, and enforce its Information Security Program at each location from which ESI, or any of ESI's Subcontractors, provides any part of the Services or from which access is possible to Confidential Information or the systems on which Confidential Information is Processed. In addition, ESI shall ensure that its Information Security Program (or ESI shall ensure that the applicable Subcontractor's Information Security Program) covers all networks, systems, servers, computers, mobile phones, and other devices and media controlled by ESI (or the Subcontractor) that Process Confidential Information or provide access to Disney Computer Systems. ESI shall publish and communicate its Information Security Program to all personnel and relevant Subcontractors on at least an annual basis.

4. **Data Transfer Requirements.**

(a) Where ESI Processes European Personal Information within Europe in connection with performing Services under the Agreement for an Affiliate organized in a European country, ESI must not transfer or otherwise Process European Personal Information outside of Europe without obtaining DWS' prior written consent. Where such consent is granted, DWS and ESI will enter into European Model Clauses, with DWS acting as the entity exporting European Personal Information to ESI.

(b) With regard to a ESI Processing European Personal Information within Europe pursuant to Section 4(a) above, if DWS consents to the appointment by such ESI of a Subcontractor located outside Europe, DWS authorizes ESI to enter into the European Model Clauses with the Subcontractor in DWS' name and on its behalf. ESI shall provide DWS a copy of the European Model Clauses as executed with such Subcontractor prior to the transfer of any European Personal Information outside Europe.

(c) Where an Affiliate organized in a European country utilizes a recognized transfer mechanism to affect a transfer of European Personal Information to an Affiliate outside Europe, and where ESI subsequently Processes such European Personal Information, ESI shall, and shall contractually require each of its Subcontractors to, adhere to all of the obligations under the appropriate module of the European Model Clauses, including those obligations to which the European Model Clauses require a "third party" to adhere in the event of an "onward transfer" (as such terms are defined in the European Model Clauses). Where an Affiliate organized in a European country transfers European Personal Information directly to ESI, DWS and ESI will enter into European Model Clauses, with DWS acting as the entity exporting European Personal Information to ESI.

(d) In the event from time to time that either: (a) the basis on which Disney Companies transfers European Personal Information changes (for example, by reason of Disney Company's adoption of binding corporate rules or otherwise); or (b) the scope, content or validity of any data transfer mechanism used to legitimize any of Disney Companies' Processing of European Personal Information outside of the EEA is challenged, nullified, or required to be enhanced or amended (each independently and collectively a "**Privacy Change**"), ESI shall, and shall ensure that its Subcontractors shall, (x) to the extent the Privacy Change is required under Data Protection Law, promptly (and in any event within 30 days of receipt of an instruction) comply with DWS's documented instructions as a result of such Privacy Change, and (y) to the extent the Privacy Change is not required under Data Protection Law, negotiate in good faith with DWS regarding any updates, amendments or required documentation to this Agreement. Such instructions may include, without limitation, instructions as to compliance with any further obligations that Disney Companies are obliged to impose on ESI by Data Protection Laws and also as to completion of any formalities and entry into any such documents, as may be reasonably required by Disney Companies in regard to the Privacy Change. ESI agrees, and shall ensure that any relevant Subcontractor agrees, that a Data Subject can enforce against the ESI and/or any relevant Subcontractor any of the European Model Clauses, in the event that DWS has factually disappeared, ceased to exist in Law, or has become insolvent, unless any successor entity has assumed the entire legal obligations of DWS by contract or by operation of Law as a result of which the Data Subject can enforce them against such entity. Such third-party liability of the ESI and/or any relevant Subcontractor shall be limited to that entity's own Processing under the European Model Clauses.

(c) In the event that any Data Protection Laws that become effective after the [Effective Date] impose restrictions on the cross-border transfer of Personal Information that are not contemplated herein, the Parties agree to meet in good faith to complete any formalities and enter into any documents as may be required by such Data Protection Laws.

5. Obligations Regarding Security Incident. In the event of a Security Incident, ESI shall promptly and without undue delay (and in no event later than forty-eight (48) hours (with respect to Personal Information governed by European Data Protection Laws) and seventy-two (72) hours (with respect to all other Personal Information except PHI which shall be governed under the Business Associate Agreement) after a Security Incident) inform DWS of such Security Incident by contacting the Disney IT Support Center at 1-866-534-7639, or at Infosec.FIRE@disney.com. Such notice from ESI shall include, to the extent available, the categories and approximate number of Data Subjects and records containing Personal Information concerned, shall describe the remediation measures implemented by ESI to resolve the Security Incident, and shall identify a point of contact at ESI for any Disney Companies inquiry regarding the Security Incident. Such notice shall be timely supplemented to the level of detail reasonably requested by DWS. ESI shall provide DWS with the name and contact information of its data protection officer, if required by Data Protection Law. ESI also shall cooperate with Disney, and its applicable service providers, in the investigation and remediation of any Security Incident. Under no circumstances, other than as required by Data Protection Law, shall ESI send notice concerning a Security Incident to any third party, including, without limitation, government authorities and affected Data Subjects, without Disney's prior written approval. This provision shall not prohibit ESI from providing legally required notification to other clients, regulators, or third parties. Further, unless prohibited by Data Protection Laws, Disney shall have sole authority and discretion to determine whether to notify any third party of the Security Incident and to determine the content of any such notice. ESI shall promptly investigate and remediate the Security Incident as required under applicable Law, at its cost and expense, and shall provide Disney with the results of that investigation as soon as they are available. In the event of legal action brought by any Disney Companies against a third party in connection with a Security Incident, ESI agrees that it shall reasonably cooperate and provide such assistance as may be reasonably necessary to enable the Disney Companies to successfully prosecute such legal action. In the event of a Confidential Information Security Incident, ESI shall promptly and without undue delay and in compliance with the timing provided in any applicable Laws inform DWS of such Security Incident by contacting the Disney IT Support Center at 1-866-534-7639, or at Infosec.FIRE@disney.com. Such notice from ESI shall include, to the extent available, a description of the Confidential Information impacted, shall describe the remediation measures implemented by ESI to resolve the Confidential Information Security Incident, and shall identify a point of contact at ESI for any Disney Companies. Such notice shall be timely supplemented. ESI also shall reasonably cooperate with Disney, and its applicable service providers, in the investigation and remediation of any Confidential Information Security Incident.

6. Security Audits. On or before execution of the Agreement and annually thereafter during the Term, ESI shall (a) cause a reputable independent third-party audit firm to conduct Type II SOC1 and SOC2 audits under the SSAE 18 standard or any successor standard ("**SSAE Audits**") of ESI, its Subcontractors, and its and their dedicated data Processing environments, which includes servers supported by any necessary equipment or software, that are used to deliver the Services ("**Data Centers**"), and (b) provide to Disney the audit reports resulting therefrom ("**SSAE Reports**") subject to certain redactions made by ESI with respect to highly sensitive information the disclosure of which would likely compromise the security of ESI's systems or information maintained by it. The SSAE Reports shall reasonably describe the security control policies and procedures, including a statement on the operating effectiveness of those policies and procedures and remediation plans for any significant or material deficiencies, of ESI and its Data Centers. The audit firm shall determine whether the controls currently in place meet industry best practices such as ISO/IEC 27001. ESI shall respond promptly to Disney's reasonable questions and concerns with respect to the SSAE Reports. ESI shall be responsible for promptly remediating, at its cost, all failures, deficiencies, and risks identified in the SSAE Reports.

7. **Security Reviews.** On or before execution of the Agreement and annually thereafter during the Term, Disney may, in its discretion, inspect and audit ESI's compliance with the Agreement and Laws, including Data Protection Laws, and including but not limited to its Information Security Program and any facilities used by ESI to provide the Services. Such inspections and audits may, at Disney's option, be conducted on-site by Disney personnel or Disney's contracted third-party assessors. On-site inspections and audits will be conducted upon reasonable prior notice by Disney, but will not include access to any Vendor systems or information that would violate applicable Data Protection Law. .

8. **Retention of Confidential Information.** During the Term of the Agreement, and subject to ESI's retention obligations under Laws, including Data Protection Laws, ESI shall adhere to Disney's reasonable instructions with regard to retention (including, without limitation, deletion) of Confidential Information Processed pursuant to the Agreement in order to comply with applicable Data Protection Laws or otherwise comply with the provisions of the Agreement outlining Vendor's document retention obligations. Further, and subject to ESI's retention obligations under Laws and the Agreement, including Data Protection Laws, ESI shall, and shall cause its Subcontractors to, promptly securely destroy (by making unreadable, unreconstructable, and indecipherable) any or all Confidential Information (including, without limitation, all electronic copies on hard drives, backup media, portable devices, optical, magnetic, or other storage media, as well as hard copies) upon the earlier to occur of the following: (a) termination or expiration of the Agreement or any applicable statement of work for any reason; or (b) cessation of ESI's need to retain such Confidential Information to perform the Services. Upon request by Disney, ESI shall certify in writing that such destruction has been completed. If Disney requests return or transfer of all or a portion of such Confidential Information prior to the destruction described above, ESI shall promptly return to Disney all such Confidential Information, through a secure method designated by Disney, or shall promptly transfer such Confidential Information to Disney's designee, in accordance with the instructions of, and using the secure method prescribed by, Disney, following Disney's written demand therefor. In either event, ESI shall promptly provide Disney with a certification by an officer of ESI that all Confidential Information has been removed from ESI's and any Subcontractor's possession and/or control. If the return or destruction of such information is not possible, ESI shall continue to limit the use or disclosure of such information as set forth in this Agreement as if the Agreement had not been terminated.

9. **Survival.** ESI's data protection obligations in the Agreement, including its obligations under this Exhibit [F], shall continue for so long as ESI, or any of ESI's Subcontractors, continues to Process Personal Information, even if all agreements between ESI and Disney Companies have expired or been terminated.

10. **Certification.** By executing the Agreement, ESI certifies that it understands the restrictions on ESI's Processing of any Personal Information under the Agreement.

Attachment 1 to Exhibit [_F_]

Description of Processing of Personal Information

Purpose of Processing and recipients	
Subject-matter of the Processing	The subject matter of the Processing is set out in the Agreement and such other amendments and Services requested by DWS.
Nature, purpose and scope of the Processing	Processing as stipulated as Services in the Agreement or required to perform the Services in the Agreement.
Duration of Processing	Unless stated otherwise in this Agreement, or agreed in writing between the parties, Personal Information will be Processed for the term of the Agreement or the relevant statement of work or work order, inclusive of any amendments thereto or so long as required to comply with obligations under the Agreement or applicable law.
Types of Personal Information	The Personal Information to be Processed as part of the Services may include (check all that apply): ☒ **Contact information** Any information allowing direct outbound contact to be made with an individual such as name, address, postcode, telephone numbers, email addresses. ☒ **Individual profile information** Age, date of birth, gender, clothing size, preferences or other individual characteristics ☒ **Government identifiers** Government issued reference numbers such as National Insurance or other social security number, Government ID, passport number, driving licence number. ☒ **Financial information** Data relating to income, wealth or assets, debts, liquidity or financial transactions. Bank account information, credit/debit/payment card details. ☒ **Browsing information** Any behaviour or action observed or recorded regarding an individual's interactions with or use of any online content or advertising including but not limited to analytics, use of or visits to social media, websites or apps, time spent on social media, websites or apps, unique online or mobile device identifiers, cookies or other tracking technologies. ☒ **Employment information** Any Personal Information related to employment such as previous work history, accreditations, education. ☒ **User account information** User account information such as user login, user settings, user change history ☒ **Location data** Location information that can be derived from mobile device ID, travel booking or other purchase, use of wi-fi or other services which determine a user's access location ☒ **Social media information** Social media identifiers or handles, information gleaned from social media sites such as social login data and posts. ☒ **Other** Health and wellness information, medical records, pharmacy transaction records, and adherence program data.

Special categories of Personal Information	☒ Race ☒ Ethnic origin ☐ Political affiliation ☐ Religious affiliation ☒ Trade union membership ☒ Genetic information ☒ Biometric information ☒ Health/medical condition ☒ Sexual orientation ☐ None
Categories of Data Subjects	☐ Customers (guests/consumers) ☒ Employees (current and past) ☒ Prospective employees ☒ Contractors (contingent workers; other non-employees) ☒ Vendors and vendor employees ☒ Family members and other dependents ☐ Other (please specify)
Recipients	ESI and Subcontractor personnel who have a need to Process Personal Information solely in connection with ESI's performance of the Services. External third parties required to access the information to facilitate the Services. **A specific list of subcontractors is attached hereto.**
ESI Data Center Locations (at provence/state level)	ESI's Data Center locations, as approved by DWS as of the Effective Date **Piscataway, NJ and Chicago/Elk Grove, IL**
Approved Subcontractors and Subcontractor Data Center Locations (at province/state level)	Subontractors engaged by ESI and Data Center locations, each approved by DWS as of the Effective Date: **In addition to the Data Center locations listed above and the subcontractors list attached hereto, QTS at the New Jersey Data Center; Digital Reality at the Elk Grove location, Data Dimensions, Tata Consultancy Services, Eliza, and Conduent, Inc.**

EXHIBIT G

Specialty Product List
Mail Order and Retail Specialty Pharmacy Price List

		Mail Specialty		Retail Specialty	
THERAPY	DRUG	AWP Discount	Dispensing Fee	AWP Discount	Dispensing Fee
ALPHA 1 DEFICIENCY	ARALAST NP	17.25%	$0.00	Pass Through	Pass Through
ALPHA 1 DEFICIENCY	GLASSIA	17.25%	$0.00	Pass Through	Pass Through
ALPHA 1 DEFICIENCY	PROLASTIN (all forms and strengths)	No Access	No Access	Pass Through	Pass Through
ALPHA 1 DEFICIENCY	ZEMAIRA	17.25%	$0.00	Pass Through	Pass Through
AMYLOIDOSIS	ONPATTRO	No Access	No Access	Pass Through	Pass Through
AMYLOIDOSIS	TEGSEDI	14.00%	$0.00	Pass Through	Pass Through
AMYLOIDOSIS	VYNDAMAX	14.00%	$0.00	Pass Through	Pass Through
AMYLOIDOSIS	VYNDAQEL	14.00%	$0.00	Pass Through	Pass Through
ANTICOAGULANT	ARIXTRA	17.25%	$0.00	Pass Through	Pass Through
ANTICOAGULANT	ENOXAPARIN SODIUM	24.00%	$0.00	Pass Through	Pass Through
ANTICOAGULANT	FONDAPARINUX SODIUM	24.00%	$0.00	Pass Through	Pass Through
ANTICOAGULANT	FRAGMIN	17.25%	$0.00	Pass Through	Pass Through
ANTICOAGULANT	LOVENOX	17.25%	$0.00	Pass Through	Pass Through
ASTHMA	ADBRY	14.50%	$0.00	Pass Through	Pass Through
ASTHMA	CIBINQO	No Access	No Access	Pass Through	Pass Through
ASTHMA	CINQAIR	No Access	No Access	Pass Through	Pass Through
ASTHMA	DUPIXENT	19.25%	$0.00	Pass Through	Pass Through
ASTHMA	FASENRA	19.25%	$0.00	Pass Through	Pass Through
ASTHMA	NUCALA	19.25%	$0.00	Pass Through	Pass Through
ASTHMA	ORALAIR	No Access	No Access	Pass Through	Pass Through
ASTHMA	PALFORZIA	No Access	No Access	Pass Through	Pass Through
ASTHMA	TEZSPIRE	14.50%	$0.00	Pass Through	Pass Through
ASTHMA	XOLAIR	19.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	ADAKVEO	No Access	No Access	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	ARANESP	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	CABLIVI	No Access	No Access	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	COSELA	No Access	No Access	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	DOPTELET	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	ENDARI	15.80%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	EPOGEN	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	FULPHILA	15.80%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	GRANIX	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	LEUKINE	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	MOZOBIL	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	MULPLETA	15.80%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	NEULASTA	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	NEUPOGEN	17.25%	$0.00	Pass Through	Pass Through

BLOOD CELL DEFICIENCY	NIVESTYM (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	NPLATE	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	NYVEPRIA	15.00%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	OXBRYTA	14.70%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	PROCRIT	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	PROMACTA	17.25%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	PYRUKYND	No Access	No Access	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	REBLOZYL	No Access	No Access	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	RETACRIT	9.50%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	TAVALISSE	No Access	No Access	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	UDENYCA	15.80%	$0.00	Pass Through	Pass Through
BLOOD CELL DEFICIENCY	ZIEXTENZO	15.00%	$0.00	Pass Through	Pass Through
CANCER	ABECMA	No Access	No Access	Pass Through	Pass Through
CANCER	ABIRATERONE ACETATE	30.00%	$0.00	Pass Through	Pass Through
CANCER	ABRAXANE	17.25%	$0.00	Pass Through	Pass Through
CANCER	ADCETRIS	16.25%	$0.00	Pass Through	Pass Through
CANCER	AFINITOR (all forms and strengths)	16.25%	$0.00	Pass Through	Pass Through
CANCER	ALECENSA	16.25%	$0.00	Pass Through	Pass Through
CANCER	ALIQOPA	No Access	No Access	Pass Through	Pass Through
CANCER	ALUNBRIG	No Access	No Access	Pass Through	Pass Through
CANCER	ARRANON	17.25%	$0.00	Pass Through	Pass Through
CANCER	ARZERRA	17.25%	$0.00	Pass Through	Pass Through
CANCER	ASPARLAS	No Access	No Access	Pass Through	Pass Through
CANCER	AVASTIN	17.25%	$0.00	Pass Through	Pass Through
CANCER	AYVAKIT	No Access	No Access	Pass Through	Pass Through
CANCER	AZACITIDINE	17.25%	$0.00	Pass Through	Pass Through
CANCER	AZEDRA (all forms and strengths)	No Access	No Access	Pass Through	Pass Through
CANCER	BALVERSA	No Access	No Access	Pass Through	Pass Through
CANCER	BAVENCIO	No Access	No Access	Pass Through	Pass Through
CANCER	BELEODAQ	No Access	No Access	Pass Through	Pass Through
CANCER	BELRAPZO	16.25%	$0.00	Pass Through	Pass Through
CANCER	BENDEKA	17.25%	$0.00	Pass Through	Pass Through
CANCER	BESPONSA	15.80%	$0.00	Pass Through	Pass Through
CANCER	BESREMI	No Access	No Access	Pass Through	Pass Through
CANCER	BEXAROTENE	19.25%	$0.00	Pass Through	Pass Through
CANCER	BLENREP	No Access	No Access	Pass Through	Pass Through
CANCER	BLINCYTO	No Access	No Access	Pass Through	Pass Through
CANCER	BORTEZOMIB (Apotex)	25.00%	0.00%	Pass Through	Pass Through
CANCER	BOSULIF	17.25%	$0.00	Pass Through	Pass Through
CANCER	BRAFTOVI	15.80%	$0.00	Pass Through	Pass Through
CANCER	BREYANZI	No Access	No Access	Pass Through	Pass Through
CANCER	BRUKINSA	No Access	No Access	Pass Through	Pass Through
CANCER	CABOMETYX	17.25%	$0.00	Pass Through	Pass Through
CANCER	CALQUENCE	No Access	No Access	Pass Through	Pass Through
CANCER	CAMCEVI	No Access	No Access	Pass Through	Pass Through

CANCER	CAPECITABINE	17.25%	$0.00	Pass Through	Pass Through
CANCER	CAPRELSA	No Access	No Access	Pass Through	Pass Through
CANCER	CARVYKTI	No Access	No Access	Pass Through	Pass Through
CANCER	COMETRIQ	15.80%	$0.00	Pass Through	Pass Through
CANCER	COPIKTRA	No Access	No Access	Pass Through	Pass Through
CANCER	COTELLIC	17.25%	$0.00	Pass Through	Pass Through
CANCER	CYRAMZA	16.25%	$0.00	Pass Through	Pass Through
CANCER	DACOGEN	16.25%	$0.00	Pass Through	Pass Through
CANCER	DANYELZA	No Access	No Access	Pass Through	Pass Through
CANCER	DARZALEX (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
CANCER	DAURISMO	15.80%	$0.00	Pass Through	Pass Through
CANCER	DECITABINE	16.25%	$0.00	Pass Through	Pass Through
CANCER	DEFERASIROX	22.00%	$0.00	Pass Through	Pass Through
CANCER	ELIGARD	17.25%	$0.00	Pass Through	Pass Through
CANCER	EMPLICITI	17.25%	$0.00	Pass Through	Pass Through
CANCER	ENHERTU	14.70%	$0.00	Pass Through	Pass Through
CANCER	ERBITUX	17.25%	$0.00	Pass Through	Pass Through
CANCER	ERIVEDGE	14.50%	$0.00	Pass Through	Pass Through
CANCER	ERLEADA	17.25%	$0.00	Pass Through	Pass Through
CANCER	ERLOTINIB	25.00%	$0.00	Pass Through	Pass Through
CANCER	EVEROLIMUS	30.00%	$0.00	Pass Through	Pass Through
CANCER	EVOMELA	No Access	No Access	Pass Through	Pass Through
CANCER	EXKIVITY	No Access	No Access	Pass Through	Pass Through
CANCER	FIRMAGON	16.25%	$0.00	Pass Through	Pass Through
CANCER	FOLOTYN	16.25%	$0.00	Pass Through	Pass Through
CANCER	FOTIVDA	No Access	No Access	Pass Through	Pass Through
CANCER	FYARRO	No Access	No Access	Pass Through	Pass Through
CANCER	GAVRETO (all forms and strengths)	14.50%	$0.00	Pass Through	Pass Through
CANCER	GAZYVA	17.25%	$0.00	Pass Through	Pass Through
CANCER	GILOTRIF	16.25%	$0.00	Pass Through	Pass Through
CANCER	GLEEVEC	19.25%	$0.00	Pass Through	Pass Through
CANCER	HALAVEN	16.25%	$0.00	Pass Through	Pass Through
CANCER	HERCEPTIN	17.25%	$0.00	Pass Through	Pass Through
CANCER	HERZUMA	17.25%	$0.00	Pass Through	Pass Through
CANCER	HYCAMTIN	17.25%	$0.00	Pass Through	Pass Through
CANCER	IBRANCE	17.25%	$0.00	Pass Through	Pass Through
CANCER	ICLUSIG	No Access	No Access	Pass Through	Pass Through
CANCER	IDHIFA	17.25%	$0.00	Pass Through	Pass Through
CANCER	IMATINIB MESYLATE	24.00%	$0.00	Pass Through	Pass Through
CANCER	IMBRUVICA	No Access	No Access	Pass Through	Pass Through
CANCER	IMFINZI	17.25%	$0.00	Pass Through	Pass Through
CANCER	IMLYGIC	No Access	No Access	Pass Through	Pass Through
CANCER	INLYTA	17.25%	$0.00	Pass Through	Pass Through
CANCER	INQOVI	15.80%	$0.00	Pass Through	Pass Through
CANCER	INREBIC	15.80%	$0.00	Pass Through	Pass Through

CANCER	INTRON A	17.25%	$0.00	Pass Through	Pass Through
CANCER	IRESSA	16.25%	$0.00	Pass Through	Pass Through
CANCER	ISTODAX	17.25%	$0.00	Pass Through	Pass Through
CANCER	IXEMPRA	16.25%	$0.00	Pass Through	Pass Through
CANCER	JADENU (all forms and strengths)	14.50%	$0.00	Pass Through	Pass Through
CANCER	JAKAFI	17.25%	$0.00	Pass Through	Pass Through
CANCER	JELMYTO	No Access	No Access	Pass Through	Pass Through
CANCER	JEMPERLI	15.80%	$0.00	Pass Through	Pass Through
CANCER	JEVTANA	17.25%	$0.00	Pass Through	Pass Through
CANCER	KADCYLA	17.25%	$0.00	Pass Through	Pass Through
CANCER	KANJINTI	15.80%	$0.00	Pass Through	Pass Through
CANCER	KEPIVANCE	No Access	No Access	Pass Through	Pass Through
CANCER	KEYTRUDA	No Access	No Access	Pass Through	Pass Through
CANCER	KIMMTRAK	No Access	No Access	Pass Through	Pass Through
CANCER	KISQALI (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
CANCER	KOSELUGO	No Access	No Access	Pass Through	Pass Through
CANCER	KYMRIAH	No Access	No Access	Pass Through	Pass Through
CANCER	KYPROLIS	No Access	No Access	Pass Through	Pass Through
CANCER	LAPATINIB	17.25%	$0.00	Pass Through	Pass Through
CANCER	LENALIDOMIDE	25.00%	$0.00	Pass Through	Pass Through
CANCER	LENVIMA	17.25%	$0.00	Pass Through	Pass Through
CANCER	LEUPROLIDE ACETATE	26.00%	$0.00	Pass Through	Pass Through
CANCER	LIBTAYO	No Access	No Access	Pass Through	Pass Through
CANCER	LONSURF	17.25%	$0.00	Pass Through	Pass Through
CANCER	LORBRENA	15.80%	$0.00	Pass Through	Pass Through
CANCER	LUMAKRAS	15.80%	$0.00	Pass Through	Pass Through
CANCER	LUMOXITI	No Access	No Access	Pass Through	Pass Through
CANCER	LUPRON DEPOT (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
CANCER	LUTATHERA	No Access	No Access	Pass Through	Pass Through
CANCER	LYNPARZA	16.25%	$0.00	Pass Through	Pass Through
CANCER	LYSODREN	No Access	No Access	Pass Through	Pass Through
CANCER	MARGENZA	No Access	No Access	Pass Through	Pass Through
CANCER	MARQIBO	No Access	No Access	Pass Through	Pass Through
CANCER	MATULANE	No Access	No Access	Pass Through	Pass Through
CANCER	MEKINIST	17.25%	$0.00	Pass Through	Pass Through
CANCER	MEKTOVI	15.80%	$0.00	Pass Through	Pass Through
CANCER	MONJUVI	No Access	No Access	Pass Through	Pass Through
CANCER	MVASI	15.80%	$0.00	Pass Through	Pass Through
CANCER	MYLOTARG	14.70%	$0.00	Pass Through	Pass Through
CANCER	NELARABINE	14.00%	$0.00	Pass Through	Pass Through
CANCER	NERLYNX	17.25%	$0.00	Pass Through	Pass Through
CANCER	NEXAVAR	16.25%	$0.00	Pass Through	Pass Through
CANCER	NINLARO	17.25%	$0.00	Pass Through	Pass Through
CANCER	NUBEQA	15.80%	$0.00	Pass Through	Pass Through
CANCER	NULIBRY	No Access	No Access	Pass Through	Pass Through

CANCER	ODOMZO	17.25%	$0.00	Pass Through	Pass Through
CANCER	OGIVRI	14.50%	$0.00	Pass Through	Pass Through
CANCER	ONIVYDE	No Access	No Access	Pass Through	Pass Through
CANCER	ONTRUZANT	No Access	No Access	Pass Through	Pass Through
CANCER	ONUREG	15.80%	$0.00	Pass Through	Pass Through
CANCER	OPDIVO	17.25%	$0.00	Pass Through	Pass Through
CANCER	OPDUALAG	14.00%	$0.00	Pass Through	Pass Through
CANCER	ORGOVYX	No Access	No Access	Pass Through	Pass Through
CANCER	PACLITAXEL	25.00%	$0.00	Pass Through	Pass Through
CANCER	PADCEV	15.80%	$0.00	Pass Through	Pass Through
CANCER	PEGASYS	19.25%	$0.00	Pass Through	Pass Through
CANCER	PEMAZYRE	No Access	No Access	Pass Through	Pass Through
CANCER	PERJETA	16.25%	$0.00	Pass Through	Pass Through
CANCER	PHESGO	14.70%	$0.00	Pass Through	Pass Through
CANCER	PIQRAY	15.80%	$0.00	Pass Through	Pass Through
CANCER	PLUVICTO	No Access	No Access	Pass Through	Pass Through
CANCER	POLIVY	15.80%	$0.00	Pass Through	Pass Through
CANCER	POMALYST	17.25%	$0.00	Pass Through	Pass Through
CANCER	PORTRAZZA	16.25%	$0.00	Pass Through	Pass Through
CANCER	POTELIGEO	No Access	No Access	Pass Through	Pass Through
CANCER	PROLEUKIN	17.25%	$0.00	Pass Through	Pass Through
CANCER	PROTHELIAL	No Access	No Access	Pass Through	Pass Through
CANCER	PROVENGE	No Access	No Access	Pass Through	Pass Through
CANCER	PURIXAN	No Access	No Access	Pass Through	Pass Through
CANCER	QINLOCK	No Access	No Access	Pass Through	Pass Through
CANCER	RETEVMO	15.80%	$0.00	Pass Through	Pass Through
CANCER	REVLIMID	17.25%	$0.00	Pass Through	Pass Through
CANCER	RIABNI	13.70%	$0.00	Pass Through	Pass Through
CANCER	RITUXAN (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
CANCER	ROZLYTREK	15.80%	$0.00	Pass Through	Pass Through
CANCER	RUBRACA	15.80%	$0.00	Pass Through	Pass Through
CANCER	RUXIENCE	14.00%	$0.00	Pass Through	Pass Through
CANCER	RYBREVANT	15.80%	$0.00	Pass Through	Pass Through
CANCER	RYDAPT	17.25%	$0.00	Pass Through	Pass Through
CANCER	RYLAZE	No Access	No Access	Pass Through	Pass Through
CANCER	SARCLISA	No Access	No Access	Pass Through	Pass Through
CANCER	SCEMBLIX	15.80%	$0.00	Pass Through	Pass Through
CANCER	SPRYCEL	14.50%	$0.00	Pass Through	Pass Through
CANCER	STIVARGA	17.25%	$0.00	Pass Through	Pass Through
CANCER	SUNITINIB MALATE	25.00%	$0.00	Pass Through	Pass Through
CANCER	SUTENT	17.25%	$0.00	Pass Through	Pass Through
CANCER	SYLVANT	16.25%	$0.00	Pass Through	Pass Through
CANCER	SYNRIBO	No Access	No Access	Pass Through	Pass Through
CANCER	TABRECTA	14.70%	$0.00	Pass Through	Pass Through
CANCER	TAFINLAR	17.25%	$0.00	Pass Through	Pass Through

CANCER	TAGRISSO	16.25%	$0.00	Pass Through	Pass Through
CANCER	TALZENNA	15.80%	$0.00	Pass Through	Pass Through
CANCER	TARCEVA	19.25%	$0.00	Pass Through	Pass Through
CANCER	TARGRETIN	19.25%	$0.00	Pass Through	Pass Through
CANCER	TASIGNA	16.25%	$0.00	Pass Through	Pass Through
CANCER	TAZVERIK	No Access	No Access	Pass Through	Pass Through
CANCER	TECARTUS	No Access	No Access	Pass Through	Pass Through
CANCER	TECENTRIQ	16.25%	$0.00	Pass Through	Pass Through
CANCER	TEMODAR	17.25%	$0.00	Pass Through	Pass Through
CANCER	TEMOZOLOMIDE	25.00%	$0.00	Pass Through	Pass Through
CANCER	TEMSIROLIMUS	15.80%	$0.00	Pass Through	Pass Through
CANCER	TEPMETKO	No Access	No Access	Pass Through	Pass Through
CANCER	THALOMID	17.25%	$0.00	Pass Through	Pass Through
CANCER	THYROGEN	16.25%	$0.00	Pass Through	Pass Through
CANCER	TIBSOVO	No Access	No Access	Pass Through	Pass Through
CANCER	TIVDAK	15.80%	$0.00	Pass Through	Pass Through
CANCER	TOPOTECAN HCL	17.25%	$0.00	Pass Through	Pass Through
CANCER	TORISEL	17.25%	$0.00	Pass Through	Pass Through
CANCER	TRAZIMERA	15.80%	$0.00	Pass Through	Pass Through
CANCER	TREANDA	17.25%	$0.00	Pass Through	Pass Through
CANCER	TRODELVY	No Access	No Access	Pass Through	Pass Through
CANCER	TRUSELTIQ	No Access	No Access	Pass Through	Pass Through
CANCER	TRUXIMA	15.80%	$0.00	Pass Through	Pass Through
CANCER	TUKYSA	No Access	No Access	Pass Through	Pass Through
CANCER	TURALIO	No Access	No Access	Pass Through	Pass Through
CANCER	TYKERB	16.25%	$0.00	Pass Through	Pass Through
CANCER	UNITUXIN	No Access	No Access	Pass Through	Pass Through
CANCER	VALCHLOR	11.00%	$0.00	Pass Through	Pass Through
CANCER	VALRUBICIN	16.25%	$0.00	Pass Through	Pass Through
CANCER	VALSTAR	16.25%	$0.00	Pass Through	Pass Through
CANCER	VECTIBIX	16.25%	$0.00	Pass Through	Pass Through
CANCER	VELCADE	17.25%	$0.00	Pass Through	Pass Through
CANCER	VENCLEXTA (all forms and strengths)	No Access	No Access	Pass Through	Pass Through
CANCER	VERZENIO	17.25%	$0.00	Pass Through	Pass Through
CANCER	VIDAZA	17.25%	$0.00	Pass Through	Pass Through
CANCER	VISTOGARD	No Access	No Access	Pass Through	Pass Through
CANCER	VITRAKVI	15.80%	$0.00	Pass Through	Pass Through
CANCER	VIZIMPRO	15.80%	$0.00	Pass Through	Pass Through
CANCER	VONJO	No Access	No Access	Pass Through	Pass Through
CANCER	VOTRIENT	16.25%	$0.00	Pass Through	Pass Through
CANCER	VYXEOS (all forms and strengths)	No Access	No Access	Pass Through	Pass Through
CANCER	WELIREG	No Access	No Access	Pass Through	Pass Through
CANCER	XALKORI	17.25%	$0.00	Pass Through	Pass Through
CANCER	XELODA	17.25%	$0.00	Pass Through	Pass Through
CANCER	XGEVA	16.25%	$0.00	Pass Through	Pass Through

CANCER	XOFIGO	No Access	No Access	Pass Through	Pass Through
CANCER	XOSPATA	No Access	No Access	Pass Through	Pass Through
CANCER	XPOVIO	No Access	No Access	Pass Through	Pass Through
CANCER	XTANDI	17.25%	$0.00	Pass Through	Pass Through
CANCER	YERVOY	17.25%	$0.00	Pass Through	Pass Through
CANCER	YESCARTA	No Access	No Access	Pass Through	Pass Through
CANCER	YONDELIS	No Access	No Access	Pass Through	Pass Through
CANCER	YONSA	15.80%	$0.00	Pass Through	Pass Through
CANCER	ZALTRAP	17.25%	$0.00	Pass Through	Pass Through
CANCER	ZARXIO	17.25%	$0.00	Pass Through	Pass Through
CANCER	ZEJULA	No Access	No Access	Pass Through	Pass Through
CANCER	ZELBORAF	14.50%	$0.00	Pass Through	Pass Through
CANCER	ZEPZELCA	No Access	No Access	Pass Through	Pass Through
CANCER	ZIRABEV	14.70%	$0.00	Pass Through	Pass Through
CANCER	ZOLADEX	17.25%	$0.00	Pass Through	Pass Through
CANCER	ZOLEDRONIC ACID	27.20%	$0.00	Pass Through	Pass Through
CANCER	ZOLINZA	17.25%	$0.00	Pass Through	Pass Through
CANCER	ZYDELIG	17.25%	$0.00	Pass Through	Pass Through
CANCER	ZYKADIA	14.50%	$0.00	Pass Through	Pass Through
CANCER	ZYNLONTA	No Access	No Access	Pass Through	Pass Through
CANCER	ZYTIGA	17.25%	$0.00	Pass Through	Pass Through
CONTRACEPTIVE	LILETTA	11.00%	$0.00	Pass Through	Pass Through
CONTRACEPTIVE	MIRENA	No Access	No Access	Pass Through	Pass Through
CONTRACEPTIVE	NEXPLANON	11.00%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	BETHKIS	17.25%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	BRONCHITOL	12.70%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	CAYSTON	17.25%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	KALYDECO	17.25%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	KITABIS PAK	17.25%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	ORKAMBI	17.25%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	PULMOZYME	17.25%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	SYMDEKO	15.80%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	TOBI (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
CYSTIC FIBROSIS	TRIKAFTA	15.80%	$0.00	Pass Through	Pass Through
ENDOCRINE DISORDERS	AVEED	No Access	No Access	Pass Through	Pass Through
ENDOCRINE DISORDERS	CRYSVITA	16.25%	$0.00	Pass Through	Pass Through
ENDOCRINE DISORDERS	EGRIFTA	17.25%	$0.00	Pass Through	Pass Through
ENDOCRINE DISORDERS	FENSOLVI	No Access	No Access	Pass Through	Pass Through
ENDOCRINE DISORDERS	IMCIVREE	No Access	No Access	Pass Through	Pass Through
ENDOCRINE DISORDERS	ISTURISA	No Access	No Access	Pass Through	Pass Through
ENDOCRINE DISORDERS	KORLYM	No Access	No Access	Pass Through	Pass Through
ENDOCRINE DISORDERS	MIRCERA	No Access	No Access	Pass Through	Pass Through
ENDOCRiNE DISORDERS	MYALEPT	12.70%	$0.00	Pass Through	Pass Through
ENDOCRINE DISORDERS	MYCAPSSA	No Access	No Access	Pass Through	Pass Through
ENDOCRINE DISORDERS	NATPARA	16.25%	$0.00	Pass Through	Pass Through

ENDOCRINE DISORDERS	OCTREOTIDE ACETATE	27.20%	$0.00		Pass Through	Pass Through
ENDOCRINE DISORDERS	RECORLEV	No Access	No Access		Pass Through	Pass Through
ENDOCRINE DISORDERS	SANDOSTATIN (all forms and strengths)	17.25%	$0.00		Pass Through	Pass Through
ENDOCRINE DISORDERS	SIGNIFOR (all forms and strengths)	No Access	No Access		Pass Through	Pass Through
ENDOCRINE DISORDERS	SOMATULINE DEPOT	17.25%	$0.00		Pass Through	Pass Through
ENDOCRINE DISORDERS	SOMAVERT	16.25%	$0.00		Pass Through	Pass Through
ENDOCRINE DISORDERS	SUPPRELIN LA	17.25%	$0.00		Pass Through	Pass Through
ENDOCRINE DISORDERS	TESTOPEL	No Access	No Access		Pass Through	Pass Through
ENDOCRINE DISORDERS	TOLVAPTAN	25.00%	$0.00		Pass Through	Pass Through
ENDOCRINE DISORDERS	TRIPTODUR	No Access	No Access		Pass Through	Pass Through
ENDOCRINE DISORDERS	VOXZOGO	14.00%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	ALDURAZYME	11.50%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	BETAINE ANHYDROUS	25.00%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	BRINEURA	No Access	No Access		Pass Through	Pass Through
ENZYME DEFICIENCY	CARBAGLU	11.50%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	CARGLUMIC ACID	No Access	No Access		Pass Through	Pass Through
ENZYME DEFICIENCY	CERDELGA	16.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	CEREZYME	17.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	CYSTADANE	No Access	No Access		Pass Through	Pass Through
ENZYME DEFICIENCY	ELAPRASE	17.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	ELELYSO	17.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	FABRAZYME	11.50%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	GALAFOLD	11.50%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	KANUMA	17.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	KUVAN	17.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	LUMIZYME	16.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	MEPSEVII	14.00%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	MIGLUSTAT	45.00%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	NAGLAZYME	16.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	NEXVIAZYME	14.50%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	NITISINONE	15.80%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	NITYR	17.00%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	ORFADIN	No Access	No Access		Pass Through	Pass Through
ENZYME DEFICIENCY	PALYNZIQ	16.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	REVCOVI	No Access	No Access		Pass Through	Pass Through
ENZYME DEFICIENCY	SAPROPTERIN (all forms and strengths)	17.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	SUCRAID	No Access	No Access		Pass Through	Pass Through
ENZYME DEFICIENCY	VIMIZIM	17.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	VPRIV	17.25%	$0.00		Pass Through	Pass Through
ENZYME DEFICIENCY	ZAVESCA	16.25%	$0.00		Pass Through	Pass Through
GROWTH DEFICIENCY	GENOTROPIN	19.25%	$0.00		Pass Through	Pass Through
GROWTH DEFICIENCY	HUMATROPE	19.25%	$0.00		Pass Through	Pass Through
GROWTH DEFICIENCY	INCRELEX	11.00%	$0.00		Pass Through	Pass Through
GROWTH DEFICIENCY	MACRILEN	14.70%	$0.00		Pass Through	Pass Through
GROWTH DEFICIENCY	NORDITROPIN (all forms and strengths)	19.25%	$0.00		Pass Through	Pass Through

GROWTH DEFICIENCY	NUTROPIN (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
GROWTH DEFICIENCY	OMNITROPE	17.25%	$0.00	Pass Through	Pass Through
GROWTH DEFICIENCY	SAIZEN (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
GROWTH DEFICIENCY	SEROSTIM	17.25%	$0.00	Pass Through	Pass Through
GROWTH DEFICIENCY	SKYTROFA	14.00%	$0.00	Pass Through	Pass Through
GROWTH DEFICIENCY	ZOMACTON	17.25%	$0.00	Pass Through	Pass Through
HEMOPHILIA	ADVATE (all forms and strengths)	27.20%	$0.00	Pass Through	Pass Through
HEMOPHILIA	ADYNOVATE	27.20%	$0.00	Pass Through	Pass Through
HEMOPHILIA	AFSTYLA	34.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	ALPHANATE	34.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	ALPHANINE SD	34.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	ALPROLIX	24.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	BENEFIX	12.70%	$0.00	Pass Through	Pass Through
HEMOPHILIA	CEPROTIN	14.70%	$0.00	Pass Through	Pass Through
HEMOPHILIA	COAGADEX	No Access	No Access	Pass Through	Pass Through
HEMOPHILIA	CORIFACT	27.20%	$0.00	Pass Through	Pass Through
HEMOPHILIA	DDAVP	14.70%	$0.00	Pass Through	Pass Through
HEMOPHILIA	DESMOPRESSIN ACETATE	45.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	ELOCTATE	27.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	ESPEROCT	27.20%	$0.00	Pass Through	Pass Through
HEMOPHILIA	FEIBA NF (all forms and strengths)	34.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	FIBRYGA	No Access	No Access	Pass Through	Pass Through
HEMOPHILIA	HEMLIBRA	20.75%	$0.00	Pass Through	Pass Through
HEMOPHILIA	HEMOFIL M	39.50%	$0.00	Pass Through	Pass Through
HEMOPHILIA	HUMATE-P	34.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	IDELVION	24.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	IXINITY	24.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	JIVI	27.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	KOATE	32.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	KOGENATE FS	35.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	KOVALTRY	27.20%	$0.00	Pass Through	Pass Through
HEMOPHILIA	MONONINE	27.20%	$0.00	Pass Through	Pass Through
HEMOPHILIA	NOVOEIGHT	34.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	NOVOSEVEN (all forms and strengths)	32.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	NUWIQ	27.20%	$0.00	Pass Through	Pass Through
HEMOPHILIA	OBIZUR	No Access	No Access	Pass Through	Pass Through
HEMOPHILIA	PROFILNINE SD	27.20%	$0.00	Pass Through	Pass Through
HEMOPHILIA	REBINYN	24.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	RECOMBINATE	34.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	RIASTAP	19.25%	$0.00	Pass Through	Pass Through
HEMOPHILIA	RIXUBIS	34.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	SEVENFACT (all forms and strengths)	32.00%	$0.00	Pass Through	Pass Through
HEMOPHILIA	TRETTEN	12.70%	$0.00	Pass Through	Pass Through
HEMOPHILIA	VONVENDI	27.20%	$0.00	Pass Through	Pass Through
HEMOPHILIA	WILATE	34.00%	$0.00	Pass Through	Pass Through

HEMOPHILIA	XYNTHA (all forms and strengths)	35.00%	$0.00	Pass Through	Pass Through
HEPATITIS C	BYLVAY	14.00%	$0.00	Pass Through	Pass Through
HEPATITIS C	EPCLUSA	19.25%	$0.00	Pass Through	Pass Through
HEPATITIS C	HARVONI	19.25%	$0.00	Pass Through	Pass Through
HEPATITIS C	LEDIPASVIR-SOFOSBUVIR	15.00%	$0.00	Pass Through	Pass Through
HEPATITIS C	MAVYRET	19.25%	$0.00	Pass Through	Pass Through
HEPATITIS C	OCALIVA	17.25%	$0.00	Pass Through	Pass Through
HEPATITIS C	RIBAVIRIN	65.00%	$0.00	Pass Through	Pass Through
HEPATITIS C	SOFOSBUVIR-VELPATASVIR	15.00%	$0.00	Pass Through	Pass Through
HEPATITIS C	SOVALDI	19.25%	$0.00	Pass Through	Pass Through
HEPATITIS C	VIEKIRA	19.25%	$0.00	Pass Through	Pass Through
HEPATITIS C	VOSEVI	19.25%	$0.00	Pass Through	Pass Through
HEPATITIS C	ZEPATIER	19.25%	$0.00	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	BERINERT	16.25%	$0.00	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	CINRYZE	11.50%	$0.00	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	FIRAZYR	16.25%	$0.00	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	HAEGARDA	16.25%	$0.00	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	ICATIBANT	25.00%	$0.00	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	KALBITOR	16.25%	$0.00	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	ORLADEYO (all forms and strengths)	No Access	No Access	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	RUCONEST	16.25%	$0.00	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	SAJAZIR	No Access	No Access	Pass Through	Pass Through
HEREDITARY ANGIOEDEMA	TAKHZYRO	16.25%	$0.00	Pass Through	Pass Through
HIGH BLOOD CHOLESTEROL	LEQVIO	No Access	No Access	Pass Through	Pass Through
HIV	ABACAVIR	19.50%	$0.00	Pass Through	Pass Through
HIV	ABACAVIR-LAMIVUDINE	19.50%	$0.00	Pass Through	Pass Through
HIV	ABACAVIR-LAMIVUDINE-ZIDOVUDINE	19.50%	$0.00	Pass Through	Pass Through
HIV	APTIVUS	19.25%	$0.00	Pass Through	Pass Through
HIV	ATAZANAVIR SULFATE	19.25%	$0.00	Pass Through	Pass Through
HIV	ATRIPLA	19.25%	$0.00	Pass Through	Pass Through
HIV	BIKTARVY	19.25%	$0.00	Pass Through	Pass Through
HIV	CIMDUO	19.25%	$0.00	Pass Through	Pass Through
HIV	COMBIVIR	19.25%	$0.00	Pass Through	Pass Through
HIV	COMPLERA	16.25%	$0.00	Pass Through	Pass Through
HIV	DELSTRIGO	12.70%	$0.00	Pass Through	Pass Through
HIV	DESCOVY	19.25%	$0.00	Pass Through	Pass Through
HIV	DIDANOSINE	30.00%	$0.00	Pass Through	Pass Through
HIV	DOVATO	15.00%	$0.00	Pass Through	Pass Through
HIV	EDURANT	16.25%	$0.00	Pass Through	Pass Through
HIV	EFAVIRENZ	24.25%	$0.00	Pass Through	Pass Through
HIV	EFAVIRENZ/EMTRICITABINE/TENOFOVIR	24.00%	$0.00	Pass Through	Pass Through
HIV	EFAVIRENZ/LAMIVU/TENOFOVIR	22.00%	$0.00	Pass Through	Pass Through
HIV	EMTRICITABINE	24.00%	$0.00	Pass Through	Pass Through
HIV	EMTRICITABINE/TENOFOVIR (TDF)	22.00%	$0.00	Pass Through	Pass Through
HIV	EMTRIVA	19.25%	$0.00	Pass Through	Pass Through

HIV	EPIVIR	19.25%	$0.00	Pass Through	Pass Through
HIV	EPZICOM	19.25%	$0.00	Pass Through	Pass Through
HIV	ETRAVIRINE	12.70%	$0.00	Pass Through	Pass Through
HIV	EVOTAZ	19.25%	$0.00	Pass Through	Pass Through
HIV	FOSAMPRENAVIR	24.25%	$0.00	Pass Through	Pass Through
HIV	FUZEON	17.25%	$0.00	Pass Through	Pass Through
HIV	GENVOYA	19.25%	$0.00	Pass Through	Pass Through
HIV	INTELENCE	19.25%	$0.00	Pass Through	Pass Through
HIV	INVIRASE	19.25%	$0.00	Pass Through	Pass Through
HIV	ISENTRESS (all forms and strengths)	19.25%	$0.00	Pass Through	Pass Through
HIV	JULUCA	19.25%	$0.00	Pass Through	Pass Through
HIV	KALETRA	19.25%	$0.00	Pass Through	Pass Through
HIV	LAMIVUDINE	30.00%	$0.00	Pass Through	Pass Through
HIV	LAMIVUDINE-ZIDOVUDINE	30.00%	$0.00	Pass Through	Pass Through
HIV	LEXIVA	19.25%	$0.00	Pass Through	Pass Through
HIV	LOPINAVIR - RITONAVIR	19.50%	$0.00	Pass Through	Pass Through
HIV	MARAVIROC	19.25%	$0.00	Pass Through	Pass Through
HIV	NEVIRAPINE	19.50%	$0.00	Pass Through	Pass Through
HIV	NORVIR	19.25%	$0.00	Pass Through	Pass Through
HIV	ODEFSEY	19.25%	$0.00	Pass Through	Pass Through
HIV	PIFELTRO	8.50%	$0.00	Pass Through	Pass Through
HIV	PREZCOBIX	19.25%	$0.00	Pass Through	Pass Through
HIV	PREZISTA	19.25%	$0.00	Pass Through	Pass Through
HIV	RETROVIR	19.25%	$0.00	Pass Through	Pass Through
HIV	REYATAZ	19.25%	$0.00	Pass Through	Pass Through
HIV	RITONAVIR	30.00%	$0.00	Pass Through	Pass Through
HIV	RUKOBIA	15.80%	$0.00	Pass Through	Pass Through
HIV	SELZENTRY	19.25%	$0.00	Pass Through	Pass Through
HIV	STAVUDINE	65.00%	$0.00	Pass Through	Pass Through
HIV	STRIBILD	19.25%	$0.00	Pass Through	Pass Through
HIV	SUSTIVA	19.25%	$0.00	Pass Through	Pass Through
HIV	SYMFI (all forms and strengths)	19.25%	$0.00	Pass Through	Pass Through
HIV	SYMTUZA	15.80%	$0.00	Pass Through	Pass Through
HIV	TEMIXYS	15.80%	$0.00	Pass Through	Pass Through
HIV	TENOFOVIR DISOPROXIL FUMARATE	19.25%	$0.00	Pass Through	Pass Through
HIV	TIVICAY	19.25%	$0.00	Pass Through	Pass Through
HIV	TRIUMEQ	19.25%	$0.00	Pass Through	Pass Through
HIV	TRIZIVIR	19.25%	$0.00	Pass Through	Pass Through
HIV	TRUVADA	19.25%	$0.00	Pass Through	Pass Through
HIV	TYBOST	19.25%	$0.00	Pass Through	Pass Through
HIV	VIRACEPT	19.25%	$0.00	Pass Through	Pass Through
HIV	VIRAMUNE (all forms and strengths)	19.25%	$0.00	Pass Through	Pass Through
HIV	VIREAD	19.25%	$0.00	Pass Through	Pass Through
HIV	ZIAGEN	19.25%	$0.00	Pass Through	Pass Through
HIV	ZIDOVUDINE	65.00%	$0.00	Pass Through	Pass Through

HIV-LD	APRETUDE	No Access	No Access	Pass Through	Pass Through
HIV-LD	CABENUVA	14.70%	$0.00	Pass Through	Pass Through
HIV-LD	TROGARZO	16.25%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	ACTIMMUNE	14.70%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	ASCENIV	14.70%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	BIVIGAM	8.00%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	CUTAQUIG	20.75%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	CUVITRU	32.00%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	CYTOGAM	18.70%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	FLEBOGAMMA	No Access	No Access	Pass Through	Pass Through
IMMUNE DEFICIENCY	GAMASTAN S-D	18.70%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	GAMMAGARD LIQUID	24.00%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	GAMMAGARD S-D	27.20%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	GAMMAKED	20.75%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	GAMMAPLEX	24.00%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	GAMUNEX (all forms and strengths)	20.75%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	HIZENTRA	32.00%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	HYQVIA	32.00%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	OCTAGAM	15.80%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	PANZYGA	8.00%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	PRIVIGEN	15.80%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	VYVGART	14.00%	$0.00	Pass Through	Pass Through
IMMUNE DEFICIENCY	XEMBIFY	27.00%	$0.00	Pass Through	Pass Through
INFERTILITY	CETROTIDE	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	CHORIONIC GONADOTROPIN	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	CRINONE	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	ENDOMETRIN	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	FOLLISTIM AQ	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	FYREMADEL	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	GANIRELIX ACETATE	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	GONAL-F (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	KYLEENA	No Access	No Access	Pass Through	Pass Through
INFERTILITY	MENOPUR	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	NOVAREL	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	OVIDREL	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	PARAGARD	No Access	No Access	Pass Through	Pass Through
INFERTILITY	PREGNYL	17.25%	$0.00	Pass Through	Pass Through
INFERTILITY	PROGESTERONE	32.00%	$0.00	Pass Through	Pass Through
INFERTILITY	SKYLA	No Access	No Access	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	ACTEMRA	11.00%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	ARCALYST	17.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	AVSOLA	13.70%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	BENLYSTA	16.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	CIMZIA	17.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	COSENTYX (all forms and strengths)	16.25%	$0.00	Pass Through	Pass Through

INFLAMMATORY CONDITIONS	ENBREL (all forms and strengths)	19.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	ENTYVIO	16.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	HUMIRA (all forms and strengths)	19.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	HYMOVIS	17.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	ILARIS	17.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	ILUMYA	15.80%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	INFLECTRA	18.70%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	INFLIXIMAB	No Access	No Access	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	KEVZARA	17.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	KINERET	No Access	No Access	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	KRYSTEXXA	16.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	LUPKYNIS	No Access	No Access	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	OLUMIANT	14.70%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	ORENCIA (all forms and strengths)	14.00%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	OTEZLA	17.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	REMICADE	19.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	RENFLEXIS	14.00%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	RINVOQ	15.80%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	SAPHNELO	No Access	No Access	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	SILIQ	16.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	SIMPONI (all forms and strengths)	16.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	SKYRIZI	16.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	STELARA	16.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	TALTZ (all forms and strengths)	16.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	TAVNEOS	No Access	No Access	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	TREMFYA	16.25%	$0.00	Pass Through	Pass Through
INFLAMMATORY CONDITIONS	XELJANZ (all forms and strengths)	17.25%	$0.00	Pass Through	Pass Through
IRON TOXICITY	DEFERIPRONE	25.00%	$0.00	Pass Through	Pass Through
IRON TOXICITY	EXJADE	14.50%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ACTHAR H.P.	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ADUHELM	11.50%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	APOKYN	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	APOMORPHINE HCL	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ARESTIN	16.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ARIKAYCE	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	AUSTEDO	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	BOTOX	19.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	CAMZYOS	14.50%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	CHENODAL	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	CHOLBAM	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	CORTROPHIN GEL	14.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	CYSTAGON	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	CYSTARAN	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	DARAPRIM	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	DIACOMIT	No Access	No Access	Pass Through	Pass Through

MISCELLANEOUS SPECIALTY CONDITIONS	DOJOLVI	15.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	DROXIDOPA	30.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	DUOPA	11.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	DYSPORT	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ELZONRIS	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	EMPAVELI	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ENJAYMO	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ENSPRYNG	15.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	EPIDIOLEX	12.70%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	EVKEEZA	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	EXSERVAN	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	FERRIPROX	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	FINTEPLA (all forms and strengths)	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	GAMIFANT	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	GATTEX	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	GIMOTI	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	GIVLAARI	14.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	GOCOVRI	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	HEMANGEOL	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	HETLIOZ	22.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	HUMATIN	14.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	HYDROXYPROGESTERONE	22.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	INBRIJA	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	INGREZZA	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	JUXTAPID	16.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	JYNARQUE	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	KEVEYIS	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	LIVMARLI	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	MAKENA	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	MYOBLOC	19.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	MYTESI	12.70%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	NORTHERA	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	NOURIANZ	8.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	NUPLAZID	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	OSMOLEX (all forms and strengths)	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	OXLUMO	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	PRIALT	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	PROCYSBI	12.70%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	PYRIMETHAMINE	25.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	QUTENZA	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	RAVICTI	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ROMIDEPSIN	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	RYPLAZIM	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	SABRIL	14.50%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	SAMSCA	16.25%	$0.00	Pass Through	Pass Through

MISCELLANEOUS SPECIALTY CONDITIONS	SCENESSE	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	SINUVA	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	SOLESTA	16.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	SOLIRIS	14.50%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	SPRAVATO	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	SPRIX	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	STRENSIQ	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	SUBLOCADE	13.70%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	TARPEYO	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	TETRABENAZINE	22.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	THIOLA	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	TIOPRONIN	17.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ULTOMIRIS	15.80%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	UPLIZNA	12.70%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	VARITHENA (all forms and strengths)	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	VIGABATRIN	14.50%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	VIGADRONE	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	VIJOICE	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	VIVITROL	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	VYEPTI	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	VYLEESI	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	WAKIX	15.80%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	XENAZINE	17.25%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	XEOMIN	11.00%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	XERMELO	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	XIAFLEX	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	XURIDEN	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	XYREM	11.50%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	XYWAV	11.50%	$0.00	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ZOKINVY	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ZTALMY	No Access	No Access	Pass Through	Pass Through
MISCELLANEOUS SPECIALTY CONDITIONS	ZULRESSO	No Access	No Access	Pass Through	Pass Through
MULTIPLE SCLEROSIS	AMPYRA	19.25%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	AUBAGIO	16.25%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	AVONEX (all forms and strengths)	19.25%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	BAFIERTAM	15.80%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	BETASERON	17.25%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	COPAXONE	19.25%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	DALFAMPRIDINE	45.00%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	DIMETHYL FUMARATE (all forms and strengths)	22.00%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	EXTAVIA	19.25%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	GILENYA	19.25%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	GLATIRAMER ACETATE	27.00%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	GLATOPA	27.00%	$0.00	Pass Through	Pass Through
MULTIPLE SCLEROSIS	KESIMPTA	15.80%	$0.00	Pass Through	Pass Through

MULTIPLE SCLEROSIS	LEMTRADA	17.25%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	MAVENCLAD	16.25%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	MAYZENT	15.80%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	MITOXANTRONE HCL	17.25%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	OCREVUS	16.25%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	PLEGRIDY (all forms and strengths)	17.25%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	PONVORY	15.80%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	REBIF (all forms and strengths)	19.25%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	TECFIDERA	17.25%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	TYSABRI	14.00%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	VUMERITY	15.80%	$0.00		Pass Through	Pass Through
MULTIPLE SCLEROSIS	ZEPOSIA	15.80%	$0.00		Pass Through	Pass Through
MUSCULAR DYSTROPHY	AMONDYS 45	No Access	No Access		Pass Through	Pass Through
MUSCULAR DYSTROPHY	EMFLAZA	12.70%	$0.00		Pass Through	Pass Through
MUSCULAR DYSTROPHY	EVRYSDI	15.00%	$0.00		Pass Through	Pass Through
MUSCULAR DYSTROPHY	EXONDYS 51	No Access	No Access		Pass Through	Pass Through
MUSCULAR DYSTROPHY	FIRDAPSE	No Access	No Access		Pass Through	Pass Through
MUSCULAR DYSTROPHY	RADICAVA (Oral)	14.50%	$0.00		Pass Through	Pass Through
MUSCULAR DYSTROPHY	SPINRAZA	15.80%	$0.00		Pass Through	Pass Through
MUSCULAR DYSTROPHY	VILTEPSO	No Access	No Access		Pass Through	Pass Through
MUSCULAR DYSTROPHY	VYONDYS	No Access	No Access		Pass Through	Pass Through
MUSCULAR DYSTROPHY	ZOLGENSMA	15.80%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	BEOVU	11.50%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	CYSTADROPS	No Access	No Access		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	DURYSTA	11.50%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	EYLEA	14.50%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	ILUVIEN	14.50%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	LUCENTIS	17.25%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	LUXTURNA	14.70%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	OXERVATE	15.80%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	OZURDEX	16.25%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	RETISERT	11.00%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	SUSVIMO	No Access	No Access		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	TEPEZZA	11.50%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	VABYSMO	No Access	No Access		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	VISUDYNE	11.00%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	XIPERE	8.00%	$0.00		Pass Through	Pass Through
OPHTHALMIC CONDITIONS	YUTIQ	No Access	No Access		Pass Through	Pass Through
OSTEOARTHRITIS	DUROLANE	17.25%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	EUFLEXXA	17.25%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	GEL-ONE	17.25%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	GELSYN - 3	17.25%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	GENVISC 850	No Access	No Access		Pass Through	Pass Through
OSTEOARTHRITIS	HYALGAN	17.25%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	MONOVISC	17.25%	$0.00		Pass Through	Pass Through

OSTEOARTHRITIS	ORTHOVISC	17.25%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	SUPARTZ	17.25%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	SYNVISC (all forms and strengths)	17.25%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	TRILURON	15.80%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	TRIVISC	No Access	No Access		Pass Through	Pass Through
OSTEOARTHRITIS	VISCO-3	17.25%	$0.00		Pass Through	Pass Through
OSTEOARTHRITIS	ZILRETTA	No Access	No Access		Pass Through	Pass Through
OSTEOPOROSIS	EVENITY	14.50%	$0.00		Pass Through	Pass Through
OSTEOPOROSIS	FORTEO	19.25%	$0.00		Pass Through	Pass Through
OSTEOPOROSIS	IBANDRONATE SODIUM	19.50%	$0.00		Pass Through	Pass Through
OSTEOPOROSIS	PROLIA	16.25%	$0.00		Pass Through	Pass Through
OSTEOPOROSIS	RECLAST	19.25%	$0.00		Pass Through	Pass Through
OSTEOPOROSIS	TERIPARATIDE	15.80%	$0.00		Pass Through	Pass Through
OSTEOPOROSIS	TYMLOS	19.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	ADCIRCA	17.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	ADEMPAS	17.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	ALYQ	No Access	No Access		Pass Through	Pass Through
PULMONARY HYPERTENSION	AMBRISENTAN	25.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	BOSENTAN	25.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	DILUENT FOR EPOPROSTENOL VIAL	11.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	DILUENT FOR FLOLAN VIAL	11.00%	**$0.00**		Pass Through	Pass Through
PULMONARY HYPERTENSION	DILUENT FOR REMODULIN	11.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	DILUENT FOR TREPROSTINIL	15.80%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	EPOPROSTENOL SODIUM (gFlolan)	11.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	EPOPROSTENOL SODIUM (gVeletri)	11.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	ESBRIET	17.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	FLOLAN	11.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	LETAIRIS	17.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	OFEV	17.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	OPSUMIT	17.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	ORENITRAM	17.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	PIRFENIDONE	25.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	REMODULIN	11.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	REVATIO	19.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	SILDENAFIL CITRATE	65.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	TADALAFIL	36.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	TOBRAMYCIN (all forms and strengths)	17.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	TRACLEER	19.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	TREPROSTINIL SODIUM	15.80%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	TYVASO	11.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	UPTRAVI	17.25%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	VELETRI	11.00%	$0.00		Pass Through	Pass Through
PULMONARY HYPERTENSION	VENTAVIS	11.00%	$0.00		Pass Through	Pass Through
RESPIRATORY SYNCYTIAL VIRUS	SYNAGIS	17.25%	$0.00		Pass Through	Pass Through
TRANSPLANT	ASTAGRAF XL	19.25%	$0.00		Pass Through	Pass Through

TRANSPLANT	AZASAN	17.25%	$0.00		Pass Through	Pass Through
TRANSPLANT	AZATHIOPRINE (all forms and strengths)	65.00%	$0.00		Pass Through	Pass Through
TRANSPLANT	CELLCEPT	20.00%	$0.00		Pass Through	Pass Through
TRANSPLANT	CYCLOSPORINE (all forms and strengths)	35.00%	$0.00		Pass Through	Pass Through
TRANSPLANT	ENVARSUS	14.50%	$0.00		Pass Through	Pass Through
TRANSPLANT	EVEROLIMUS	30.00%	$0.00		Pass Through	Pass Through
TRANSPLANT	GENGRAF	35.00%	$0.00		Pass Through	Pass Through
TRANSPLANT	IMURAN	23.00%	$0.00		Pass Through	Pass Through
TRANSPLANT	LIVTENCITY	No Access	No Access		Pass Through	Pass Through
TRANSPLANT	MYCOPHENOLATE MOFETIL	65.00%	$0.00		Pass Through	Pass Through
TRANSPLANT	MYCOPHENOLIC ACID	19.50%	$0.00		Pass Through	Pass Through
TRANSPLANT	MYFORTIC	19.25%	$0.00		Pass Through	Pass Through
TRANSPLANT	NEORAL	19.25%	$0.00		Pass Through	Pass Through
TRANSPLANT	NULOJIX	14.50%	$0.00		Pass Through	Pass Through
TRANSPLANT	PROGRAF	19.25%	$0.00		Pass Through	Pass Through
TRANSPLANT	RAPAMUNE	19.25%	$0.00		Pass Through	Pass Through
TRANSPLANT	REZUROCK	No Access	No Access		Pass Through	Pass Through
TRANSPLANT	SANDIMMUNE	19.25%	$0.00		Pass Through	Pass Through
TRANSPLANT	SIMULECT	19.25%	$0.00		Pass Through	Pass Through
TRANSPLANT	SIROLIMUS	19.50%	$0.00		Pass Through	Pass Through
TRANSPLANT	TACROLIMUS	40.00%	$0.00		Pass Through	Pass Through
TRANSPLANT	THYMOGLOBULIN	19.25%	$0.00		Pass Through	Pass Through
TRANSPLANT	ZORTRESS	19.25%	$0.00		Pass Through	Pass Through

1. The Client will receive 100% of Total Specialty Rebates.
2. The Client will receive 100% of the Manufacturer's Administrative Fee.
3. This proposal is contingent on ESI being the exclusive provider of Specialty Drugs through mail.
4. ESI reserves the right to modify these lists and rates based on changing industry conditions.
5. The above Mail Pricing Offer assumes a days' supply consistent with the Accredo Days' Supply Program.
6. The above drugs assume all forms and strengths with the exception of bulk chemicals and powders. With the exception of the following: Oral forms of BONIVA(ibandronate sodium), Progesterone, and DDAVP(desmopressin acetate) are not considered specialty. Topical forms of Prograf and Astagraf (tacrolimus) are not considered specialty.
7. Applicable to ESI specialty drugs and utilization, if any government action, change in law or regulation, change in the interpretation of any law or regulation, or any action by a pharmaceutical manufacturer has an adverse effect on the economics of the agreement, then ESI may make an equitable adjustment to the specialty pricing and specialty guarantees.
8. Specialty drug pricing is not guaranteed at the drug level rather only in the aggregate in accordance with the guarantees shown above.
9. Accredo may only have access to certain NDCs of some drugs.